

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED
 ☐ INSPECTED
 ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

38. S/R ACCOUNT NO.	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT	42a. RECEIVED BY (<i>Print</i>)
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	42b. RECEIVED AT (<i>Location</i>)
41c. DATE	42c. DATE REC'D (YY/MM/DD)
	42d. TOTAL CONTAINERS

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Form

Continuation of Blocks from SF 1449

1. Block 8

Offer Due Date/Local Time: **May 4, 2026**

Solicitation Number: **SPE1C1-26-R-0034**

Opening/Closing Date and Time: **April 3, 2026 / May 4, 2026 @ 3:00 PM, local (Philadelphia) time - Eastern Standard Time (Philadelphia time), or when applicable, Eastern Daylight Savings Time**

ITEM: Socks, Black, Athletic

PGC 00338, NSN: 8415-01-692-2228(s) PR

NOTE: IT IS A REQUIREMENT THAT ALL PROPOSALS, MODIFICATIONS, AND WITHDRAWALS BE PLAINLY MARKED ON THE OUTERMOST ENVELOPE WITH THE SOLICITATION NUMBER, CLOSING DATE AND TIME SET FOR THE RECEIPT OF PROPOSALS. FAILURE TO COMPLY WITH THIS REQUIREMENT MAY RESULT IN AN OFFEROR'S PROPOSAL NOT BEING PROCESSED PROPERLY AND ULTIMATELY REJECTED AS UNTIMELY IN ACCORDANCE WITH FEDERAL ACQUISITION REGULATIONS ("FAR") CLAUSE 52.212-1(f).

FOR THIS SOLICITATION:

TECHNICAL PROPOSAL DOCUMENT SUBMISSION:

Technical Proposal will be accepted via Email only.

Technical Proposals (documents) WILL NOT be accepted via mail or commercial carrier (UPS, FedEx, DHL etc...) or hand-carried in-person delivery. Technical proposals WILL NOT be accepted via DIBBS.

FOR THIS SOLICITATION:

Email offers for Technical Proposals will be accepted.

Guidance for email offers for Technical Proposals is as follows:

Entire Technical Proposal documents must be returned.

a. This includes entire solicitation document (all pages) with appropriate clauses filled in; Place of Performance (all places of performance) including name and address of location filled out; Qualified Laboratory and Source Sampling Name and address filled out; and Identification of Sources for **All Components** for Clothing/Textile Items filled out.

b. Prices must be filled out for all items and all terms (All Five (5) pricing Tier Terms).

c. Vendor's record of Past Performance must be returned with complete information provided in accordance with Section L of subject solicitation.

Failure to comply with any part of the above requirements will result in offer removed from consideration for award.

Transmit **"email"** offers (if authorized; see "Addendum" to 52.212-1(b)) or offer modifications/withdrawals to: Kalifa Williams at: Kalifa.Williams@dla.mil and Krysta Le at Krysta.Le@dla.mil and Mimi Pham at: Mimi.Pham@dla.mil

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Please send emailed offers to all of the authorized email addresses listed above (on the same email) to ensure that your proposal is received.

Please request a confirmation of receipt of technical proposal documents from the contracting office.

NOTE: Email servers may have a lag time. There may be a lag time between the date/time stamp the offeror submits offer via email versus the date/time stamp that offer is received by the authorized email address. Lag times **WILL NOT** be considered. Any Technical Proposal and any correspondence that is received with a date/time stamp beyond the closing date and time of subject solicitation shall be considered late and shall not be accepted or considered.

Any Technical Proposal and any correspondence that is sent and not received by the contracting office email addresses by the closing date and time, shall not be considered at a later date and time that is beyond the closing date and time.

A vendor's inability to submit an offer caused by failure of a vendor's hardware, software, any firewalls, unauthorized document transmittal, Internet Service Provider, or the World Wide Web itself, is not cause for extension of a solicitation or acceptance of the technical proposal at a date and time beyond the closing date and time.

A vendor's inability to submit an offer caused by failure of a vendor's commercial carrier or USPS mail service, is not cause for extension of a solicitation or acceptance of the PDM at a date and time beyond the closing date and time.

***Receipt of PDM is considered receipt in designated building location, on the military base, with signature.**

NOTE: For this solicitation, DIBBS is NOT an authorized method of submitting an offer.

PRODUCT DEMONSTRATION MODEL SUBMISSION:

Product Demonstration Models are required to be submitted through traceable means via the U.S. Postal Service or a Commercial Carrier (Example: FedEx, Airborne, UPS, DHL, Emery). **In-person delivery of PDMs by offerors is not authorized. The Tracking Number of the PDM package shall be provided as part of the email proposal submission. Include a copy of the physical test report with the PDM submission.**

PDMs are to be delivered between 8:00 a.m. and 3:00 p.m., Monday through Friday, except for legal federal holidays as set forth in 5 USC 6103. Packages must be plainly marked **ON THE OUTSIDE OF THE CARRIER'S PACKAGE** with the solicitation number, date, as set forth for receipt of proposals as indicated in Block 8 of the Standard Form 1449 (Page 1 of Solicitation). Ultimately, it is the offeror's responsibility to ensure that its PDMs are received at the correct location at the correct time. Failure to do so will result in the offeror's proposal being deemed untimely and not considered further for the award per FAR 52.215-1 Instruction to Offerors - Competitive Acquisitions.

***NOTE:** Defense Biometric Identification System (DBIDS) is used at this facility and DBIDS requirements shall be followed by all carriers attempting to deliver a proposal and/or package to this facility. Additional information can be obtained via <https://dbids/dmdc.mil/>. It is the vendor's responsibility to ensure the carrier's driver has DBIDS credentials to make deliveries on the military base.

NOTE: EFFECTIVE 01 OCTOBER 2021 ALL CARRIERS/INDIVIDUALS ATTEMPTING TO DELIVER ANY PACKAGES/PROPOSALS/ETC. TO DLA TROOP SUPPORT SHALL HAVE PRESENT CREDENTIALS THAT MEET REAL ID REQUIREMENTS IN ORDER TO GAIN ACCESS TO MAKE A DELIVERY. NO EXCEPTIONS SHALL BE MADE.

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The time and date for receipt of Product Demonstration Models is 3:00 P.M. Eastern Standard Time, or when applicable, Eastern Daylight Savings Time on the return date. If a Product Demonstration Model is not submitted and received by date and time of the closing, your offer will be considered incomplete.

Product Demonstration Models shall be sent to:

**DLA Troop Support
ATT: Krysta Le
Building 3-A-4422
700 Robbins Avenue
Philadelphia, PA 19111**

NOTE: For an offer to be considered timely, both Product Demonstration Models and Solicitation Package MUST be received by the date and time identified herein. Partial proposals (e.g. PDM only or Solicitation package only) will not be further evaluated and not eligible for award. Offerors are responsible to ensure timely delivery and/or submittal and timely receipt.

A vendor's inability to submit an offer caused by failure of a vendor's commercial carrier or USPS mail service, is not cause for extension of a solicitation or acceptance of the PDM at a date and time beyond the closing date and time. Receipt of PDM is considered receipt in the designated building location, on the military base, with signature.

A vendor's inability to submit an offer caused by failure of a vendor's hardware, software, any firewalls, unauthorized document transmittal, corrupted documents, Internet Service Provider, or the World Wide Web itself, is not cause for extension of a solicitation or acceptance of the technical proposal at a date and time beyond the closing date and time.

If an offeror chooses to submit a response to the solicitation electronically and/or through other allowed means per the solicitation, the later dated version for that offeror will be what the Government will evaluate as your latest offer.

2. Block 9

Address and Submit PDMs to:

**DLA Troop Support
ATT: Krysta Le
Building 3-A-4422
700 Robbins Avenue
Philadelphia, PA 19111**

Solicitation Number: **SPE1C1-26-R-0034**

Opening/Closing Date and Time: **April 3, 2026/ May 4, 2026 @ 3:00 PM, local (Philadelphia) time - Eastern Standard Time (Philadelphia time), or when applicable, Eastern Daylight Savings Time.**

***Make sure the commercial carrier and driver has DBIDS privileges to enter the Military Base.**

Receipt of PDM is considered receipt in the designated building location, on the military base, with signature.

NOTE: Defense Biometric Identification System (DBIDS) is used at this facility and DBIDS requirements shall be followed by all carriers attempting to deliver a proposal and/or package to this facility. Additional information can be obtained via <https://dbids/dmdc.mil/>. It is the vendor's responsibility to ensure the carrier's driver has DBIDS credentials to make deliveries on the military base.

Examples of commercial carriers include: Fed Ex, Airborne, UPS, DHL, Emery, other commercial carrier, USPS Express Mail, and USPS Certified Mail.

NOTE: In-person delivery by contractor-Not accepted. Contracting personnel will not accept hand-carried, in person

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delivery attempts. NO EXCEPTIONS.

NOTE: For this solicitation, DIBBS is NOT an authorized method of submitting an offer.

3. Block 17a

› Offeror's assigned Unique Entity Identifier Number/DUNS Number: _____
(If you do not have a Unique Entity Identifier number, contact the individual identified in Block 7a of the SF 1449 or see 52.212-1, Instructions to Offerors --Commercial Items (paragraph j) for information on establishing a unique entity identifier.)

› Offeror's assigned Contractor and Government Entity (CAGE) Code: _____

4. Block 17b

Remittance Address: (if different from Contractor/Offeror address in block 17a of the SF 1449.)

5. Are you registered in the System for Award Management (SAM.gov)? () YES () NO

CAUTION NOTICE

The Berry Amendment is applicable for this solicitation.

Offerors are cautioned that all components must be of domestic origin in compliance with DFARS clause 252.225-7012, Preference for Certain Domestic Commodities (APR 2022), as contained in this solicitation.

Section 833 of the National Defense Authorization Act for Fiscal Year 2006 added language to 10 U.S.C. 2533a, requiring that all articles or items of "clothing," including the materials and components thereof, purchased by the Department of Defense be grown, reprocessed, reused, or produced in the United States, other than sensor, electronics or other items added to, and not normally associated with, clothing (and the materials and components thereof).

Very Important: The vendor must certify their agreement to these terms by signing the certification located in Section K of this solicitation.

Very Important: Solicitation SPE1C1-26-R-0034 will be issued as a 100% SMALL BUSINESS SET-ASIDE.

The Government intends to make more than one award for the purchase of the item **Socks, Black, Athletic, PGC: 00338; NSN: 8415-01-692-2228(s)**; under this solicitation for different quantities of the same supplies to one or more sources (FAR 16.504 (c) (1)(i). The intent is to have different contractors for each of the separate contracts that will be awarded from this solicitation. This solicitation contains two separate and distinct lots that will result in two separate awards. For the purposes of efficiency, these lots are being combined in one solicitation rather than issuing separate solicitations for each lot. Minimum quantities, estimated quantities and maximum quantities for each lot are contained in Section B of this solicitation. The quantities for Lot 0001 represent 50% of the total annual estimated quantity for PGC: 00338; NSN: 8415-01-692-2228(s); 3 pair banded, and the quantities for Lot 0002 represent 50% of the total annual estimated quantity for PGC: 00338; NSN: 8415-01-692-2228(s); 3 pair banded. It is the intent of the Government to award a contract for each lot based on the evaluation criteria and plan outlined in the solicitation.

However, no offeror will receive an award for both lots unless it is determined that there are no other offers that meet the solicitation requirements for Lot 0002. Lot 0002 would then be dissolved into Lot 0001.

The award for Lot 0001 will be made before the award for Lot 0002. To ensure that multiple sources are available, and to ensure the continuous availability of reliable sources of supply, the offeror who is selected as the best value for Lot 0001 will be eliminated from competition on Lot 0002 based on the authority in FAR 6.202(a)(4). The offeror who is selected for Lot 0001 will withdraw from consideration for Lot 0002.

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Orders will be issued under each separate contract in accordance with the terms and conditions of the contract and without notice to, or consideration of, any other contractor, or consideration of the terms and conditions of any other contract. The fair opportunity provisions of FAR 16.505(b) will not be applicable to orders under the resulting contracts.

BEST VALUE TRADEOFF ACQUISITION WITH ADJECTIVAL RATING PDMS

For this solicitation, PDM and Past Performance will be reviewed. Aspects of Past Performance are Recency, Relevancy and Quality. Included in the Quality sub-factor will be Quality and Delivery Performance. These sub-factors will be combined to arrive at an overall Performance Confidence Assessment. Technical merit and Past Performance are more important than price.

1. Best Value Source Selection Trade-Off Procedures Source Selection procedures will be utilized for this solicitation. "Best Value" evaluation will be employed using the following evaluation factors: Product Demonstration Model (PDM), Past Performance and Price.

All PDMs will be evaluated using adjectival ratings in accordance with the criteria outlined in the solicitation. **There will be no allowable re-submittals for PDM (Product Demonstration Model).**

2. The Government will also review the second evaluation factor: Past Performance. The Government intends to award to the firm who is the best value to the Government with regards to passing PDMs, and acceptable Past Performance and Price. Passing PDMs and Past Performance when combined are more important than cost or price. As other evaluation factors become more equal, the evaluated price becomes more important. From among the firms with Passing PDMs, the Government will then select the responsible firm that complies with terms and conditions of the solicitation, and an award to that firm is considered in the best interest of the Government. If the firm fits these criteria, award will be made to them. If not, the Government will review each subsequent technically acceptable offer until one is identified that does meet the criteria, in which case award will be made to that firm.

NOTE: A rating of Unacceptable for PDM will result in the offer being removed from award consideration and the proposal will not be reviewed any further.

A rating of Marginal for PDM for any place of performance may result in the offer being removed from award consideration and the proposal will not be reviewed any further.

NOTE: The Government reserves the right to evaluate past performance up until award.

3. This solicitation will contain a Two-Phase Technical/Price Evaluation.

The Government anticipates that numerous offerors will submit proposals on this solicitation. In the event that eight or more proposals are received, the Government may use a two-phase evaluation process, which allows the Contracting Officer to conduct a preliminary evaluation of all offers, in order to determine which offers are the least likely to be candidates for further consideration. During this preliminary evaluation, all offerors Product Demonstration Models (PDMs) and proposed prices will be evaluated. Certain offerors may be excluded from further consideration at this point, if their PDM ratings and/or offered prices are not competitive when compared with PDM ratings and prices proposed by other offerors. The remaining offers will then be evaluated for the remaining technical and past performance evaluation factors. After the completion of this review, the contracting officer will determine whether to establish a competitive range and conduct negotiations, or to award without discussions.

4. The Government reserves the right to conduct negotiations with a competitive range group of offerors from among firms with most highly rated offers. If negotiations are conducted, award will be made to the offeror (based on final proposal revision) that is the best value to the Government, has a passing PDM or better, and is determined responsible and compliant with the solicitation terms and conditions based on an "integral assessment of PDM, Past Performance and Price".

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Section B Supplies/Services

Solicitation SPE1C1-26-R-0034 will be issued as a Best Value, Trade Off and Source Selection Procedures will be utilized. Solicitation SPE1C1-26-R-0034 will be issued with the intent to award a 50% portion (Lot 0001); and a 50% portion (Lot 0002), resulting in TWO AWARDS BEING MADE. The Government intends to make TWO (2) awards on this solicitation, based upon an integrated assessment of PDM, Past Performance, and Price resulting in the best value to the Government.

Solicitation SPE1C1-26-R-0034 will be issued as a 100% SMALL BUSINESS SET-ASIDE.
Only small business firms may submit an offer on solicitation SPE1C1-26-R-0034.
The proposed contract will be issued as 100% Small Business Set-Aside, which will result in an Indefinite Delivery/Indefinite Quantity (IDIQ) firm fixed price contract(s) in accordance with FAR Part 12.

The resultant contract(s) will have a Five (5) year ordering period. Within the Five (5) year ordering period, there will be Five (5) 12-month price Tier periods. Failure to provide a unit price for each tier period in the table set forth below shall be deemed as non-acceptance of the solicitation terms and conditions and will result in the REJECTION OF THE OFFEROR'S ENTIRE PROPOSAL.

Refer to Section "L" & "M". Technical and Past Performance proposals are required to be submitted since this is a BEST VALUE SOURCE SELECTION ACQUISITION. Failure to submit a technical and Past Performance proposal will result in rejection of your entire offer.

RFID is required at item, case and pallet as the items are in the Warfighter Recruit Bag. The ship-to destination: Pendergrass Distribution Center, Pendergrass, GA.
Inspection & Acceptance is at DESTINATION

The Government reserves the right to change Inspection and Acceptance to Origin should the Government determine a need, and it is in its best interest.
NOTE: In accordance with FAR 42.202(g); Refusal of delegation of contract administration of Low Value / Low Risk delivery orders below \$300,000.00; and DFARS 246.402-Government Contract Quality at Source; for Low Value / Low Risk delivery orders below \$300,000.00; the Inspection and Acceptance for end lots during contract performance will be at Destination and will not be inspected by a QAR.

The Government intends to make TWO awards for the purchase of the of the **Socks, Black, Athletic, PGC 00338, NSN: 8415-01-692-2228(s)-pair (PR).**

For the period of performance, the quantity limitations for this solicitation and resulting contract(s) are as follows:
Socks, Black, Athletic, PGC 00338, NSN: 8415-01-692-2228(s)- pair (PR).

Total Requirement
Contract Guaranteed Minimum Quantity: 204,000 PR (Pair)
Annual Estimated Quantity (AEQ): 816,000 PR (Pair) per tier term
Contract Maximum Quantity: 5,100,000 PR (Pair) all tiers combined

Lot 0001
Contract Guaranteed Minimum Quantity: 102,000 PR (Pair)

Form (CONTINUED)

Annual Estimated Quantity (AEQ): 408,000 PR (Pair) per tier term
Contract Maximum Quantity: 2,550,000 PR (Pair) all tiers combined

Lot 0002

Contract Guaranteed Minimum Quantity: 102,000 PR (Pair)
Annual Estimated Quantity (AEQ): 408,000 PR (Pair) per tier term
Contract Maximum Quantity: 2,550,000 PR (Pair) all tiers combined

Prices will be evaluated based on the Annual Estimated Ordering Quantity (AEQ) listed in Schedule of Supplies Section of this solicitation. The Annual Estimated Ordering Quantity (AEQ) is 816,000 pair per tier term (408,000 pair per tier term for Lot 0001 and Lot 0002). The AEQ is the monthly demand for the item multiplied by 12 months (68,000 units x 12=816,000 per tier term) (34,000 units x 12=408,000 per tier term for Lot 0001 and Lot 0002).

NOTE: Under the terms of this solicitation, the Government guarantees to award the minimum quantity of 204,000 pair (102,000 pair for Lot 0001 and Lot 0002) for the life of the contract.

Acceleration of delivery is not authorized unless permitted in writing by the Contracting Officer on a delivery order basis via a modification.

The unit prices are required to be based on FOB Destination. Inspection and Acceptance is at Destination. See Section F for a sample delivery order.

The Government reserves the right to change Inspection and Acceptance to Origin should the Government determine a need, and it is in its best interest.

NOTE: In accordance with FAR 42.202(g); Refusal of delegation of contract administration of Low Value / Low Risk delivery orders below \$300,000.00; and DFARS 246.402-Government Contract Quality at Source; for Low Value / Low Risk delivery orders below \$300,000.00; the Inspection and Acceptance for end lots during contract performance will be at Destination and will not be inspected by a QAR.

First Article submission is hereby waived.

The Government reserves the right to require pre-production samples. The Government reserve the right to require First lot samples should the Government determine a need.

The production lead-time for the first delivery order will be 90 days. The subsequent delivery orders will have a production lead time of 90 days.

***Sampling: Pre-production samples shall be submitted for shade evaluation. DLA Troop Support reserves the right to perform testing on an as needed basis for shade and physical requirements.**

***DLA Troop Support reserves the right to request that the contractor perform testing on an as needed basis for physical requirements and shade requirements.**

NOTE: For Inspection and Acceptance at Origin: Once the contract has been awarded, the contractor will be required to contact the Contracting Officer in writing 10 days before the first lot is ready for presentation for inspection at the manufacturing facility.

Offers will be evaluated based on the Evaluative Quantity, which is based on the annual estimated ordering quantity. The Government reserves the right to make an award on initial offers received; therefore, your best offer should be submitted. Offerors are required to offer a unit price for the specified items for all five (5) pricing tiers. **Offers that do not include**

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acceptance of the tier pricing structure or do not contain offer pricing on all tier terms will not be considered.

***By submitting prices for this solicitation, you are indicating capacity to supply the maximum quantity for the item.**

*** By submitting prices for this solicitation, the offeror is indicating the prices submitted can be sustained for the sixty (60) months (all five (5) tiers) of the contract.**

NOTE: The delivery schedule, quantities, and sizes will be set forth in individual orders. The quantity at time of award will be determined by using the current demand.

***The Government reserves the right to perform conversions under the resultant contract(s), should the Government determine a need.**

****THREE (3) PR PDMs** are required for the SOCKS, BLACK, ATHLETIC in SIZE MEDIUM. SIZE MUST BE INDICATED ON THE LABEL PDMs must be submitted for every intended place of performance, including all proposed subcontractors. PDMS will be evaluated for visual, manufacturing and dimensional requirements.

Evaluation of the PDMs will effectively indicate the contractor's ability to manufacture the items in accordance with the Government's quality standards. First Article provisions will not be included in this acquisition due to the PDM requirement.

Please see text under title, Instructions for Submitting Product Demonstration Models (PDM) To DLA Troop Support in sections L and M of this solicitation. CAUTION: The PDMs may only be furnished with the offeror's proposal at the time and date of the initial closing of the solicitation. Subsequent submissions will not be permitted, even if deficiencies exist in the submitted PDMs. Therefore, the offeror must furnish its best effort with their proposal. Correction of the PDMs will not be accepted by the Government.

Failure to submit the required PDMs will result in rejection of your entire offer.

***Very Important:* For this solicitation, alternate materials will NOT be allowed. In order to insure that the contractor is able to manufacture the item, the specified materials outlined in the Purchase Description GL-PD-20-07, dated October 28, 2020, must be used.**

NOTE: Three (3) pair PDMs for each item are required for manufacturing, visual, and dimensional requirements. Shade of the basic material will not be evaluated for PDM evaluation.

Models will be tested or evaluated to determine compliance with all characteristics specified for such test or evaluation as referenced in FAR 15.3. Failure of models to conform to all such characteristics shall result in the rejection of the entire offer. Failure to furnish models by the time and date specified in the solicitation shall be cause for rejection of the entire offer if not otherwise acceptable under the provisions for considering late offers.

Please see Instructions for Submitting Product Demonstration Models, in section L and M of this solicitation.

CAUTION: The PDMs may only be furnished with the offeror's proposal at the time and date of the initial closing of the solicitation. Subsequent submissions will not be permitted, even if deficiencies exist in the submitted PDM's. Therefore, the offeror must furnish its best effort with their proposal. Correction of the PDMs will not be accepted by the Government.

NOTE: Socks, Black, Athletic DO NOT HAVE PATTERNS.

DLA Troop Support has developed a web-based system that allows manufacturers the ability to request specifications, PATTERNS and drawings on our contracting page. **To request technical data for DLA Troop Support Clothing and Textiles (DLA C&T) solicitations, use the following link to the DLA C&T Technical Data Repository area at <http://www.dla.mil/TroopSupport/ClothingandTextiles/SpecRequest.aspx>.**

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****NOTE: Commercial Items do not have patterns. The items in this solicitation are considered commercial items and DO NOT have samples, patterns or artwork for logos (should logos apply).**

Section B Supplies/Services**TOTAL QUANTITY**

ITEM: Socks, Black, Athletic, PGC 00338; NSN: 8415-01-692-2228(s) PR (pair).

RFID is required at item, case and pallet as the items are in the Army Warfighter Recruit Bag

Total Requirement

Term	Minimum Quantity	Annual Estimated Quantity (AEQ)	Maximum Quantity
Tier 1	204,000 PR	816,000 PR	5,100,000 PR
Tier 2		816,000 PR	
Tier 3		816,000 PR	
Tier 4		816,000 PR	
Tier 5		816,000 PR	
TOTAL		4,080,000 PR	

Unit of issue is pair.

50% Portion Award – Lot 0001

ITEM: Socks, Black, Athletic, PGC 00338; NSN: 8415-01-692-2228(s) PR (pair).

Lot 0001 Requirement

Term	Minimum Quantity	Annual Estimated Quantity (AEQ)	Maximum Quantity
Tier 1	102,000 PR	408,000 PR	2,550,000 PR
Tier 2		408,000 PR	
Tier 3		408,000 PR	
Tier 4		408,000 PR	
Tier 5		408,000 PR	
TOTAL		2,040,000 PR	

Unit of issue is pair.

50% Portion Award – Lot 0002

ITEM: Socks, Black, Athletic, PGC 00338; NSN: 8415-01-692-2228(s) PR (pair).

Lot 0002 Requirement

Term	Minimum Quantity	Annual Estimated Quantity (AEQ)	Maximum Quantity
Tier 1	102,000 PR	408,000 PR	2,550,000 PR
Tier 2		408,000 PR	
Tier 3		408,000 PR	
Tier 4		408,000 PR	
Tier 5		408,000 PR	
TOTAL		2,040,000 PR	

Unit of issue is pair.

The Guaranteed Minimum unit quantity, Annual Estimated Quantity (AEQ), Maximum unit quantity and Guaranteed

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Minimum dollar value for this acquisition are established and calculated as follows:

The Guaranteed Minimum quantity is calculated as 25% of the Annual Estimated Ordering Quantity (AEQ) for subject acquisition for each tier term of the contract which includes five (5) 12-month pricing tiers. The AEQ for subject acquisition is the monthly demand for the item multiplied by 12 months (68,000 units (PR) x 12=816,000 PR) (34,000 units (PR) x 12=408,000 PR for Lot 0001 and Lot 0002). The Guaranteed Minimum Quantity for the contract is 25% of the AEQ or 816,000 units (PR) x 0.25= 204,000 PR, which is a 3-month ordering supply (408,000 units (PR) x 0.25=102,000 PR, which is a 3-month ordering supply for Lot 0001 and Lot 0002). The Maximum Quantity for the contract (all 5 tiers combined) is 125% of the AEQ or 816,000 units x1.25=1,020,000 PR per tier or 1,020,000 x 5 tiers=5,100,000 units (PR) (408,000 units x 1.25=510,000 PR per tier or 510,000 x 5=2,550,000 units (PR) for Lot 0001 and Lot 0002). The Guaranteed Minimum Quantity of 204,000 PR (pair) (102,000 PR (pair) for Lot 0001 and Lot 0002) can be met by any combination of items during the life of the resultant contract. Quantities for each item are determined by demand for that item and size of the Service using the item.

Form (CONTINUED)**Pricing****Socks, Black, Athletic, PGC 00338, NSN: 8415-01-692-2228(s) PR (pair) – 50% Portion – Lot 0001**

Term	Evaluation Quantity	Unit Price* Per Pair	Total \$ Amount (based on Evaluation Qty)
Tier 1	408,000 PR	\$	\$
Tier 2	408,000 PR	\$	\$
Tier 3	408,000 PR	\$	\$
Tier 4	408,000 PR	\$	\$
Tier 5	408,000 PR	\$	\$
TOTAL	2,040,000 PR		\$

Unit of issue is pair.

Socks, Black, Athletic, PGC 00338, NSN: 8415-01-692-2228(s) PR (pair) – 50% Portion – Lot 0002

Term	Evaluation Quantity	Unit Price* Per Pair	Total \$ Amount (based on Evaluation Qty)
Tier 1	408,000 PR	\$	\$
Tier 2	408,000 PR	\$	\$
Tier 3	408,000 PR	\$	\$
Tier 4	408,000 PR	\$	\$
Tier 5	408,000 PR	\$	\$
TOTAL	2,040,000 PR		\$

Unit of issue is pair.

Price will be evaluated at the evaluation quantity

ALL PRICES ARE TO BE BASED ON FOB DESTINATION ONLY. The successful awardee is responsible for all transportation costs.

The evaluative quantity below is based on the AEQ for each item for each tier term. Please submit unit price per pair.

The Annual Estimated Ordering Quantity (AEQ) is 816,000 pair per tier term for the acquisition (408,000 pair per tier term for Lot 0001 and Lot 0002). The AEQ refers to the annual estimated ordering quantity limitation in FAR 52.216-19. The overall contract maximum is 5,100,000 pair for all tiers combined for the acquisition (2,550,000 pair for all tier combined for Lot 0001 and Lot 0002).

NOTE: Under the terms of this solicitation, the Government guarantees to award the minimum quantity of 204,000 pair (102,000 pair for Lot 0001 and Lot 0002) for the life of the contract.

GUARANTEED MINIMUM

Notes Regarding Guaranteed Minimum Dollar Value, Guaranteed Minimum Quantity, submission of Unit Prices and Delivery Terms

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Each Price Tier Period represents a 12-month period.

The Government is only bound to order the Contract Guaranteed Minimum Quantity of 204,000 pair (102,000 pair for Lot 0001 and Lot 0002) for the life of the contract.

However, in fulfilling the guaranteed minimum quantity, the total dollar value expended by the Government shall not exceed the dollar value of the guaranteed minimum quantity procured at the lowest unit price established under the contract for an item or items if each item has an established contract minimum quantity and is hereafter referred to as the “guaranteed minimum dollar value.” The Government will be considered to have fulfilled its obligation to order the guaranteed minimum quantity when the guaranteed minimum dollar value has been met.

The Guaranteed Minimum dollar value is the final agreed lowest unit price between the Government and the contractor for the item or items if each item has an established contract minimum quantity, multiplied by the Guaranteed Minimum Quantity for the contract.

The AEQ refers to the Government's good faith estimate of the requirements during a specified contract price tier period. The AEQ does not obligate the Government to order a specific quantity. It is provided for information purposes only.

The **Maximum Contract Quantity** reflects the sum of 125% of the AEQ for each price tier period (a total of 5 tiers). The Government reserves the right to place orders up to the Maximum Contract Quantity, but not to exceed the order limitation of FAR clause 52.216-19. The Government is not obligated to order the **Contract Maximum Quantity**; however, the Government has the legal right to order up to this quantity prior to the final expiration of the resultant contract. The Government is only required to order the Contract Guaranteed Minimum Quantity listed above for an item or items if each item has an established contract minimum quantity.

NSNs/UPC codes

Socks, Black, Athletic	PGC: 00338	
UPC	NSN	SIZE
718020888279	8415-01-692-2228	S
718020946610	8415-01-692-2233	M
718020622071	8415-01-692-2232	L
718020658766	8415-01-692-2231	XL

SEE SECTION F FOR ESTIMATED FIRST DELIVERY ORDER.

THIS ACQUISITION WILL RESULT IN AN INDEFINITE QUANTITY TYPE CONTRACT WITH A FIVE (5) YEAR ORDERING PERIOD. WITHIN THE FIVE (5) YEAR ORDERING PERIOD, THERE WILL BE FIVE (5) 12-MONTH PRICE TIER TERMS.

THE ANNUAL ESTIMATED QUANTITY (AEQ) IS FOR EACH 12 MONTH TIER

ANNUAL ESTIMATED QUANTITY (AEQ) FOR EACH TIER TERM IS 816,000 PR (pair) (408,000 PR (pair) for Lot 0001 and 408,000 PR (pair) for Lot 0002).

THE GOVERNMENT IS NOT BOUND TO ORDER MORE THAN THE MINIMUM CONTRACT QUANTITY INDICATED ABOVE. DELIVERY ORDERS WILL BE PLACED VIA DD FORM 1155.

ALL PRICES ARE TO BE BASED ON FOB DESTINATION ONLY.
FIRST ARTICLE SUBMISSION IS HEREBY WAIVED.

THE GOVERNMENT RESERVES THE RIGHT TO REQUEST PRODUCTION SAMPLES.

DELIVERY ORDERS MAY REQUIRE CONCURRENT DELIVERIES; HOWEVER, THE

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GOVERNMENT WILL NOT REQUIRE THE DELIVERY OF MORE THAN **113,500 PR (pair)**
IN ANY GIVEN THIRTY DAY PERIOD

[X] EFFECTIVE PERIOD - INDEFINITE DELIVERY CONTRACT
THE EFFECTIVE PERIOD OF THIS CONTRACT IS FROM THE DATE OF AWARD
THROUGH FINAL SCHEDULED DELIVERY DATE.
PALLETIZATION IS REQUIRED FOR THESE SUPPLIES

Price Sustainability

As part of the United States Defense Industrial Base, offerors are strongly encouraged to develop pricing that adequately accounts for market risk and volatility, includes sufficient margins to withstand future unforeseen contingencies, and allows for long term viability. Offerors are advised to refrain from submitting any offers or bids with the anticipation that in the event costs increase that there may be a price adjustment and/or cancellation of the contract. Offerors are reminded that the awardee is expected to, and will be contractually bound to, perform at the final pricing submitted for the duration of the contract performance period(s) established in this solicitation. The successful performance of your contract is critical to the continued support of our nation's warfighters.

Inspection and Acceptance are at DESTINATION.
FOB: Destination

Quality Systems Requirements: DLA Troop Support Clothing and Textiles Additional Quality Assurance Requirements, dated October 2018 and updated August 2021, (formerly DSCP M 4155.3, Quality Systems Requirements (Nov 1997)), as well as Identification of Qualified Laboratory and Source Sampling are incorporated into subject solicitation. The revised document incorporates major changes to the previous revision. Please read it in its entirety. Copies of this document can be found on the web at:

- (1) <http://www.dla.mil/TroopSupport/ClothingandTextiles/CTIndustry/> (Under C&T Additional Quality Assurance Requirements)
- (2) <http://www.dla.mil/Portals/104/Documents/TroopSupport/QA%20Req.pdf?ver=2018-11-16-132731-770>

NOTICE TO DLA SUPPLIERS

OFFEROR REPRESENTATION AND CERTIFICATION

52.212-3 Offeror Representations and Certifications -- Commercial Items

As prescribed in [12.301\(b\)\(2\)](#), insert the following provision:

Offeror Representations and Certifications -- Commercial Items (MAY 2024)

The offeror shall complete only paragraphs (b) of this provision if the Offeror has completed the annual representations and certification electronically via the System for Award Management (SAM) Web site located at <http://www.sam.gov/portal>. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (u) of this provision.

After reviewing the System for Award Management (SAM) Web database information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically have been entered or updated within the last 12 months, are current, accurate, complete and applicable to this solicitation, unless otherwise noted in FAR 52.212-03

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Please note that the Patient Protection and Affordable Health Care Act ("the Act"), 124 Stat. 119, imposes duties upon employers concerning the provision of health care to their employees. Health insurance costs, including any costs associated with compliance with changes in the applicable law, are the sole responsibility of the offeror. Offerors are advised that their proposals should include any costs associated with the implementation of the Act. Any changes in health coverage costs and/or costs associated with compliance, occurring after award of a contract pursuant to this solicitation will not form the basis for an equitable adjustment of the contract price.

Section C

TECH DATA PGC00338 April 7, 2021
NSN 8415016922233

SOCKS, ATHLETIC
RP001: DLA PACKAGING REQUIREMENTS FOR PROCUREMENT

RA001: THIS DOCUMENT INCORPORATES TECHNICAL AND/OR QUALITY REQUIREMENTS (IDENTIFIED BY AN 'R' OR AN 'I' NUMBER) SET FORTH IN FULL TEXT IN THE DLA MASTER LIST OF TECHNICAL AND QUALITY REQUIREMENTS FOUND ON THE WEB AT:

<http://www.dla.mil/HQ/Acquisition/Offers/eProcurement.aspx>

FOR SIMPLIFIED ACQUISITIONS, THE REVISION OF THE MASTER IN EFFECT ON THE SOLICITATION ISSUE DATE OR THE AWARD DATE CONTROLS. FOR LARGE ACQUISITIONS, THE REVISION OF THE MASTER IN EFFECT ON THE RFP ISSUE DATE APPLIES UNLESS A SOLICITATION AMENDMENT INCORPORATES A FOLLOW-ON REVISION, IN WHICH CASE THE AMENDMENT DATE CONTROLS.

SOCKS, ATHLETIC, CLASS 2 BLACK
GL-PD 20-07 DATED OCTOBER 28 2020

MIL-STD-129R w/CHANGE 2 - DEPARTMENT OF DEFENSE STANDARD PRACTICE MILITARY MARKING FOR SHIPMENT AND STORAGE
DATED: 27 SEPTEMBER 2019

INTERIM CHANGES:
OMISSION OF MARKINGS ON EXTERIOR SHIPPING CONTAINERS OF ITEMS
IN THE DLA TROOP SUPPORT CLOTHING AND TEXTILE (C&T) DIRECTORATE:

THE NOMENCLATURE AND MANUFACTURER'S NAME (WHEN THE NAME IDENTIFIES THE MATERIAL) SHALL BE OMITTED FROM ALL EXTERIOR SHIPPING CONTAINERS OF DLA TROOP SUPPORT C&T ITEMS, REGARDLESS OF MODE OF SHIPMENT.

IF THE MANUFACTURER'S NAME DOES NOT IDENTIFY THE MATERIAL AS BEING CLOTHING, IT MAY REMAIN. NSNS SHALL BE SHOWN ON ALL SHIPPING CONTAINERS OF C&T ITEMS, THE PACKING LIST SHALL BE PLACED INSIDE THE LAST CONTAINER TO BE LOADED FOR EACH SHIPMENT. THE WORDS "PACKING LIST HERE" SHALL BE STENCILED, NOT HAND LETTERED, ON THE CONTAINER.

MIL-STD-147E w/CHANGE 2

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Form (CONTINUED)

27 JUNE 2019

DEPARTMENT OF DEFENSE
STANDARD PRACTICE
PALLETIZED UNIT LOADS
THE GOVERNMENT ASSIGNED UNIVERSAL PRODUCT
CODE (UPC) MUST BE PLACED ON ALL SHIPPING
CARTONS ON WHICH THE NSN APPEARS".
DELETE CURRENT "BARCODE LABEL/TAG" REQUIREMENTS AND SUBSTITUTE THE FOLLOWING:

LABEL TAG: EACH ITEM SHALL BE INDIVIDUALLY BAR-CODED WITH A PAPER TAG FOR PERSONAL CLOTHING ITEMS. THE PAPER USED FOR THE TAGS SHALL BE STANDARD BLEACHED SULFATE HAVING A BASIS WEIGHT OF 100 POUNDS WITH A SMOOTH FINISH TO ACCEPT THERMAL TRANSFER AND DIRECT PRINTING. THE TAGS SHALL HAVE A HOLE AND SHALL BE ATTACHED TO EACH ITEM BY A FASTENER, CLEARLY LEGIBLE AND READABLE BY SCANNER. THE BAR CODING ELEMENT SHALL BE A 13 DIGIT NATIONAL STOCK NUMBER (NSN). THERE SHALL BE A 12 DIGIT UNIVERSAL PRODUCT CODE (UPC) ASSIGNED FOR ALL NSNS BY THE GOVERNMENT. THE INITIAL "UPC" MUST APPEAR BENEATH THE CODE. THE BAR CODES FOR NSN AND UPC SHALL BE A MEDIUM TO HIGH DENSITY AND SHALL BE LOCATED SO THAT THEY ARE COMPLETELY VISIBLE ON THE ITEM WHEN IT IS FOLDED AND PACKAGED AS SPECIFIED. THE LABEL'S LOCATION SHALL CAUSE NO DAMAGE TO THE ITEM.

NOTE: UNIVERSAL PRODUCT CODE INFORMATION THE GOVERNMENT ASSIGNED UNIVERSAL PRODUCT CODE (UPC) MUST BE PLACED ON ALL SHIPPING CARTONS ON WHICH THE NSN APPEARS.

THE FOLLOWING DEFECTS APPLY FOR BARCODE LABELS/TAGS:

BAR CODE OMITTED OR NOT READABLE BY SCANNER

HUMAN-READABLE INTERPRETATION (HRI) OMITTED OR ILLEGIBLE

NOT VISIBLE ON FOLDED, PACKAGED ITEM CAUSES DAMAGE TO THE ITEM

NOTE: IF THE END ITEM IS PLACED IN A PLASTIC BAG - USE TYPE VII (PRESSURE SENSITIVE LABEL) OF MIL-DTL-32075.

PRES/PACK C/C TO ASTM-D-3951
3 PAIR SOCKS PER PACK
SHIPPING CONTAINER:48 PACKAGES
MARKING SHALL BE IN ACCORDANCE
WITH MIL-STD-129.
MARKING SHALL BE IN ACCORDANCE WITH
MIL-STD-129
RFID HANGTAG:

An RFID inlay shall be added to the barcode paper hang tag attached to each item. Where the use of self-adhesive bar-code labels are authorized, the RFID inlay may be added to the self-adhesive label in lieu of a paper hang tag. All other contract barcode and hang tag requirements still apply.

The RFID inlay should be passive Gen2 with a frequency range between 860 and 960 MHz. The RFID antenna should be Avery/Dennis AD222 or comparable with ISO/IEC 18000-C EPCglobal C1G2 Protocol and an EPC memory allocation containing a 96 bit EPC Number. The data

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Form (CONTINUED)

linking the EPC number to the NSN and quantity unit pack must be exportable to VIM/ASAP. The bar code of the EPC Number must be printed at the bottom of the tag along with the human readable version below the bar code.

In addition to defects applicable to the paper tag and barcoding element, the RFID tag shall be examined for the defects listed below:

RFID Inlay omitted
 RFID Inlay not secure
 RFID Inlay not laying flat when packaged
 RFID Inlay not readable with RFID scanner
 RFID Inlay or configuration not as specified

The manual "Item-Level Passive RFID Technology Manufacturer's Information Guide" provides guidance on RFID implementation and is available from the contracting officer.

252.211-7006 - RADIO FREQUENCY IDENTIFICATION (RFID) Required
 (ref. T8379; Nov. 08, 2006)

SIGNIFICANT NOTE - "PALLETIZATION IS REQUIRED FOR THESE SUPPLIES".

NOTE: THE FOLLOWING APPLIES TO ALL NON-MANUFACTURED WOOD PACKAGING MATERIALS:

"All Wood Packaging Material (WPM) acquired by DOD must meet requirements of International Standards for Phytosanitary Measures (ISPM) 15, "Guidelines for Regulating Wood Packaging Materials in International Trade." DOD shipments inside and outside of the United States must meet ISPM 15 whenever WPM is used to ship DOD cargo, or when wood is being acquired by DLA for future use as packaging material. WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frame and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process, such as corrugated fiberboard, plywood, particleboard, veneer, and oriented strand board (OSD). All WPM shall comply with one of the following official quality control programs:

Heat Treatment (HT) or Kiln Dried Heat Treatment (KD HT) in accordance with American Lumber Standard Committee, Incorporated (ALSC) Wood Packaging Material Program and WPM Enforcement Regulations (see <http://www.alsc.org/>; or

All WPM shall include certification/quality markings in accordance with the ALSC or NWPCA standards, as applicable. Markings shall be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides of the pallet and be contrasting and clearly visible. All containers shall be marked on a side other than the top or bottom, contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ASLC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry. The Agency reserves the right to recoup from the Contractor any remediation costs incurred by the Government."

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Form (CONTINUED)

PALLET SHALL BE 4 WAY ENTRY, WINGED TYPE. PALLETIZED LOAD DIMENSIONS SHALL NOT EXCEED 43 INCHES IN LENGTH, 52 INCHES IN WIDTH, AND 54 INCHES IN HEIGHT (INCLUDING THE PALLET).

THE PALLETIZED LOAD SHALL BE BONDED USING APPROVED COMMERCIAL BONDING MATERIALS. THE USE OF METAL BANDING, IN SECURING BOXES TO PALLETS, IS DISCOURAGED. PALLET LOADS SHALL CONTAIN THE SAME NUMBER OF CARTONS, OF IDENTICAL QUANTITIES, OF ONE NSN, TO THE MAXIMUM EXTENT POSSIBLE.

PALLET LOADS CONTAINING MORE THAN ONE NSN SHALL BE CLEARLY MARKED TO LIST ALL THE NSN'S CONTAINED IN THE LOAD. NO CARTON SHALL HAVE MORE THAN ONE NSN. AT THE END OF A SIZE RUN, NO MORE THAN ONE CARTON PER NSN MAY BE SHORT OR OVER THE SPECIFIED QUANTITY. SAID CARTON SHALL BE CLEARLY MARKED "SHORT" OR "OVER".

MIL-STD-147 IS REFERENCED FOR PALLETIZED LOADS.

IN ADDITION TO REQUIREMENTS SPECIFIED ABOVE THE FOLLOWING CLAUSE ALSO APPLIES:
52.247-9012 - REQUIREMENTS FOR TREATMENT OF WOOD PACKAGING MATERIALS (WPM) - (JULY 2006)

TGI DATA:

INCLUDE T0043 OBJECT TEXT ID ST

52.246-2, Inspection of Supplies - Firm-Fixed Price

52.209-4, Alt. I, First Article Approval - Government Testing

INCLUDE T0029 OBJECT TEXT ID ST

INSPECTION AND ACCEPTANCE AT DESTINATION.

INCLUDE T6855 OBJECT TEXT ID ST

52.246-15 CERTIFICATE OF CONFORMANCE

ADDITIONAL INFORMATION FOR COMMERCIAL AQL'S:

AQL'S FOR COMMERCIAL ITEM DESCRIPTIONS (CID'S):

VISUAL - GENERAL INSPECTION LEVEL II, AQL - 1.0

DIMENSIONAL - SPECIAL INSPECTION LEVEL S-2, AQL - 2.5

ACCEPTABILITY OF LOTS WILL BE DETERMINED BY THE USE
OF "SAMPLING PROCEDURES AND TABLES FOR INSPECTION BY ATTRIBUTES", ANSI/ASQC Z1.4

Section F

Delivery schedule, quantities, and sizes will be set forth in individual orders.

Production lead time under the first delivery order will be 90 days. All subsequent delivery orders will have a lead time of 90 days. All deliveries will be FOB Destination.

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Form (CONTINUED)

Below is an Estimate only of the first delivery order for each lot:

Socks, Black, Athletic-- PGC: 00338 – 50% Portion – Lot 0001

NSN	Size	Total Qty. PR (pair)	90 days Pair	120 days Pair	150 days Pair
8415-01-692-2228	S	19,044	6,348	6,348	6,348
8415-01-692-2233	M	100,332	33,444	33,444	33,444
8415-01-692-2232	L	76,032	25,344	25,344	25,344
8415-01-692-2231	XL	10,809	3,603	3,603	3,603
TOTALS:		206,217 pair	68,739	68,739	68,739

Socks, Black, Athletic-- PGC: 00338 – 50% Portion – Lot 0002

NSN	Size	Total Qty. PR (pair)	90 days Pair	120 days Pair	150 days Pair
8415-01-692-2228	S	19,044	6,348	6,348	6,348
8415-01-692-2233	M	100,332	33,444	33,444	33,444
8415-01-692-2232	L	76,032	25,344	25,344	25,344
8415-01-692-2231	XL	10,809	3,603	3,603	3,603
TOTALS:		206,217 pair	68,739	68,739	68,739

Acceleration of Deliveries is permitted at no additional cost to the Government only if authorized by PCO.
Concurrent deliveries may be required however the vendor will not be required to provide more than 113,500 PR (pair) per month.

Pendergrass (SC0150 - VSTQ)
Pendergrass Distribution Center
LVI - Army 3PL
596 Bonnie Valentine Way - Door 20-23
Pendergrass, GA 30567

Section K

Section 833 -- National Defense Authorization Act Certification

I, (name) _____ do hereby certify by signature below that all articles or items of "clothing", including the materials and components thereof, being offered for sale to the Department of Defense have been grown, reprocessed, reused, or produced in the United States, other than sensor, electronics or other items added to, and not normally associated with, clothing (and the materials and components thereof). (signature) _____.

Section L

INSTRUCTIONS FOR PREPARING PROPOSALS DLA TROOP SUPPORT

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Form (CONTINUED)

(a) Proposal Organization

(1) A proposal shall be prepared in two separate volumes and provided in the quantities shown below. Proposals that do not provide the required information in the prescribed format may be excluded from further consideration.

Volume	Volume Title	No of Copies	Suggested Page Limit
I	Technical Proposal	1 emailed copy	N/A
II	Business Proposal (if required)	NOT REQUIRED	NONE

(2) During proposal evaluation, each volume will be reviewed separately. All cost/price data/information, if required, must be in Volume II. No reference to cost/price data/information shall be included in the technical proposal. Each volume shall be separately bound (stapled is acceptable) to facilitate evaluation.

NOTE: ONLY VOLUME I (TECHNICAL) IS REQUIRED. VOLUME II BUSINESS PROPOSAL, IS NOT REQUIRED WITH INITIAL OFFER.

Although offeror submission of a Business Proposal is not required with initial offer, offered prices must be annotated in Section B (Supplies/Services) of this solicitation.

(b) Volume I, Technical Proposal (see Attachment I to this solicitation)

(1) The Technical portion must demonstrate the offeror's ability to meet the Government's requirements as set forth in this solicitation. To be considered acceptable, the offeror's technical proposal must provide, as a minimum, the information requested in Section L. Failure to provide the information requested by any of the technical evaluation factors identified in Section L may be considered a "no response" and a rating of "unacceptable" given to the applicable factor, sub-factor, element or sub-element. Offerors are advised to indicate, when appropriate, that they have no relevant past performance.

(2) You are required to prepare and submit your proposal aligned with the technical factors specified in Section M of this solicitation to facilitate government review and evaluation. Continuation sheets shall clearly identify the solicitation number and your firm's name on each page.

(c) Volume II, Business Proposal (see Attachment II to this solicitation, if a Business Proposal is required (see paragraph (a)(2) above)).

(1) If this solicitation contains FAR 52.215-20, the offeror is required to furnish cost or pricing data or information other than cost or pricing data in the format specified in the clause or its Alternates.

(2) The Government may require the submission of a Business Proposal during discussions, even if one was not requested with initial offers.

(End of Provision)

ATTACHMENT I - EVALUATION FACTORS PLAN

SECTION L

TECHNICAL AND PAST PERFORMANCE EVALUATION FACTORS

(To be addressed in Volume I of the offeror's proposal in accordance with DLA Troop Support solicitation provision, *Instructions for Preparing Proposals*)

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(1) Product Demonstration Model(s) (First Evaluation Factor)

INSTRUCTIONS FOR SUBMITTING PRODUCT DEMONSTRATION MODELS (PDM) TO DLA TROOP SUPPORT

(a) The offeror shall submit Product Demonstration Models (PDM), as specified below, as part of its proposal. Models will be submitted at no expense to the Government and must be received prior to the time and date set forth for closing of offers. PDMs will be returned at the offeror's request and expense so long as the PDM(s) is(are) not destroyed by testing, retained by the Government as a manufacturing standard, and/or unless otherwise specified by the solicitation. PDMs will become Government property unless return is requested within 30 days after date of award. **PDMs are required for each Place of Performance submitted under this Request for Proposal. Failure to submit the required PDM(s) will result in your offer being rejected from consideration for award.**

Item: SOCKS, BLACK, ATHLETIC

No. of Units Required: 3 PAIR

Size: MEDIUM (All PDMS submitted MUST BE SIZE MEDIUM and SIZE MUST BE INDICATED ON THE LABEL ON THE PDM.

Please Note: Three (3) pair Samples in Size Medium shall be submitted visual, manufacturing, and dimensional requirement.

*NOTE: THREE (3) pair (PR) PDMs must be submitted for every intended place of performance, including all proposed subcontractors.

For this solicitation, alternate materials will NOT be allowed. In order to insure that the contractor is able to manufacture the item, the specified materials outlined in the Purchase Description GL-PD-20-07, dated October 28, 2020, must be used.

Evaluation of the PDMs will effectively indicate the contractor's comprehension of the item's technical requirements and their ability to manufacture the items in accordance with the Purchase Description.

(b) Models will be tested or evaluated to determine compliance with all characteristics specified for such test or evaluation as referenced in Federal Acquisition Regulation (FAR) Subpart 15.3. Failure of models to conform to all such characteristics may result in the rejection of the entire offer. Failure to furnish models and required test reports by the time and date specified in the solicitation may be cause for rejection of the entire offer if not otherwise acceptable under the provisions for considering late offers.

NOTE: A rating of Unacceptable for PDM will result in the offer being removed from award consideration and the proposal will not be reviewed any further.

A rating of Marginal for PDM for any place of performance may result in the offer being removed from award consideration and the proposal will not be reviewed any further.

The following applies only when checked as paragraph (c):

[] If the PDM will be used as a manufacturing standard, for the successful offeror(s), the Government will return one approved Product Demonstration Model (PDM) which will serve as a manufacturing standard. Products delivered under any resulting contract shall conform to the approved model as to the characteristics listed for test or evaluation and shall conform to the specification/commercial product description characteristics.

* **NOTE:** THREE (3) pair (PR) PDM for the Socks, Black, Athletic must be submitted for every intended place

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Form (CONTINUED)

of performance, including all proposed subcontractors.

[] It is preferred that the materials used to manufacture the PDM(s) be in accordance with any specifications defined in Section C of this solicitation. However, if the offeror uses alternate materials to manufacture the PDM(s) a letter must be supplied with them stating (i) which materials depart from the end item specification and (ii) that, although the materials used in producing the PDM(s) differ from those specified, the materials required by the specification will be utilized under any resultant contract.

Evaluation of the PDMs will effectively indicate the contractor's comprehension of the item's technical requirements and their ability to manufacture the items in accordance with the Purchase Description. **Therefore, for this solicitation, alternate materials will NOT be permitted.** To ensure that the contractor can manufacture the item, the specified materials outlined in **Purchase Description GL-PD-20-07, dated October 28, 2020**, must be used.

The offeror is not permitted to utilize alternate manufacturing operations or change the construction/design of the PDM. The PDM must be manufactured (i) at the same facility as the production quantity and (ii) must be in accordance with applicable specifications, including the placement of the labels, unless otherwise identified. However, labels need not be printed for the purpose of the PDM but there must be an indication as to the size of the PDM, when applicable."

(End of Text)

*****PLEASE NOTE THAT THREE (3) PR PDMs SOCKS, BLACK, ATHLETIC, ARE REQUIRED FOR EACH PROPOSED PLACE OF PERFORMANCE. IF YOU INTEND TO SUBCONTRACT A PORTION OF THE REQUIREMENT, PDM'S MUST BE SUBMITTED FROM THE PROPOSED SUBCONTRACTORS PLACE OF PERFORMANCE***.**

NOTE: PDM(s) MAY ONLY BE FURNISHED WITH THE OFFEROR'S PROPOSAL AT THE TIME AND DATE OF THE INITIAL CLOSING OF THE SOLICITATION. SUBSEQUENT SUBMISSIONS WILL NOT BE PERMITTED, EVEN IF DEFICIENCIES EXIST IN THE PDM(s) SUBMITTED; THEREFORE, THE OFFEROR MUST FURNISH ITS BEST EFFORT AT THIS TIME. CORRECTIONS OF THE PDM WILL NOT BE ACCEPTED BY THE GOVERNMENT.

(2) Past Performance - Performance Confidence Assessment (Second Evaluation Factor)

a. Past Performance Recency (Evaluation Sub-factor)

Past Performance Recency will be evaluated using the offeror's SPRS score for Federal Supply Class (FSC) 8415. **An overall SPRS summary score will also be evaluated for the offeror's Cage code for an overall summary score of all FSCs.** If a vendor does not have a score, they may submit the information below. If no information exists for the offeror's CAGE code as well as the CAGE code of the proposed place of performance, they will be rated neutral. **List the CAGE code for all places of performance proposed on subject solicitation.**

The offeror shall submit the information below. If no information exists for the offeror's CAGE code as well as the CAGE code of the proposed place of performance, they will be rated neutral. **List the CAGE code for all places of performance proposed on subject solicitation.**

The offeror shall describe the extent of experience producing the same or similar item(s) for a commercial or Government entity **within three years preceding the solicitation closing date**. Any information submitted **outside the three years** will be considered **Not Recent**. For each contract, the offeror shall provide:

- (1) The contract/order number.
- (2) Date of the contract/order.
- (3) The commercial or Government entity point of contact (name, address, **email address** and telephone number).

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- (4) Average dollar amount of the contract per annum.
- (5) Total contract/order quantity.
- (6) Quantity shipped per month.
- (7) Period of Performance.
- (8) Brief description of the item(s), including the National Stock Number (NSN) and specification number, if applicable.

NOTE: The Government reserves the right to evaluate past performance up until award.

b. Past Performance Relevancy (Evaluation Sub-factor)

Past Performance Relevancy will be evaluated using the offeror's SPRS score for Federal Supply Class (FSC) 8415. **An overall SPRS summary score with also be evaluated for the offeror's Cage code for an overall summary score of all FSCs.** If a vendor does not have a score, they may submit the information below. If no information exists for the offeror's CAGE code as well as the CAGE code of the proposed place of performance, they will be rated neutral. **List the CAGE code for all places of performance proposed on subject solicitation.**

For Past Performance Relevancy, offeror shall describe the extent of experience producing the same or similar item(s) for a commercial or Government entity **within three years preceding the solicitation closing date.** If no information exists for the offeror's CAGE code as well as the CAGE code of the proposed place of performance, they will be rated neutral. **List the CAGE code for all places of performance proposed on subject solicitation.**

For each contract identified in response to paragraph (a) above, the offeror **shall** provide:

- (1) The contract/order number.
- (2) Date of the contract/order.
- (3) The commercial or Government entity point of contact (name, address, **email address** and telephone number).
- (4) Average dollar amount of the contract per annum.
- (5) Total contract/order quantity.
- (6) Quantity shipped per month.
- (7) Period of Performance.
- (8) Brief description of the item(s), including the National Stock Number (NSN) and specification number, if applicable.

NOTE: The Government reserves the right to evaluate past performance up until award.

c. Quality and Delivery of Past Performance (Evaluation Subfactor)

i. Quality of Products

Quality of Items for each contract identified in response to paragraph (a) above:

The offeror shall describe the quality of items delivered **within the three years preceding the solicitation closing date.** For sub-standard quality, the offeror shall specifically address any warranty actions taken, quality deficiency reports issued, or returned merchandise (including one-for-one exchanges). The description of the problem shall also include an explanation for its occurrence, a clear plan or evidence of measures taken to preclude a recurrence and whether or not it was the offeror's fault or subject to mitigating circumstances.

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NOTE: The Government reserves the right to evaluate past performance up until award.

ii. Delivery Performance

Your delivery performance will be evaluated using the offeror's SPRS score for Federal Supply Class (FSC) 8415. **An overall SPRS summary score with also be evaluated for the offeror's Cage code for an overall summary score of all FSCs.** If a vendor does not have a score, they may submit the information below. If no information exists for the offeror's CAGE code as well as the CAGE code of the proposed place of performance, they will be rated neutral.

The offeror shall submit the information below. If no information exists for the offeror's CAGE code as well as the CAGE code of the proposed place of performance, they will be rated neutral.

For each contract identified in response to paragraph (a) above:

The offeror shall specifically indicate whether the items were delivered on time, ahead of or behind schedule **within the three years preceding the solicitation closing date.** If the items were not delivered on time, the offeror shall also provide the number of days delivered ahead of or behind schedule, whether revised delivery schedules were granted and an explanation for any delivery extensions. For delinquent delivery, the description shall also include an explanation for its occurrence, a clear plan or evidence of measures taken to preclude a recurrence and whether or not the problem was the offeror's fault, otherwise excusable or subject to mitigating circumstances.

NOTE: The Government reserves the right to evaluate past performance up until award.

SECTION M

EVALUATION FACTORS FOR AWARD DLA TROOP SUPPORT

(a) The Government will make award to the responsible offeror(s) whose offer conforms with the solicitation and is most advantageous to the Government, cost or price, and other evaluation factors considered. The Government will award a contract only to concerns whose technical proposals establish that they can meet the requirements of the Government. For this solicitation, all evaluation factors other than cost or price, when combined, are -

☐ significantly less important than cost or price. As the evaluated cost/price becomes more equal, relative importance of all other evaluation factors becomes more significant.

☐ approximately equal to cost or price.

☒ significantly more important than cost or price. As other evaluation factors become more equal, the evaluated cost or price becomes more important.

(b) Non-Cost/Price Evaluation Factors (listed in descending order of importance):

1) Product Demonstration Models (PDM)'s will be reviewed for:

i. Socks, Black, Athletic - Product Demonstration Model(s) (All subfactors are of equal importance):

- Conformance to manufacturing requirement of the specification
- Conformance to visual requirements of the specification
- Conformance to dimensional requirements of the specification

*An Unacceptable rating on any element for any PDM submission will result in a failing rating for the Sub-factor and an overall

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Unacceptable rating for the PDM submission, and the entire offer will be rejected. Any PDM that is Unacceptable will be rejected and the proposal will not be evaluated further.

****A rating of Marginal for PDM for any place of performance may result in the offer being removed from award consideration and the proposal will not be reviewed any further.**

The following adjectival comparison will be utilized to evaluate the PDMs, and the technical evaluation factor:

Product Demonstration Model (PDM)

• Outstanding.

Proposal meets requirements and indicates an exceptional approach and understanding of the requirements. Strengths far outweigh any weaknesses. Risk of unsuccessful performance is very low. The PDM meets all stated requirements of the acquisition documentation (i.e., specification; commercial item description; purchase description, etc.) and has no weaknesses.

• Good.

Proposal meets requirements and indicates a thorough approach and understanding of the requirements. Proposal contains strengths which outweigh any weaknesses. Risk of unsuccessful performance is low. The proposal's strengths outweigh any weaknesses when the PDM substantially meets the stated requirements of the acquisition documentation (i.e. specification; commercial item description; purchase description, etc.), but the PDM contains a weakness or a few weaknesses that are not significant and are very easily correctable during production.

• Acceptable.

Proposal meets requirements and indicates an adequate approach and understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate. The proposal's strengths and weaknesses are offsetting or will have little or no impact on contract performance when the PDM substantially meets the stated requirements of the acquisition documentation (i.e., specification; commercial item description; purchase description, etc.), but the PDM contains at least one weakness that requires preventative corrective action in production or a moderate number of weaknesses.

• Marginal.

Proposal does not clearly meet requirements and has not demonstrated an adequate approach and understanding of the requirements. The proposal has one or more weaknesses which are not offset by strengths. Risk of unsuccessful performance is high. The PDM does not meet all stated requirements of the acquisition documentation (i.e., specification; commercial item description; purchase description, etc.), but has potential to become acceptable through significant corrective action. The PDM exhibits at least one significant weakness or a significant number of weaknesses that indicates that the offeror did not completely understand the technical requirements and exhibits a low probability to produce an acceptable item.

• Unacceptable.

Proposal does not meet requirements and contains one or more deficiencies.

Proposal is un-awardable. The PDM substantially fails to meet many significant designs related to and/or other requirements of the acquisition documentation (i.e., specification; commercial item description; purchase description, etc.), and is indicative of a lack of understanding the technical requirements. The PDM exhibits a very significant weakness or weaknesses determined by the evaluation team to render the PDM completely unacceptable for its intended function. The PDM cannot become acceptable without extensive corrective action or remedy that would be tantamount to a new PDM.

NOTE: PLEASE NOTE THAT THE TERM “WEAKNESS” IS SYNONYMOUS WITH THE TERM “DEFECT” AS CONTAINED IN THE SPECIFICATION.

NOTE: A rating of Unacceptable for PDM will result in the offer being removed from award

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consideration and the proposal will not be reviewed any further.

(2) Past Performance Factor - Performance Confidence Assessment

- a. Past Performance Recency
- b. Past Performance Relevancy
- c. Quality and Delivery of Past Performance
 - i. Quality of Products
 - ii. Delivery Performance

NOTE: The Recency, Relevancy and the Quality of Products sub-factors are of equal importance.

a. Recency

The Government will utilize the following rating scale to evaluate Past Performance Recency:

- **Recent**
Offerors' past performance during the three years prior to the closing date, as well as its recent performance up until the time of award, will be considered as recent.
- **Not Recent**
Any performance outside of or greater three years prior to the closing date will be considered "not recent" and will not be further evaluated for relevancy or quality of products and services.

Note: In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305(a)(2)(iv)). Therefore, the offeror shall be determined to have unknown (or "neutral") past performance.

b. Relevancy

The Government will utilize the following rating scale to evaluate Past Performance Relevancy:

- **Very Relevant**
Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
- **Relevant**
Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
- **Somewhat Relevant**
Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
- **Not Relevant**
Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

c. Quality of Products/Delivery Performance**i. Quality of Products**

The Government will utilize the following rating scale to evaluate Quality of Products:

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- **Outstanding**

The offeror's past performance record consistently meets contract requirements and exceeds many to the Government's/customer's benefit and/or past contractual performance has been accomplished with few minor problems for which corrective actions taken by the offeror have been highly effective.

- **Good**

The offeror's past performance record consistently meets contract requirements and exceeds some to the Government's/customer's benefit. Past contractual performance has been accomplished with some minor problems for which corrective actions taken by the offeror have been effective.

- **Acceptable**

The offeror's past performance record met contract requirements. Offeror's record of past performance contains reports of some minor problems for which corrective actions taken by the offeror appear to have been or were acceptable.

- **Marginal**

An overall Marginal rating indicates the offeror's past performance record has not met some contract requirements. Offeror's record of past performance contains reports of serious problems for which the offeror did not identify corrective actions or proposed corrective actions that were only marginally effective or were not fully implemented.

- **Unacceptable**

An overall Unacceptable rating indicates the offeror's past performance record has not met most contractual requirements, recovery was not accomplished in a timely manner, and proposed corrective actions appear or were ineffective.

- **Neutral**

The offeror has no relevant record of past performance. Offeror will not be rated favorably or unfavorably.

ii. Delivery Performance

The Government will utilize the following rating scale to evaluate Delivery Performance:

- **Outstanding**

The offeror's past performance record consistently meets contract requirements and exceeds many to the Government's/customer's benefit and/or past contractual performance has been accomplished with few minor problems for which corrective actions taken by the offeror have been highly effective.

- **Good**

The offeror's past performance record consistently meets contract requirements and exceeds some to the Government's/customer's benefit. Past contractual performance has been accomplished with some minor problems for which corrective actions taken by the offeror have been effective.

- **Acceptable**

The offeror's past performance record met contract requirements. Offeror's record of past performance contains reports of some minor problems for which corrective actions taken by the offeror appear to have been or were acceptable.

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- **Marginal**

An overall Marginal rating indicates the offeror's past performance record has not met some contract requirements. Offeror's record of past performance contains reports of serious problems for which the offeror did not identify corrective actions or proposed corrective actions that were only marginally effective or were not fully implemented.

- **Unacceptable**

An overall Unacceptable rating indicates the offeror's past performance record has not met most contractual requirements, recovery was not accomplished in a timely manner, and proposed corrective actions appear or were ineffective.

- **Neutral**

The offeror has no relevant record of past performance. Offeror will not be rated favorably or unfavorably.

Past Performance - Performance Confidence Assessment

The overall evaluation rating assigned for the Past Performance factor will be a level of confidence based on the combined evaluation of the three sub-factors for recency, relevancy and quality/delivery. This overall rating is known as the Performance Confidence Assessment. The following rating symbology will be utilized to arrive at the overall rating for Past Performance:

- **Substantial Confidence**

Based on the offeror's recent, relevant, and quality/delivery performance record, the Government has a high expectation that the offeror will successfully perform the required effort.

- **Satisfactory Confidence**

Based on the offeror's recent, relevant, and quality/delivery performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.

- **Limited Confidence**

Based on the offeror's recent, relevant, and quality/delivery performance record, the Government has a low expectation that the offeror will successfully perform the required effort.

- **No Confidence**

Based on the offeror's recent, relevant, and quality/delivery performance record, the Government has no expectation that the offeror will successfully perform the required effort.

- **Unknown Confidence (Neutral)**

No recent, relevant, and quality/delivery performance record is available, or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.

The currency and relevance of the information, source of the information, context of the data, volume of business and general trends in performance will be considered. Offerors may be given an opportunity to address especially unfavorable reports of past performance and the offeror's response, or lack thereof will be taken into consideration.

NOTE: The Government reserves the right to evaluate past performance up until award.

Price Evaluation---For each item the total price will be calculated by taking the offeror's proposed unit price and multiplying it by the corresponding evaluative quantity. This calculation will be done for each of the 12-month tiers. The total price for each item (inclusive of five (5) 12-month tier) will be added together to arrive at the total proposal price.

NOTE: This solicitation will utilize Tier pricing. The contract shall be for a term of 60 months and will include five (5)

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separate pricing tiers. Each tier shall be for a 12-month period and have a performance period immediately following the previous tier performance period.

NOTE: This evaluation does not necessarily determine the pricing to be fair and reasonable. Pricing for each item will need to be determined fair and reasonable. **Additionally, pricing significantly unbalanced between any of the performance periods may result in a determination that the pricing cannot be determined fair and reasonable. Failure to determine the pricing fair and reasonable may result in the removal of the offeror from award consideration.**

As a result of the Revolutionary FAR Overhaul (RFO) the following clauses are hereby incorporated into the subject solicitation. FAR parts and the agencies deviations can be viewed at: <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>

Section I - Contract Clauses

52.209-7 Information Regarding Responsibility Matters (DEVIATION 2026-O0038) (FEB 2026)
52.204-13 System for Award Management --Maintenance (DEVIATION 2026-O0038) (FEB 2026)
52.208-9 Contractor Use of Mandatory Sources of Supply or Services (DEVIATION 2026-O0038) (FEB 2026)
52.209-6 Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (DEVIATION 2026-O0038) (FEB 2026)
52.210-1 Market Research (DEVIATION 2026-O0038) (FEB 2026)
52.211-5 Material Requirements (DEVIATION 2026-O0038) (FEB 2026)
52.215-2 Audit and Records-Negotiation (DEVIATION 2026-O0038) (FEB 2026)
52.215-8 Order of Precedence-Uniform Contract Format (DEVIATION 2026-O0038) (FEB 2026)
52.219-1 Small Business Program Representations (DEVIATION 2026-O0038) (FEB 2026)
52.219-6 Notice of Total Small Business Set-Aside (DEVIATION 2026-O0038) (FEB 2026)
52.219-8 Utilization of Small Business Concerns (DEVIATION 2026-O0038) (FEB 2026)
52.219-28 Postaward Small Business Program Representation (DEVIATION 2026-O0038) (FEB 2026)
52.222-19 Child Labor-Cooperation with Authorities and Remedies (DEVIATION 2026-O0038) (FEB 2026)
52.222-35 Equal Opportunity for Veterans (DEVIATION 2026-O0038) (FEB 2026)
52.222-36 Equal Opportunity for Workers with Disabilities (DEVIATION 2026-O0038) (FEB 2026)
52.222-37 Employment Reports on Veterans (DEVIATION 2026-O0038) (FEB 2026)
52.222-40 Notification of Employee Rights Under the National Labor Relations Act (DEVIATION 2026-O0038) (FEB 2026)
52.222-50 Combating Trafficking in Persons (DEVIATION 2026-O0038) (FEB 2026)
52.222-54 Employment Eligibility Verification (DEVIATION 2026-O0038) (FEB 2026)
52.222-62 Paid Sick Leave Under Executive Order 13706 (DEVIATION 2026-O0038) (FEB 2026)
52.223-23 Sustainable Products (DEVIATION 2026-O0038) (FEB 2026)
52.229-3 Federal, State, and Local Taxes (DEVIATION 2026-O0038) (FEB 2026)
52.233-1 Disputes (DEVIATION 2026-O0038) (FEB 2026)
52.233-3 Protest after Award (DEVIATION 2026-O0038) (FEB 2026)
52.233-4 Applicable Law for Breach of Contract Claim (DEVIATION 2026-O0038) (FEB 2026)
52.243-1 Changes-Fixed-Price (DEVIATION 2026-O0038) (FEB 2026)
52.253-1 Computer Generated Forms (DEVIATION 2026-O0038) (FEB 2026)

Section L - Instructions, Conditions and Notices to Offerors

52.204-7 System for Award Management --Registration (DEVIATION 2026-O0038) (FEB 2026)
52.204-90 Offeror Identification (DEVIATION 2026-O0038) (FEB 2026)
52.215-1 Alternate I Instructions to Offerors - Competitive Acquisition (DEVIATION 2026-O0038)(FEB 2026)

The following clauses are hereby deleted from the solicitation due to the Revolutionary FAR Overhaul (RFO):

52.204-24.

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52.217-5 Evaluation of Options will not be included as the solicitation and contract are for Tier pricing.

L08 Use of the Supplier Performance Risk System (SPRS) in Past Performance Evaluations (June 2020)

(1) The Supplier Performance Risk System (SPRS) (<http://www.sprs.csd.disa.mil>) formerly Past Performance Information Retrieval System-Statistical Reporting (PPIRS-SR) will be used in the evaluation of suppliers past performance.

(2) SPRS collects quality and delivery data on previously awarded contracts and orders from existing Department of Defense reporting systems to classify each supplier's performance history by Federal supply class (FSC) and product or service code (PSC). The SPRS application provides the contracting officer quantifiable past performance information regarding a supplier's quality and delivery performance for the FSC and PSC of the supplies being purchased.

(3) The quality and delivery classifications identified for a supplier in SPRS will be used by the contracting officer to evaluate a supplier's past performance in conjunction with the supplier's references (if requested). The Government will use this past performance information in accordance with the basis for award stated in the solicitation.

(4) SPRS classifications are generated daily, Monday through Friday, for each contractor and can be reviewed by following the access instructions in the User's Manual found at https://www.sprs.csd.disa.mil/pdf/PPIRS-SR_UserMan.pdf. Contractors are granted access to SPRS for their own classifications only. Suppliers are encouraged to review their own classifications, the SPRS reporting procedures and classification methodology detailed in the User's Manual, and SPRS Evaluation Criteria available from the references at https://www.sprs.csd.disa.mil/pdf/SPRS_DataEvaluationCriteria.pdf. The method to challenge a rating generated by SPRS is provided in the User's Manual.

NOTE: For this solicitation, DIBBS is NOT an authorized method of submitting an offer.

FAR 52.212-1- INSTRUCTIONS TO OFFERORS- COMMERCIAL ITEMS (SEPT 2023) is incorporated in this solicitation by reference. Its full text may be accessed electronically at <https://www.acquisition.gov/far.index.html>. Text is available for viewing in Subpart 52.2 Text of Provisions and Clauses, through either the HTML or PDF Format links. The Government may conduct discussions with offerors through face-to-face communications, telephonic communications, fax or by electronic mail (e-mail) communications.

1. Addendum to 52.212-1(b) Submission of offers.

See Standard Form 1449 (Continuation Sheet) at the beginning of this solicitation, for any specific instructions on how to submit your offer if mailed, hand carried or faxed (when authorized).

X Faxed offers are NOT authorized for this solicitation.

☐ Faxed offers are authorized for this solicitation.

Facsimile offers that fail to furnish required representations, or information, or that reject any of the terms, conditions and provisions of the solicitations, may be excluded from consideration.

Facsimile offers must contain the required signatures. The Government reserves the right to make award solely on the facsimile offer. However, if requested to do so by the Contracting Officer, the apparently successful offeror agrees to promptly submit the complete original signed proposal. The Government will not be responsible for any failure attributable to the transmission or receipt of the facsimile offer.

FOR THIS SOLICITATION ONLY: Email offers for Technical Proposals will be accepted.

2. Addendum to 52.212-1(c) Period for acceptance of offers.

X Period of acceptance is 180 days.

3. Addendum to 52.212-1(e) Multiple offers.

Alternative commercial items may not be considered for award on this instant acquisition, however, may be utilized for market

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research on future requirements.

4. Addendum to 52.212-1(g) Contract Award.

☒ If the Contracting Officer determines that the number or proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

5. Addendum to 52.212-1(h) Multiple awards.

☐ **The Government intends to make one award.**

☒ The Government may make more than one award.

☐ Offers may be submitted for quantities less than those specified.

6. Addendum to 52.212-1(j) Unique Entity Identifier Number/Data Universal Numbering System (DUNS) Number

The requirement to provide a Unique Entity Identifier number /DUNS number with the offer applies at all dollar values if the offeror is required to register in the System For Award Management in accordance with FAR 52.204-7 and 52.204-99.

CAUTION NOTICE

Offerors are cautioned that the following clauses/notes are required to be filled out by the offeror completely and submitted with offer. Failure to submit the required information as part of the offer may result in rejection of entire proposal.

52.215-6 Place of Performance (DEVIATION 2026-O0038) (FEB 2026)

(a) The offeror or respondent, in the performance of any contract resulting from this request for proposals, ☐ intends, ☐ does not intend [*check applicable block*] to use one or more plants or facilities located at a different address from the address of the offeror or respondent as indicated in this proposal or response to request for information.

(b) If the offeror or respondent checks "intends" in paragraph (a) of this provision, it shall insert in the following spaces the required information:

Place of Performance (Street Address,
City, State, County, ZIP Code)

Name and Address of Owner and Operator of the
Plant or Facility if Other than Offeror or Respondent

(End of Provision)

IDENTIFICATION OF SOURCES FOR ALL COMPONENTS FOR CLOTHING/TEXTILE ITEMS

(a) The offeror **shall** indicate below the names and addresses of those suppliers from whom each component will be obtained for use in the performance of any resultant contract. In addition, for each component, the offeror shall also identify the name of the item's manufacturer and the address of the manufacturing location. Failure to furnish this information with the offer may result in rejection of the offer.

(b) No change in the supplier(s) or manufacturer(s) listed below shall be permitted between the opening/closing date of the offer

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and the award, except where time permits and then only upon receipt of the Contracting Officer's written approval.

(c) Any change in the supplier(s) or manufacturer(s) listed below, and in any resultant contract, is prohibited unless it is specifically approved in advance by the Contracting Officer.

Component and Quantity	Name and Address of Supplier	Address of Manufacturer

(End of Text)

IDENTIFICATION OF QUALIFIED LABORATORY AND SOURCE SAMPLING

(a) The offeror or bidder shall indicate in paragraph (e) below the name and address of the laboratory or laboratories where components or end items will be tested during the course of any resultant contract. Any laboratory proposed by the Contractor is subject to the approval of the Contracting Officer.

(b) The Government quality assurance representative (QAR) will cut samples from a lot at the textile component source and send them for testing to the laboratory cited below. (The acceptability of each lot will be determined through the testing of these samples). In addition, the QAR will simultaneously cut samples from the same rolls of material and send them to the DLA Troop Support laboratory when advised by the DLA Troop Support textile technologist to do so. For end items, duplicate samples will be drawn. Source sampling procedures are detailed further in DLA Troop Support Manual, Quality Systems Requirements, 4155.3, which is incorporated by reference.

(c) The prime Contractor will notify the DLA Troop Support textile technologist (**Terry Donahue at (215) 737-3289**) in writing at least ten days in advance when lots are to be presented to allow Government witnessing of testing at the Contractor's laboratory. If the Government intends to witness testing, a representative from the DLA Troop Support laboratory will notify the Contractor's laboratory. In the absence of Government notification, testing should proceed as scheduled.

(d) Should the Contracting Officer withdraw approval of the laboratory proposed by the Contractor during the course of a contract, DLA Troop Support will perform the required testing for up to 30 calendar days from the date of approval withdrawal. The charge for testing will be the DLA Troop Support laboratory's effective cost rate on the date of testing. The Contractor is responsible for securing the services of another laboratory during this period.

(e) Any change in the laboratory (or laboratories) specified below is prohibited unless approved in advance by the Contracting Officer.

Name and Address of Laboratory Component Identity* Name and Address of Component Source

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* When a single lot of material requires testing by more than one laboratory for different characteristics, list the name of the secondary laboratory and the test characteristics below:

Name and Address of Laboratory Component Identity* Test Characteristics

(f) It is solely the prime Contractor's responsibility to schedule laboratory testing and to obtain test reports. The cost of laboratory testing shall also be borne by the prime Contractor.

(g) Shipments of component materials to the prime Contractor need not be deferred pending test results except when shade approval is required (see paragraph (h)). Cutting production lots without a passing laboratory test report on the corresponding samples is done at the Contractor's own risk.

(h) Shade evaluation is acceptance testing. Therefore, component lots may not be shipped to the prime Contractor until the DLA Troop Support laboratory accepts the shade of the material.

(End of Text)

DELIVERY REQUIREMENTS

(a) The Government will insist on delivery in strict accordance with the contractual delivery schedule. The dates specified for delivery are the dates required for arrival of the supplies at destination. When transportation terms are free on board (f.o.b.) origin, in order for this delivery to be satisfied, the Contractor should release shipment to the carrier 15 days prior to the date shown in the schedule.

(b) When Defense Logistics Acquisition Directive (DLAD) clause 52.211-9020 entitled "Time of Delivery - Accelerated Delivery" applies, the Contractor may deliver any time prior to, but no later than the specified delivery date as defined in paragraph (a) above.

(c) If accelerated delivery is not authorized, i.e., DLAD 52.211-9020 is not included in the award, the Contractor may deliver as follows without prior authorization of the Contracting Officer:

(1) For an f.o.b. origin award, the Contractor may release the shipment 15 to 30 days prior to the delivery date cited in the contract.

(2) For an f.o.b. destination award, the Contractor may deliver up to 15 days prior to the scheduled delivery date.

(End of Text)

TIME OF DELIVERY - ORDERING OFFICE

Material ordered under the terms of this Contract shall be delivered within 90 days after the date of the order. Notwithstanding any other provisions or clauses of this Contract, no deliveries shall be made prior to issuance of the delivery order on Department of Defense (DD) Form 1155.

(End of Text)

REQUIREMENTS FOR QUANTITY INCREMENTS OR RANGES

Offers are requested for increments or ranges of quantities as listed in the schedule of supplies or services. The awarded quantity, or quantities in the case of multiple items, will be based on the requirements of the Government and the combination of

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price and quantity per item that is most advantageous to the Government.

Quantity increments consist of a primary amount and alternate amounts based on incremental increases. The quantity awarded will be either the full primary or one of the alternate quantities.

Quantity ranges consist of a specific series of ranges. The quantity awarded may fall anywhere within any range.

If this is an invitation for bids (IFB), a bid that only contains prices for quantities other than those quantities solicited in the schedule of supplies or services will be determined to be non-responsive.

If this is a request for quote (RFQ) or a request for proposal (RFP), an offer that only contains prices for quantities other than those quantities indicated in the schedule of supplies or services may be precluded from consideration for award if the Contracting Officer elects to make an award without discussion of proposals.

If this solicitation requests offers for quantity ranges, the following apply:

The unit price applicable to the entire award quantity shall be the unit price offered for the quantity range in which the award quantity falls;

If an offer specifies the same price for all quantity ranges of an item, the offer may include a statement in the schedule of supplies or services that the unit price applies to all quantity ranges of that item. If an offer specifies different prices for a quantity range of an item, the offer must show a unit price in each quantity range column in the schedule of supplies or services.

Award may be made on the basis of that quantity and price combination that is most advantageous to the Government without discussion of proposals.

Cost or pricing data, if required, shall be furnished at the request of the Contracting Officer and need not be submitted with your offer.

If this solicitation includes an option provision, option prices must be included for each increment.

(End of Text)

BUSINESS SYSTEMS MODERNIZATION (BSM) DELIVERY TERMS AND EVALUATION

(a) This acquisition is being conducted under business systems modernization (BSM). Quotes/offers in response to this solicitation will be evaluated as specified in the solicitation.

(b) Delivery shall be quoted/offered in terms of a number of days after date of order (ADO). The number of delivery days requested in this solicitation is calculated based on the Government's planned need and customer requirements. Unless delivery is identified elsewhere in the solicitation as an evaluation factor, quoters/offers are encouraged to conform their delivery terms as closely as possible to the delivery days requested. If delivery is not identified as an evaluation factor, there will be no evaluation preference, or penalty, for quotes/offers of fewer delivery days than the number of delivery days requested by the Government. Quoting/offering a greater number of delivery days than requested may result in the quote/offer not being considered.

(End of Text)

Clause 52.212-4(a), Inspection/Acceptance

INSPECTION AND ACCEPTANCE AT DESTINATION

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52.212-4 -- Contract Terms and Conditions -- Commercial Items. (NOV 2023)

(a) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or re-performance of nonconforming services at no increase in contract price. If repair/replacement or re-performance will not correct the defects or is not possible, the government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights --

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

Note: The Government reserves the right to perform Inspection and Acceptance at Destination for orders under \$300,000 or should the Government determine it is in its best interest.

INSPECTION AND ACCEPTANCE AT ORIGIN

1. The Government's Quality Assurance Representative (QAR) will inspect supplies described by manufacturer's name/code and part number at origin location(s):

a. The QAR may require that objective evidence be furnished establishing the name and address of the plant that manufactures the supplies to ensure that a domestic product is being supplied.

b. Objective evidence of performance must be present for all quality assurance requirements specified in the contract. The QAR may require additional examinations and tests to determine:

i. Completeness of item

ii. Material is new and unused

iii. Absence of rust

iv. Contamination, or deterioration

v. Correct identification/item marking

vi. Correct packaging

vii. Absence of any damage

viii. Compliance with preparation for delivery

2. If the supplier is not the manufacturer of the supplies, objective evidence must be furnished to establish that the supplies were produced by the approved manufacturer.

3. For supplies designated as former Government surplus (whether described by manufacturer's name/code and part number, or by Military or Federal specification or drawing), the original package markings of each item shall be verified to previous Government contract number and part number. Any deviation shall be cause for rejection of the item. The Procuring Activity may add additional inspection requirements based on the evaluation of the surplus offer. Such additional requirements will be identified before the award.

NOTE: The Government reserves the right to perform Inspection and Acceptance at Origin should the Government determine the need.

REMOVAL OF GOVERNMENT IDENTIFICATION FROM NON-ACCEPTED SUPPLIES

The Contractor shall remove or obliterate from a rejected end item and its packing and packaging, any marking, symbol, or other representation that the end item or any part of it has been produced or manufactured for the United States Government. Removal or obliteration shall be accomplished prior to any donation, sale, or disposal in commercial channels.

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(End of TQ Requirement)

Production Facility Changes

PRODUCTION FACILITY CHANGES

(a) The performance of any of the work contracted for in any place other than that named in the contract is prohibited unless specifically approved by the Contracting Officer. Written requests for a change in production facilities must be submitted in writing to the Contracting Officer. Changes in production facilities may be approved, provided:

- (1) Performance by small business or in labor surplus areas as required by the contract will not be changed;
 - (2) The change will not cause a delay in delivery or necessitate a change in the purchase description;
 - (3) The free on board (f.o.b.) point is not changed; and
 - (4) Each request is supported by a price reduction of \$250.00 to cover the Government's administrative costs to process the change.
- (b) The Government reserves the right to deny approval even if these four elements are met.

(End of Text)

ADMINISTRATIVE COSTS OF REPROCUREMENT AFTER DEFAULT

If this contract is terminated in whole or in part for default pursuant to the clause included herein entitled "Default," and the supplies or services covered by the contract so terminated are repurchased by the Government, the Government will incur administrative costs in such repurchases. The Contractor and the Government expressly agree that, in addition to any excess costs of repurchase, as provided in paragraph (b) of the "Default" clause of the contract, or any other damages resulting from such default, the Contractor shall pay, and the Government shall accept, the sum of **\$1,350.00** [insert administrative cost figure] as payment in full for the administrative costs of such repurchase. This assessment of damages for administrative costs shall apply for any termination for default following which the Government repurchases the terminated supplies or services, regardless of whether any other damages are incurred and/or assessed.

(End of Text)

52.246-15 CERTIFICATE OF CONFORMANCE (APR 1984) - FAR

- (a) When authorized in writing by the cognizant Contract Administration Office (CAO), the Contractor shall ship with a Certificate of Conformance any supplies for which the contract would otherwise require inspection at source. In no case shall the Government's right to inspect supplies under the inspection provisions of this contract be prejudiced. Shipments of such supplies will not be made under this contract until use of the Certificate of Conformance has been authorized in writing by the CAO, or inspection and acceptance have occurred.
- (b) The Contractor's signed certificate shall be attached to or included on the top copy of the inspection or receiving report distributed to the payment office or attached to the CAO copy when contract administration (Block 10 of the DD Form 250) is performed by the Defense Contract Administration Services. In addition, a copy of the signed certificate shall also be attached to or entered on copies of the inspection or receiving report accompanying the shipment.
- (c) The Government has the right to reject defective supplies or services within a reasonable time after delivery by written notification to the Contractor. The Contractor shall in such event promptly replace, correct, or repair the rejected supplies or services at the Contractor's expense.

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(d) The certificate shall read as follows:

I certify that on _____ *[insert date]*, the _____ *[insert Contractor's name]* furnished the supplies or services called for by Contract No. _____ via _____ *[Carrier]* on _____ *[identify the bill of lading or shipping document]* in accordance with all applicable requirements. I further certify that the supplies or services are of the quality specified and conform in all respects with the contract requirements, including specifications, drawings, preservation, packaging, packing, marking requirements, and physical item identification (part number), and are in the quantity shown on this or on the attached acceptance document.

Date of Execution: _____

Signature: _____

Title: _____

(End of Text)

Shipping Instructions

SHIPPING INSTRUCTIONS

Shipping instructions shall be provided with individual delivery orders. Destinations include various Department of Defense using activities and may include Defense Logistics Agency (DLA) depot locations.

(End of Text)

Commercial Shipping Documents

Commercial Shipping Documents

(a) Commercial shipping documents are authorized. Packing lists, invoices, and bills of lading must contain the complete shipping address and markings exactly as specified in the Schedule including the Transportation Control Number (TCN), National Stock Number (NSN), Contract Line Item Number (CLIN), Quantity and Unit of Issue, contract/order number, and Shipment Number with a request for the carrier to perpetuate the complete information when delivery is to a port. One copy of the shipping document and one copy of the order, Department of Defense (DD) Form 1155, shall accompany or be included in each shipment.

(b) In addition, for all direct shipments to overseas and domestic consignees, including shipments to consolidation and containerization points, the documentation with complete mark for information is to be placed in a water-resistant envelope securely attached to the outside of the shipping container/exterior pack. (This paragraph is not applicable to shipments to a Government Packing Facility).

Point Of Contact For Transportation Instructions

POINT OF CONTACT FOR TRANSPORTATION INSTRUCTIONS

(a) For Defense Contract Management Agency (DCMA) administered orders to include DCMA Americas, Canada: The

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Contractor shall contact the transportation officer at the administering DCMA location. To obtain the applicable Government shipping document/instructions, 7 days prior to shipment availability, the Contractor shall use the Shipping Instructions Request (SIR) web-based eTool application available through the DCMA's website <http://www.DCMA.mil> at <http://www.dcma.mil/itsoc/cbt/SIR/index.cfm>.

(b) For DCMA International outside contiguous United States (OCONUS) administered orders (excluding DCMA Americas, Canada): The Contractor shall either use Department of Defense (DD) Form 1659 or the DCMA SIR eTool as directed by the DCMA International Transportation Office.

(1) An electronic version of the DD Form 1659 can be accessed at: <http://www.dtic.mil/whs/directives/infomgt/forms/eforms/dd1659.pdf> or may be obtained from the responsible DCMA International Contract Administration Office (CAO) Transportation Office.

(c) For Defense Logistics Agency (DLA) administered orders: The Contractor shall contact the DLA Distribution Supply Chain Transportation Office Helpdesk for shipping instructions at 1-800-456-5507 or via e-mail to delivery@dla.mil (preferred). The DLA Distribution's operating hours are Monday through Friday, 6:00 a.m. to 5:30 p. m. eastern standard time, excluding holidays. The DLA Vendor Shipment Module (VSM), previously known as the Distribution Planning and Management System (DPMS), available at <https://vsm.distribution.dla.mil>, may be used to obtain transportation instructions in lieu of contacting the transportation office.

(End of Text)

Certificate of Conformance

CERTIFICATE OF CONFORMANCE

(a) Unless otherwise specified in the contract, the Contractor shall furnish a certificate of conformance for packaging, packing, labeling, marking and unitization materials and their performance in use in lieu of government sampling and testing. Performance in use applies to joint strength of strapping and tension of unit load strapping. The unitization materials covered by the certificate of conformance shall not include pallets. Examination and testing of pallets shall be performed in accordance with specification requirements unless otherwise stipulated in the contract.

(b) When specified, the Contractor may also furnish a certificate of conformance for certain components/ingredients or end item characteristics. The Contractor may still furnish a certificate covering any of the foregoing even though a subcontractor provided the materials. In such event, the Contractor is responsible for assuring that the materials met all contract requirements. For this reason, the Contractor should request a certificate of conformance from the subcontractor.

(c) The certificate of conformance should be worded substantially as follows:

(1) I certify that all (indicate type of material) called for by the contract conform to applicable contract requirements in every particular. (For meats only, the Contractor must also state that "no distressed, reconditioned meat has been used.")

(2) Such materials consist of the following: (Specify quantity, manufacturer and nomenclature for each item.)

Signature and Title of Certifying Official

Distribution: One copy to origin inspector, when applicable. One copy with shipment when origin USDA/USDC inspection is not required. One copy with invoice for payment when Department of Defense (DD) form 250 is not used.

(d) It is the intent of the Government to be able to rely on the certificate of conformance. To assure that the certificate is

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reliable, the Government reserves the right to perform verification testing of each component for which specifications are established in the contract. Random samples shall be personally selected by the cognizant Government inspector. Random samples of packaging, labeling, packing and marking materials shall be submitted to the DLA analytical laboratory with a copy of the DD form 1222 furnished to DLA Troop Support HSQ. Food component materials shall be sent to the laboratory servicing the inspector's organization. All costs incident to the sampling and submittal of materials shall be borne by the Contractor. The reliability of the Contractor's certificate of conformance will be determined on the basis of Government verification results.

(1) When it is determined by DLA Troop Support HSQ that the DLA analytical laboratory test samples meet the contract requirements, the certificate of conformance for these materials is considered reliable.

(2) When DLA Troop Support finds the materials do not meet the contract requirements based on recognized statistical methods, the certificate of conformance is considered unreliable. The Contractor shall be so advised and the particular deficiencies which render such certificate unreliable shall be identified. The unreliability status may be continued from contract to contract regardless of the particular contract on which the verification tests, or submission by Contractor of nonconforming material, has occurred. The Contractor is responsible for all costs incurred by the government in performing tests of future samples submitted for testing after such time as the Government has informed the Contractor of the unreliability status and until reliability is again established to the satisfaction of the Contracting Officer. Testing and administrative costs shall be assessed at the prevailing rate.

PROCUREMENT NOTES:

L06, Agency Protests (DEC 2016)

Interested parties may file an agency level protest with the contracting officer or may request an independent review by the chief of the contracting office (CCO). Independent review by the CCO is an alternative to consideration by the contracting officer and is not available as an appellate review of a contracting officer decision on a protest previously filed with the contracting officer. Absent a clear indication of the intent to file an agency level protest with the CCO for independent review, protests will be presumed to be protests to the contracting officer.

Availability of Clothing Patterns

AVAILABILITY OF CLOTHING PATTERNS

Government-furnished clothing patterns will be delivered to the Contractor within 14 days after the date of award. In the event patterns are not delivered within 14 days after award or are delivered incomplete, it is the Contractor's responsibility to notify the Government, in writing, by certified mail. Such notification must be mailed to the Contracting Officer within 30 days from date of award. Timely notification of late delivery upon Contracting Officer's verification will result in a day for day extension of the delivery schedule for each day or delay beyond the initial 14-day period. Failure to provide the above notice will preclude any adjustment of delivery schedule as a result of late receipt of Government-furnished patterns.

(End of Text)

NOTE: There are NO PATTERNS for the Socks, Black, Athletic item. This item does not have artwork for Logos/transfers.

Price Sustainability

As part of the United States Defense Industrial Base, offerors are strongly encouraged to offer sustainable pricing that adequately covers all costs, accounts for market risk and volatility and allows for long term viability and capital investment.

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Offers are advised that the awardee will be contractually bound to perform at the final pricing submitted for the duration of the contract performance period(s) established in this solicitation. Successful contract performance at sustainable pricing is critical to the health of the domestic industrial base and will better ensure current and long-term support to the Warfighter.

Passive Radio Frequency Identification

(a) Definitions. As used in this clause -

Advance shipment notice means an electronic notification used to list the contents of a shipment of goods as well as additional information relating to the shipment, such as passive radio frequency identification (RFID) or item unique identification (IUID) information, order information, product description, physical characteristics, type of packaging, marking, carrier information, and configuration of goods within the transportation equipment.

Bulk commodities mean the following commodities, when shipped in rail tank cars, tanker trucks, trailers, other bulk wheeled conveyances, or pipelines:

- (1) Sand.
- (2) Gravel.
- (3) Bulk liquids (water, chemicals, or petroleum products).
- (4) Ready-mix concrete or similar construction materials.
- (5) Coal or combustibles such as firewood.
- (6) Agricultural products such as seeds, grains, or animal feed.

Case means either a MIL-STD-129 defined exterior container within a palletized unit load or a MIL-STD-129 defined individual shipping container.

Electronic Product Code™ (EPC ®) means an identification scheme for universally identifying physical objects via RFID tags and other means. The standardized EPCTM data consists of an EPCTM (or EPCTM identifier) that uniquely identifies an individual object, as well as an optional filter value when judged to be necessary to enable effective and efficient reading of the EPCTM tags. In addition to this standardized data, certain classes of EPCTM tags will allow user-defined data. The EPCTM Tag Data Standards will define the length and position of this data, without defining its content.

EPCglobal ® means a subscriber-driven organization comprised of industry leaders and organizations focused on creating global standards for the adoption of passive RFID technology.

Exterior container means a MIL-STD-129 defined container, bundle, or assembly that is sufficient by reason of material, design, and construction to protect unit packs and intermediate containers and their contents during shipment and storage. It can be a unit pack or a container with a combination of unit packs or intermediate containers. An exterior container may or may not be used as a shipping container.

Palletized unit load means a MIL-STD-129 defined quantity of items, packed or unpacked, arranged on a pallet in a specified manner and secured, strapped, or fastened on the pallet so that the whole palletized load is handled as a single unit. A palletized or skidded load is not considered to be a shipping container. A loaded 463L System pallet is not considered to be a palletized unit load. Refer to the Defense Transportation Regulation, DoD 4500.9-R, Part II, Chapter 203, for marking of 463L System pallets.

Passive RFID tag means a tag that reflects energy from the reader/interrogator or that receives and temporarily stores a small amount of energy from the reader/interrogator signal in order to generate the tag response. The only acceptable tags are EPC Class 1 passive RFID tags that meet the EPCglobal™ Class 1 Generation 2 standard.

Radio frequency identification (RFID) means an automatic identification and data capture technology comprising one or more reader/interrogators and one or more radio frequency transponders in which data transfer is achieved by means of suitably modulated inductive or radiating electromagnetic carriers.

Shipping container means a MIL-STD-129 defined exterior container that meets carrier regulations and is of sufficient strength, by reason of material, design, and construction, to be shipped safely without further packing (e.g., wooden boxes or crates, fiber and metal drums, and corrugated and solid fiberboard boxes).

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(b)(1) Except as provided in paragraph (b)(2) of this clause, the Contractor shall affix passive RFID tags, at the case- and palletized- unit-load packaging levels, for shipments of items that -

(i) Are in any of the following classes of supply, as defined in DoD Manual 4140.01, Volume 6, DoD Supply Chain Materiel Management Procedures: Materiel Returns, Retention, and Disposition:

(A) Subclass of Class I - Packaged operational rations.

(B) Class II - Clothing, individual equipment, tentage, organizational tool kits, hand tools, and administrative and housekeeping supplies and equipment.

(C) Class IIIP - Packaged petroleum, lubricants, oils, preservatives, chemicals, and additives.

(D) Class IV - Construction and barrier materials.

(E) Class VI - Personal demand items (non-military sales items).

(F) Subclass of Class VIII - Medical materials (excluding pharmaceuticals, biologicals, and reagents - suppliers should limit the mixing of excluded and non-excluded materials).

(G) Class IX - Repair parts and components including kits, assemblies and subassemblies, repairable and consumable items required for maintenance support of all equipment, excluding medical-peculiar repair parts; and

(ii) Are being shipped to one of the locations listed at https://www.acq.osd.mil/log/sci/RFID_ship-to-locations.html or to -

(A) A location outside the contiguous United States when the shipment has been assigned Transportation Priority 1, or to -

The following location(s) deemed necessary by the requiring activity

Contract line, subline, or exhibit line number	Location Name	City	State	DoDAAC
All contract items	PENDERGRASS DISTRIBUTION CENTER	Pendergrass	Georgia	SC0150-VSTQ

(2) The following are excluded from the requirements of paragraph (b)(1) of this clause:

(i) Shipments of bulk commodities.

(ii) Shipments to locations other than Defense Distribution Depots when the contract includes the clause at FAR 52.213-1, Fast Payment Procedures.

(c) The Contractor shall -

(1) Ensure that the data encoded on each passive RFID tag are globally unique (i.e., the tag ID is never repeated across two or more RFID tags) and conforms to the requirements in paragraph (d) of this clause;

(2) Use passive tags that are readable; and

(3) Ensure that the passive tag is affixed at the appropriate location on the specific level of packaging, in accordance with MIL-STD-129 (Section 4.9.2) tag placement specifications.

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(d) Data syntax and standards. The Contractor shall encode an approved RFID tag using the instructions provided in the EPCTM Tag Data Standards in effect at the time of contract award. The EPCTM Tag Data Standards are available at <http://www.gs1.org/epc-rfid>”.

(1) If the Contractor is an EPCglobal™ subscriber and possesses a unique EPCTM company prefix, the Contractor may use any of the identifiers and encoding instructions described in the most recent EPCTM Tag Data Standards document to encode tags.

(2) If the Contractor chooses to employ the DoD identifier, the Contractor shall use its previously assigned Commercial and Government Entity (CAGE) code and shall encode the tags in accordance with the tag identifier details located in the DoD Suppliers' Passive RFID Information Guide at https://www.acq.osd.mil/log/LOG/RFID_FAQs.html. If the Contractor uses a third-party packaging house to encode its tags, the CAGE code of the third-party packaging house is acceptable.

(3) Regardless of the selected encoding scheme, the Contractor with which the Department holds the contract is responsible for ensuring that the tag ID encoded on each passive RFID tag is globally unique, per the requirements in paragraph (c)(1) of this clause.

(e) Advance shipment notice. The Contractor shall use Wide Area WorkFlow (WAWF), as required by DFARS 252.232-7003, Electronic Submission of Payment Requests, to electronically submit advance shipment notice(s) with the RFID tag ID(s) (specified in paragraph (d) of this clause) in advance of the shipment in accordance with the procedures at <https://wawf.eb.mil/>.

SIZED ITEMS

(a) Contracts for quantities less than the quantity solicited for each destination shall be in the same ratio to the total quantity solicited for each size by destination in the solicitation, except that when the total quantity herein specified for any size is determined by the Contracting Officer to be impractical for pro-rating between Contractors, the Government reserves the right to award such total quantity to any one Contractor. Unless otherwise specifically permitted in the solicitation, offers limited to selected sizes only or quantities of sizes not in the same ratio as the stated tariff of sizes by destination will not be considered for award.

(b) The Contractor shall make all shipments in even case lots limited to one size. In the event that monthly delivery requirements result in less than case lot quantities remaining for shipment at the end of any one month, the Contractor shall hold said quantity until even case lot quantity is obtained. Where shipment in an even case lot quantity for each size is impracticable because it is the final shipment, the Contractor may ship less than an even case lot quantity for each size and may mix different sizes within the same carton.

(c) Changes:

Sizes and/or quantities of each size awarded are subject to change by the Contracting Officer. The Government and the Contractor agree that the monetary adjustment shall be limited to the value of the saving or excess in material usage. (No adjustment shall be made for labor, overhead, freight, package and packaging.) The savings or excess usage shall be determined as follows:

(1) Clothing (except for items in Para (2) below):

The material usage shall be computed by multiplying the number of square inches for each size being increased, decreased by the number of items being changed in that size. The difference between the total increase and the total decrease in square inches represents the savings or excess in material usage for the change in sizes. This excess or savings in usage shall be first converted to linear yards using the appropriate fabric width, and then converted into dollars using the cost per yard of the material(s). (NOTE: On Government-furnished Material (GFM) contracts, the material width(s) specified in clause 52.245-9011 of the contract shall be used; on Contractor-furnished Material (CFM) contracts, the width as verified by the Contractor's invoices or the Government's physical inspection of the material(s) shall be used.) The resultant amount shall be the sole equitable adjustment in contract price for the size change. In the event the total square inches for each size change are not included in the contract, the Government will compute the square inches involved and determine the adjustment in accordance with the above procedures.

(i) On contracts where GFM is utilized and the change in sizes affects the usage requirement, payments shall be made by a

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modification crediting the Contractor's material usage account where the usage requirement increases, and charging the Contractor's material usage account where usage requirement decreases.

(ii) On CFM contracts where the change in sizes affects the usage requirements of the CFM, payment shall be effected by a modification either increasing or decreasing the contract price whichever is appropriate in CFM contracts.

(2) Knitwear, rubber footwear, equipage (i.e. accessory) items, protective clothing, and protective gloves: Any such change shall be deemed to be a change within the purview of the "Changes" provision.

(3) Leather footwear: The material usage for any given size which has been changed, compute as follows: (see chart below)

(i) Multiply the point value of the size being changed by the quantity being changed;

(ii) Multiply the point value of the new size by the quantity being changed;

(iii) Determine the difference between (i) and (ii) above to arrive at the net points gained or lost;

(iv) The excess or savings shall be converted to dollars by multiplying the net points gained or lost by the unit cost. This figure will then be multiplied by 2%. The resultant total shall be the sole equitable adjustment.

Note: When utilizing the point value table, the following will apply:

Extra narrow will be computed using Narrow.

Extra Wide will be computed using Wide.

Half Sizes will be computed using the next higher size.

Point value

Table leather footwear

Size point value size point value: Does not apply

(v) An additional adjustment will be made where size changes require expenditures for leather component materials beyond the quantity and/or unit price originally committed and contracted. At the time of a change in sizes, the Contractor shall provide documentation regarding the market price of hides and leather footage costs both at time of offer and at the time the size change was directed. (The Contractor's supportive invoices for the additional quantity, together with the invoice for the original material will be considered satisfactory documentation.)

(d) However, where, as a result of the change in sizes, work in process, residual inventory (i.e., components, raw materials, etc.), and/or means of production (i.e., markers, dies, etc.) cannot be utilized, an adjustment will be made to compensate the Contractor for the direct costs expended. (If Government-furnished property is involved, material credit will be given for work in process.) In the event an adjustment is made, the Contracting Officer shall have the right to prescribe the manner of disposition of the property for which the Contractor has been compensated.

(e) The method of adjusting for size changes indicated above will also be applied to pattern changes.

(End of Text)

L08 USE OF SUPPLIER PERFORMANCE RISK SYSTEM (SPRS) IN PAST PERFORMANCE EVALUATIONS (JUN 2024)

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L27 ADDITION AND DELETION OF ITEMS (AUG 2017)

Part 12 Clauses

52.212-4 CONTRACT TERMS AND CONDITIONS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023) FAR CLAUSES ADDED TO PART 12 BY ADDENDUM

52.203-14 DISPLAY OF HOTLINE POSTER (NOV 2021) FAR

As prescribed in 3.1004(b), insert the following clause:

(a) Definition.

“United States,” as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) Display of fraud hotline poster(s). Except as provided in paragraph (c).

(1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites.

(i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and

(ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.

(2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.

(3) Any required posters may be obtained as follows:

Poster(s) Obtain from

(Contracting Officer shall insert ---

(i) Appropriate agency name(s) and/or title of applicable Department of Homeland Security fraud hotline poster); and

(ii) The website(s) or other contact information for obtaining the poster(s).)

(c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.

(d) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation 3.1004(b)(1) on the date of subcontract award, except when the subcontract—

(1) Is for the acquisition of a commercial product or commercial service; or

(2) Is performed entirely outside the United States.

(End of clause)

252.203-7002 REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022) DFARS

52.204-15 SERVICE CONTRACT REPORTING REQUIREMENTS FOR INDEFINITE-DELIVERY CONTRACTS (OCT 2016) FAR

252.204-7003 CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT (APR 1992) DFARS

252.204-7004 ANTITERRORISM AWARENESS TRAINING FOR CONTRACTORS (JAN 2023) DFARS

252.204-7009 LIMITATIONS ON THE USE OR DISCLOSURE OF THIRD-PARTY CONTRACTOR REPORTED CYBER INCIDENT INFORMATION (JAN 2023) DFARS

252.204-7012 SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (DEVIATION 2024-O0013) (MAY 2024) DFARS

(a) *Definitions.* As used in this clause

Adequate security means protective measures that are commensurate with the consequences and probability of loss, misuse, or unauthorized access to, or modification of information.

Compromise means disclosure of information to unauthorized persons, or a violation of the security policy of a system, in which unauthorized intentional or unintentional disclosure, modification, destruction, or loss of an object, or the copying of information to unauthorized media may have occurred.

Contractor attributional/proprietary information means information that identifies the contractor(s), whether directly or indirectly, by the grouping of information that can be traced back to the contractor(s) (e.g., program description, facility locations), personally identifiable information, as well as trade secrets, commercial or financial information, or other commercially sensitive information that is not customarily shared outside of the company.

Controlled technical information means technical information with military or space application that is subject to controls on the access, use, reproduction, modification, performance, display, release, disclosure, or dissemination. Controlled technical information would meet the criteria, if disseminated, for distribution statements B through F using the criteria set forth in DoD Instruction 5230.24, Distribution Statements on Technical Documents. The term does not include information that is lawfully publicly available without restrictions.

Covered contractor information system means an unclassified information system that is owned, or operated by or for, a contractor and that processes, stores, or transmits covered defense information.

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Covered defense information means unclassified controlled technical information or other information, as described in the Controlled Unclassified Information (CUI)

Registry at <http://www.archives.gov/cui/registry/category-list.html>, that requires safeguarding or dissemination controls pursuant to and consistent with law, regulations, and Governmentwide policies, and is --

(1) Marked or otherwise identified in the contract, task order, or delivery order and provided to the contractor by or on behalf of DoD in support of the performance of the contract; or

(2) Collected, developed, received, transmitted, used, or stored by or on behalf of the contractor in support of the performance of the contract.

Cyber incident means actions taken through the use of computer networks that result in a compromise or an actual or potentially adverse effect on an information system and/or the information residing therein.

Forensic analysis means the practice of gathering, retaining, and analyzing computer-related data for investigative purposes in a manner that maintains the integrity of the data.

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

Malicious software means computer software or firmware intended to perform an unauthorized process that will have adverse impact on the confidentiality, integrity, or availability of an information system. This definition includes a virus, worm, Trojan horse, or other code-based entity that infects a host, as well as spyware and some forms of adware.

Media means physical devices or writing surfaces including, but is not limited to, magnetic tapes, optical disks, magnetic disks, large-scale integration memory chips, and printouts onto which covered defense information is recorded, stored, or printed within a covered contractor information system.

Operationally critical support means supplies or services designated by the Government as critical for airlift, sealift, intermodal transportation services, or logistical support that is essential to the mobilization, deployment, or sustainment of the Armed Forces in a contingency operation.

Rapidly report means within 72 hours of discovery of any cyber incident.

Technical information means technical data or computer software, as those terms are defined in the clause at DFARS 252.227-7013, Rights in Technical Data --Other Than Commercial Products and Commercial Services, regardless of whether or not the clause is incorporated in this solicitation or contract. Examples of technical information include research and engineering data, engineering drawings, and associated lists, specifications, standards, process sheets, manuals, technical reports, technical orders, catalog-item identifications, data sets, studies and analyses and related information, and computer software executable code and source code.

(b) *Adequate security*. The Contractor shall provide adequate security on all covered contractor information systems. To provide adequate security, the Contractor shall implement, at a minimum, the following information security protections:

(1) For covered contractor information systems that are part of an Information Technology (IT) service or system operated on behalf of the Government, the following security requirements apply:

- (i) Cloud computing services shall be subject to the security requirements specified in the clause 252.239-7010, Cloud Computing Services, of this contract.
- (ii) Any other such IT service or system (i.e., other than cloud computing) shall be subject to the security requirements specified elsewhere in this contract.

(2) For covered contractor information systems that are not part of an IT service or system operated on behalf of the Government and therefore are not subject to the security requirement specified at paragraph (b)(1) of this clause, the following security requirements apply:

(i) Except as provided in paragraph (b)(2)(ii) of this clause, the covered contractor information system shall be subject to the security requirements in National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations", Revision 2 (available via the internet at <http://dx.doi.org/10.6028/NIST.SP.800-171>).

(ii)(A) The Contractor shall implement NIST SP 800-171, as soon as practical, but not later than December 31, 2017. For all contracts awarded prior to October 1, 2017, the Contractor shall notify the DoD Chief Information Officer (CIO), via email at osd.dibcsia@mail.mil, within 30 days of contract award, of any security requirements specified by NIST SP 800-171 not implemented at the time of contract award.

(B) The Contractor shall submit requests to vary from NIST SP 800-171 in writing to the Contracting Officer, for consideration by the DoD CIO. The Contractor need not implement any security requirement adjudicated by an authorized representative of the DoD CIO to be nonapplicable or to have an alternative, but equally effective, security measure that may be implemented in its place.

(C) If the DoD CIO has previously adjudicated the contractor's requests indicating that a requirement is not applicable or that an alternative security measure is equally effective, a copy of that approval shall be provided to the Contracting Officer when requesting its recognition under this contract.

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Part 12 Clauses (CONTINUED)

(D) If the Contractor intends to use an external cloud service provider to store, process, or transmit any covered defense information in performance of this contract, the Contractor shall require and ensure that the cloud service provider meets security requirements equivalent to those established by the Government for the Federal Risk and Authorization Management Program (FedRAMP) Moderate baseline (<https://www.fedramp.gov/resources/documents/>) and that the cloud service provider complies with requirements in paragraphs (c) through (g) of this clause for cyber incident reporting, malicious software, media preservation and protection, access to additional information and equipment necessary for forensic analysis, and cyber incident damage assessment.

(3) Apply other information systems security measures when the Contractor reasonably determines that information systems security measures, in addition to those identified in paragraphs (b)(1) and (2) of this clause, may be required to provide adequate security in a dynamic environment or to accommodate special circumstances (e.g., medical devices) and any individual, isolated, or temporary deficiencies based on an assessed risk or vulnerability. These measures may be addressed in a system security plan.

(c) *Cyber incident reporting requirement.*

(1) When the Contractor discovers a cyber incident that affects a covered contractor information system or the covered defense information residing therein, or that affects the contractor's ability to perform the requirements of the contract that are designated as operationally critical support and identified in the contract, the Contractor shall --

(i) Conduct a review for evidence of compromise of covered defense information, including, but not limited to, identifying compromised computers, servers, specific data, and user accounts. This review shall also include analyzing covered contractor information system(s) that were part of the cyber incident, as well as other information systems on the Contractor's network(s), that may have been accessed as a result of the incident in order to identify compromised covered defense information, or that affect the Contractor's ability to provide operationally critical support; and

(ii) Rapidly report cyber incidents to DoD at <https://dibnet.dod.mil>.

(2) *Cyber incident report.* The cyber incident report shall be treated as information created by or for DoD and shall include, at a minimum, the required elements at <https://dibnet.dod.mil>.

(3) *Medium assurance certificate requirement.* In order to report cyber incidents in accordance with this clause, the Contractor or subcontractor shall have or acquire a DoD-approved medium assurance certificate to report cyber incidents. For information on obtaining a DoD-approved medium assurance certificate, see <https://public.cyber.mil/eca/>.

(d) *Malicious software.* When the Contractor or subcontractors discover and isolate malicious software in connection with a reported cyber incident, submit the malicious software to DoD Cyber Crime Center (DC3) in accordance with instructions provided by DC3 or the Contracting Officer. Do not send the malicious software to the Contracting Officer.

(e) *Media preservation and protection.* When a Contractor discovers a cyber incident has occurred, the Contractor shall preserve and protect images of all known affected information systems identified in paragraph (c)(1)(i) of this clause and all relevant monitoring/packet capture data for at least 90 days from the submission of the cyber incident report to allow DoD to request the media or decline interest.

(f) *Access to additional information or equipment necessary for forensic analysis.* Upon request by DoD, the Contractor shall provide DoD with access to additional information equipment that is necessary to conduct a forensic analysis.

(g) *Cyber incident damage assessment activities.* If DoD elects to conduct a damage assessment, the Contracting Officer will request that the Contractor provide all of the damage assessment information gathered in accordance with paragraph (e) of this clause.

(h) *DoD safeguarding and use of contractor attributional/proprietary information.* The Government shall protect against the unauthorized use or release of information obtained from the contractor (or derived from information obtained from the contractor) under this clause that includes contractor attributional/proprietary information, including such information submitted in accordance with paragraph (c). To the maximum extent practicable, the Contractor shall identify and mark attributional/proprietary information. In making an authorized release of such information, the Government will implement appropriate procedures to minimize the contractor attributional/proprietary information that is included in such authorized release, seeking to include only that information that is necessary for the authorized purpose(s) for which the information is being released.

(i) *Use and release of contractor attributional/proprietary information not created by or for DoD.* Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is not created by or for DoD is authorized to be released outside of DoD --

(1) To entities with missions that may be affected by such information;

(2) To entities that may be called upon to assist in the diagnosis, detection, or mitigation of cyber incidents;

(3) To Government entities that conduct counterintelligence or law enforcement investigations;

(4) For national security purposes, including cyber situational awareness and defense purposes (including with Defense Industrial Base (DIB) participants in the program at 32 CFR part 236); or

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Part 12 Clauses (CONTINUED)

- (5) To a support services contractor (“recipient”) that is directly supporting Government activities under a contract that includes the clause at 252.204-7009, Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.
- (j) *Use and release of contractor attributional/proprietary information created by or for DoD.* Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is created by or for DoD (including the information submitted pursuant to paragraph (c) of this clause) is authorized to be used and released outside of DoD for purposes and activities authorized by paragraph
- (i) of this clause, and for any other lawful Government purpose or activity, subject to all applicable statutory, regulatory, and policy based restrictions on the Government's use and release of such information.
- (k) The Contractor shall conduct activities under this clause in accordance with applicable laws and regulations on the interception, monitoring, access, use, and disclosure of electronic communications and data.
- (l) *Other safeguarding or reporting requirements.* The safeguarding and cyber incident reporting required by this clause in no way abrogates the Contractor's responsibility for other safeguarding or cyber incident reporting pertaining to its unclassified information systems as required by other applicable clauses of this contract, or as a result of other applicable U.S. Government statutory or regulatory requirements.
- (m) *Subcontracts.* The Contractor shall --
- (1) Include this clause, including this paragraph (m), in subcontracts, or similar contractual instruments, for operationally critical support, or for which subcontract performance will involve covered defense information, including subcontracts for commercial products or commercial services, without alteration, except to identify the parties. The Contractor shall determine if the information required for subcontractor performance retains its identity as covered defense information and will require protection under this clause, and, if necessary, consult with the Contracting Officer; and
- (2) Require subcontractors to --
- (i) Notify the prime Contractor (or next higher-tier subcontractor) when submitting a request to vary from a NIST SP 800-171 security requirement to the Contracting Officer, in accordance with paragraph (b)(2)(ii)(B) of this clause; and
- (ii) Provide the incident report number, automatically assigned by DoD, to the prime Contractor (or next higher-tier subcontractor) as soon as practicable, when reporting a cyber incident to DoD as required in paragraph (c) of this clause.
- (End of clause)

252.204-7014 LIMITATIONS ON THE USE OR DISCLOSURE OF INFORMATION BY LITIGATION SUPPORT CONTRACTORS (JAN 2023) DFARS

252.225-7035 BUY AMERICAN -- FREE TRADE AGREEMENTS -- BALANCE OF PAYMENTS PROGRAM CERTIFICATE -- BASIC (NOV 2023) DFARS

- Basic.* As prescribed in [225.1101](#) (9) and (9)(i), use the following provision:
- (a) *Definitions.* “Bahraini end product,” “commercially available off-the-shelf (COTS) item,” “component,” “domestic end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “foreign end product,” “Moroccan end product,” “Panamanian end product,” “Peruvian end product,” “qualifying country end product,” and “United States,” as used in this provision, have the meanings given in the Buy American --Free Trade Agreements --Balance of Payments Program --Basic clause of this solicitation.
- (b) *Evaluation.* The Government --
- (1) Will evaluate offers in accordance with the policies and procedures of part 225 of the Defense Federal Acquisition Regulation Supplement; and
- (2) For line items subject to Buy American --Free Trade Agreements --Balance of Payments Program --Basic clause of this solicitation, will evaluate offers of qualifying country end products or Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products, or Peruvian end products without regard to the restrictions of the Buy American or the Balance of Payments Program.
- (c) *Certifications and identification of country of origin.* (1) For all line items subject to the Buy American --Free Trade Agreements --Balance of Payments Program --Basic clause of this solicitation, the offeror certifies that --
- (i) Each end product, except the end products listed in paragraph (c)(2) of this provision, is a domestic end product; and
- (ii) Components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country.
- (2) The offeror shall identify all end products that are not domestic end products.
- (i) The offeror certifies that the following supplies are qualifying country (except Australian) end products:

(Line Item Number)	(Country of Origin)

- (ii) The offeror certifies that the following supplies are Free Trade Agreement country end products other than Bahraini end products, Moroccan end products, Panamanian end products or Peruvian end products:

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(Line Item Number)	(Country of Origin)

(iii) The following supplies are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products, i.e., an end product that is not a COTS item and does not meet the component test in paragraph (1)(ii) of the definition of “domestic end product”:

(Line Item Number)	(Country of Origin (If known))

(End of provision)

52.211-17 DELIVERY OF EXCESS QUANTITIES (SEP 1989) FAR

C03 CONTRACTOR RETENTION OF SUPPLY CHAIN TRACEABILITY DOCUMENTATION (JUN 2023)

L10 COMPETING INDIVIDUAL DELIVERY ORDERS THROUGH REVERSE AUCTIONS (OCT 2016)

52.216-18 ORDERING (AUG 2020) FAR

As prescribed in [16.506\(a\)](#), insert the following clause:

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **DATE OF CONTRACT AWARD** through **LAST DELIVERY DATE UNDER CONTRACT**.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) If mailed, a delivery order or task order is considered “issued” when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995) FAR

As prescribed in [16.506\(b\)](#), insert a clause substantially the same as follows:

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than **3 PAIR** [insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor --

(1) Any order for a single item in excess of **5,100,000 PAIR** [insert dollar figure or quantity];

(2) Any order for a combination of items in excess of **5,100,100 PAIR** [insert dollar figure or quantity]; or

(3) A series of orders from the same ordering office within **30** days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection [52.216-21](#) of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **10** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.222-50 COMBATING TRAFFICKING IN PERSONS (NOV 2021) FAR

252.225-7001 BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM - BASIC (FEB 2024) DFARS

252.225-7001 BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM — ALTERNATE I (FEB 2024) DFARS

252.225-7002 QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS (MAR 2022) DFARS

252.225-7012 PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES (APR 2022) DFARS

(a) *Definitions.* As used in this clause --

“Component” means any item supplied to the Government as part of an end product or of another component.

“End product” means supplies delivered under a line item of this contract.

“Qualifying country” means a country with a reciprocal defense procurement memorandum of understanding or international agreement with the United States in which both countries agree to remove barriers to purchases of supplies produced in the other country or services performed by sources of the other country, and the memorandum or agreement complies, where applicable, with the requirements of section 36 of the Arms Export Control Act (22 U.S.C. 2776) and with 10 U.S.C. 2457. Accordingly, the following are qualifying countries:

Australia

Austria

Belgium

Canada

Czech Republic

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Part 12 Clauses (CONTINUED) Denmark Egypt Estonia Finland France Germany Greece Israel Italy Japan Latvia Lithuania Luxembourg Netherlands Norway Poland Portugal Slovenia Spain Sweden Switzerland Turkey United Kingdom of Great Britain and Northern Ireland. “Structural component of a tent” -- (1) Means a component that contributes to the form and stability of the tent (e.g., poles, frames, flooring, guy ropes, pegs); and (2) Does not include equipment such as heating, cooling, or lighting. “United States” means the 50 States, the District of Columbia, and outlying areas. “U.S.-flag vessel” means a vessel of the United States or belonging to the United States, including any vessel registered or having national status under the laws of the United States. (b) The Contractor shall deliver under this contract only such of the following items, either as end products or components, that have been grown, reprocessed, reused, or produced in the United States: (1) Food. (2) Clothing and the materials and components thereof, other than sensors, electronics, or other items added to, and not normally associated with, clothing and the materials components thereof. Clothing includes items such as outerwear, headwear, underwear, nightwear, footwear, hosiery, handwear, belts, badges, and insignia. (3)(i) Tents and structural components of tents; (ii) Tarpaulins; or (iii) Covers. (4) Cotton and other natural fiber products. (5) Woven silk or woven silk blends. (6) Spun silk yarn for cartridge cloth. (7) Synthetic fabric, and coated synthetic fabric, including all textile fibers and yarns that are for use in such fabrics. (8) Canvas products. (9) Wool (whether in the form of fiber or yarn or contained in fabrics, materials, or manufactured articles). (10) Any item of individual equipment (Federal Supply Class 8465) manufactured from or containing fibers, yarns, fabrics, or materials listed in this paragraph (b). (c) This clause does not apply -- (1) To items listed in section 25.104(a) of the Federal Acquisition Regulation, or other items for which the Government has determined that CONTINUED ON NEXT PAGE		

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a satisfactory quality and sufficient quantity cannot be acquired as and when needed at U.S. market prices;

(2) To incidental amounts of cotton, other natural fibers, or wool incorporated in an end product, for which the estimated value of the cotton, other natural fibers, or wool --

(i) Is not more than 10 percent of the total price of the end product; and

(ii) Does not exceed the threshold at Defense Federal Acquisition Regulation Supplement [225.7002-2\(a\)](#);

(3) To waste and byproducts of cotton or wool fiber for use in the production of propellants and explosives;

(4) To foods, other than fish, shellfish, or seafood, that have been manufactured or processed in the United States, regardless of where the foods (and any component if applicable) were grown or produced. Fish, shellfish, or seafood manufactured or processed in the United States and fish, shellfish, or seafood contained in foods manufactured or processed in the United States shall be provided in accordance with paragraph (d) of this clause;

(5) To chemical warfare protective clothing produced in a qualifying country; or

(6) To fibers and yarns that are for use in synthetic fabric or coated synthetic fabric (but does apply to the synthetic or coated synthetic fabric itself), if --

(i) The fabric is to be used as a component of an end product that is not a textile product. Examples of textile products, made in whole or in part of fabric, include ¾

(A) Draperies, floor coverings, furnishings, and bedding (Federal Supply Group 72, Household and Commercial Furnishings and Appliances);

(B) Items made in whole or in part of fabric in Federal Supply Group 83, Textile/leather/furs/apparel/findings/tents/flags, or Federal Supply Group 84, Clothing, Individual Equipment and Insignia;

(C) Upholstered seats (whether for household, office, or other use); and

(D) Parachutes (Federal Supply Class 1670); or

(ii) The fibers and yarns are para-aramid fibers and continuous filament para-aramid yarns manufactured in a qualifying country.

(d)(1) Fish, shellfish, and seafood delivered under this contract, or contained in foods delivered under this contract --

(i) Shall be taken from the sea by U.S.-flag vessels; or

(ii) If not taken from the sea, shall be obtained from fishing within the United States; and

(2) Any processing or manufacturing of the fish, shellfish, or seafood shall be performed on a U.S.-flag vessel or in the United States.

(End of clause)

252.225-7013 DUTY-FREE ENTRY (NOV 2023) DFARS

252.225-7052 RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN (MAY 2024) DFARS

252.225-7054 PROHIBITION ON USE OF CERTAIN ENERGY SOURCED FROM INSIDE THE RUSSIAN FEDERATION (JAN 2023) FAR

252.225-7056 PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023) DFARS

252.225-7058 POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (JAN 2023) DFARS

252.225-7062 RESTRICTION ON ACQUISITION OF LARGE MEDIUM-SPEED DIESEL ENGINES (JUL 2023) DFARS

252.203-7000 REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2011) DFARS

252.204-7002 PAYMENT FOR SUBLINE ITEMS NOT SEPARATELY PRICED (APR 2020) DFARS

252.204-7015 NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023) DFARS

252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--- REPRESENTATION (MAY 2021) DFARS

As prescribed in [204.2105](#) (b), use the following provision:

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services --Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions*. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016 ,

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Covered Defense Telecommunications Equipment or Services --Representation, that it “does” provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it “will provide covered defense telecommunications equipment or services,” the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7019 NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023) DFARS

As prescribed in 204.7304(d), use the following provision:

(a) *Definitions.*

Basic Assessment, Medium Assessment, and High Assessment have the meaning given in the clause 252.204 -7020, NIST SP 800 -171 DoD Assessments. *Covered contractor information system* has the meaning given in the clause 252.204 -7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this solicitation.

(b) *Requirement.* In order to be considered for award, if the Offeror is required to implement NIST SP 800 -171, the Offeror shall have a current assessment (*i.e.*, not more than 3 years old unless a lesser time is specified in the solicitation) (see 252.204 -7020) for each covered contractor information system that is relevant to the offer, contract, task order, or delivery order. The Basic, Medium, and High NIST SP 800 -171 DoD Assessments are described in the NIST SP 800 -171 DoD Assessment Methodology located at <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>

(c) *Procedures.* (1) The Offeror shall verify that summary level scores of a current NIST SP 800 -171 DoD Assessment (*i.e.*, not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) for all covered contractor information systems relevant to the offer.

(2) If the Offeror does not have summary level scores of a current NIST SP 800 -171 DoD Assessment (*i.e.*, not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the Offeror may conduct and submit a Basic Assessment to webpitsmh@navy.mil for posting to SPRS in the format identified in paragraph (d) of this provision.

(d) *Summary level scores.* Summary level scores for all assessments will be posted 30 days post-assessment in SPRS to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) *Basic Assessments.* An Offeror may follow the procedures in paragraph (c)(2) of this provision for posting Basic Assessments to SPRS.

(i) The email shall include the following information:

(A) Cybersecurity standard assessed (*e.g.*, NIST SP 800 -171 Rev 1).

(B) Organization conducting the assessment (*e.g.*, Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract --

(1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(2) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (*e.g.*, 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (*i.e.*, a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.

(ii) If multiple system security plans are addressed in the email described at [paragraph \(d\)\(1\)\(i\)](#) of this section, the Offeror shall use the following format for the report:

System Security Plan	CAGE Codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total Score	Date score of 110 will achieved

(2) *Medium and High Assessments.* DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system assessed:

(i) The standard assessed (*e.g.*, NIST SP 800 -171 Rev 1).

(ii) Organization conducting the assessment, *e.g.*, DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) A brief description of the system security plan architecture, if more than one system security plan exists.

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- (v) Date and level of the assessment, *i.e.*, medium or high.
- (vi) Summary level score (*e.g.*, 105 out of 110, not the individual value assigned for each requirement).
- (vii) Date that all requirements are expected to be implemented (*i.e.*, a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.
- (3) *Accessibility.* (i) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).
- (ii) Authorized representatives of the Offeror for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.
- (iii) A High NIST SP 800 -171 DoD Assessment may result in documentation in addition to that listed in this section. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (*e.g.*, Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).
- (End of provision)

252.204-7020 NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023) DFARS

As prescribed in 204.7304(e), use the following clause:

(a) Definitions.

Basic Assessment means a contractor's self-assessment of the contractor's implementation of NIST SP 800 -171 that --

- (1) Is based on the Contractor's review of their system security plan(s) associated with covered contractor information system(s);
- (2) Is conducted in accordance with the NIST SP 800 -171 DoD Assessment Methodology; and
- (3) Results in a confidence level of "Low" in the resulting score, because it is a self-generated score.

Covered contractor information system has the meaning given in the clause 252.204 -7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

High Assessment means an assessment that is conducted by Government personnel using NIST SP 800 -171A, Assessing Security Requirements for Controlled Unclassified Information that --

- (1) Consists of --
 - (i) A review of a contractor's Basic Assessment;
 - (ii) A thorough document review;
 - (iii) Verification, examination, and demonstration of a Contractor's system security plan to validate that NIST SP 800 -171 security requirements have been implemented as described in the contractor's system security plan; and
 - (iv) Discussions with the contractor to obtain additional information or clarification, as needed; and
- (2) Results in a confidence level of "High" in the resulting score.

Medium Assessment means an assessment conducted by the Government that --

- (1) Consists of --
 - (i) A review of a contractor's Basic Assessment;
 - (ii) A thorough document review; and
 - (iii) Discussions with the contractor to obtain additional information or clarification, as needed; and
- (2) Results in a confidence level of "Medium" in the resulting score.

(b) *Applicability.* This clause applies to covered contractor information systems that are required to comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800 -171, in accordance with Defense Federal Acquisition Regulation System (DFARS) clause at 252.204 -7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

(c) *Requirements.* The Contractor shall provide access to its facilities, systems, and personnel necessary for the Government to conduct a Medium or High NIST SP 800 -171 DoD Assessment, as described in NIST SP 800 -171 DoD Assessment Methodology at <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>, if necessary.

(d) *Procedures.* Summary level scores for all assessments will be posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) *Basic Assessments.* A contractor may submit, via encrypted email, summary level scores of Basic Assessments conducted in accordance with the NIST SP 800 -171 DoD Assessment Methodology to webpmsmh@navy.mil for posting to SPRS.

(i) The email shall include the following information:

- (A) Version of NIST SP 800 -171 against which the assessment was conducted.
- (B) Organization conducting the assessment (*e.g.*, Contractor self-assessment).
- (C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract --
 - (1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and
 - (2) A brief description of the system security plan architecture, if more than one plan exists.
- (D) Date the assessment was completed.
- (E) Summary level score (*e.g.*, 95 out of 110, NOT the individual value for each requirement).
- (F) Date that all requirements are expected to be implemented (*i.e.*, a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.

(ii) If multiple system security plans are addressed in the email described at [paragraph \(b\)\(1\)\(i\)](#) of this section, the Contractor shall use the following format for the report:

System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will be achieved

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System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will achieved

(2) *Medium and High Assessments.* DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system security plan assessed:

(i) The standard assessed (*e.g.*, NIST SP 800 -171 Rev 1).

(ii) Organization conducting the assessment, *e.g.*, DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) A brief description of the system security plan architecture, if more than one system security plan exists.

(v) Date and level of the assessment, *i.e.*, medium or high.

(vi) Summary level score (*e.g.*, 105 out of 110, not the individual value assigned for each requirement).

(vii) Date that all requirements are expected to be implemented (*i.e.*, a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.

(e) *Rebuttals.* (1) DoD will provide Medium and High Assessment summary level scores to the Contractor and offer the opportunity for rebuttal and adjudication of assessment summary level scores prior to posting the summary level scores to SPRS (see SPRS User's Guide https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf).

(2) Upon completion of each assessment, the contractor has 14 business days to provide additional information to demonstrate that they meet any security requirements not observed by the assessment team or to rebut the findings that may be of question.

(f) *Accessibility.* (1) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(2) Authorized representatives of the Contractor for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(3) A High NIST SP 800 -171 DoD Assessment may result in documentation in addition to that listed in this clause. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (*e.g.*, Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(g) *Subcontracts.* (1) The Contractor shall insert the substance of this clause, including this [paragraph \(g\)](#), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services (excluding commercially available off-the-shelf items).

(2) The Contractor shall not award a subcontract or other contractual instrument, that is subject to the implementation of NIST SP 800 -171 security requirements, in accordance with DFARS clause 252.204 -7012 of this contract, unless the subcontractor has completed, within the last 3 years, at least a Basic NIST SP 800 -171 DoD Assessment, as described in <https://www.acq.osd.mil/asda/dpc/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2-1-6.24.2020.pdf>, for all covered contractor information systems relevant to its offer that are not part of an information technology service or system operated on behalf of the Government.

(3) If a subcontractor does not have summary level scores of a current NIST SP 800 -171 DoD Assessment (*i.e.*, not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the subcontractor may conduct and submit a Basic Assessment, in accordance with the NIST SP 800 -171 DoD Assessment Methodology, to webpmsmh@navy.mil for posting to SPRS along with the information required by paragraph (d) of this clause.

(End of clause)

252.209-7002 DISCLOSURE OF OWNERSHIP OR CONTROL BY A FOREIGN GOVERNMENT (DEC 2022) DFARS

As prescribed in [209.104-70](#), use the following provision:

(a) *Definitions.* As used in this provision -

(1) *Effectively owned or controlled* means that a foreign government or any entity controlled by a foreign government has the power, either directly or indirectly, whether exercised or exercisable, to control the election, appointment, or tenure of the Offeror's officers or a majority of the Offeror's board of directors by any means, *e.g.*, ownership, contract, or operation of law (or equivalent power for unincorporated organizations).

(2) *Entity controlled by a foreign government* -

(i) Means -

(A) Any domestic or foreign organization or corporation that is effectively owned or controlled by a foreign government; or

(B) Any individual acting on behalf of a foreign government.

(ii) Does not include an organization or corporation that is owned, but is not controlled, either directly or indirectly, by a foreign government if the ownership of that organization or corporation by that foreign government was effective before October 23, 1992.

(3) *Foreign government* includes the state and the government of any country (other than the United States and its outlying areas) as well as any political subdivision, agency, or instrumentality thereof.

(4) *Proscribed information* means -

(i) Top Secret information;

(ii) Communications security (COMSEC) material, excluding controlled cryptographic items when unkeyed or utilized with unclassified keys;

(iii) Restricted Data as defined in the U.S. Atomic Energy Act of 1954, as amended;

(iv) Special Access Program (SAP) information; or

(v) Sensitive Compartmented Information (SCI).

(b) *Prohibition on award.* No contract under a national security program may be awarded to an entity controlled by a foreign government if that entity requires access to proscribed information to perform the contract, unless the Secretary of Defense or a designee has waived application of [10 U.S.C. 4874](#).

(c) *Disclosure.* The Offeror shall disclose any interest a foreign government has in the Offeror when that interest constitutes control by a foreign government as defined in this provision. If the Offeror is a subsidiary, it shall also disclose any reportable interest a foreign government has in any entity that owns or

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Part 12 Clauses (CONTINUED) controls the subsidiary, including reportable interest concerning the Offeror's immediate parent, intermediate parents, and the ultimate parent. Use separate paper as needed, and provide the information in the following format: Offeror's Point of Contact for Questions about Disclosure (Name and Phone Number with Country Code, City Code and Area Code, as applicable) Name and Address of Offeror Name and Address of Entity Controlled by a Foreign Government Description of Interest, Ownership Percentage, and Identification of Foreign Government (End of provision) 252.209-7004 SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019) DFARS 252.211-7003 ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023) DFARS As prescribed in 211.274-5(a), use the following clause: (a) <i>Definitions.</i> As used in this clause - <i>Automatic identification device</i> means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media. <i>Concatenated unique item identifier</i> means - (1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or (2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number. <i>Data matrix</i> means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022. <i>Data qualifier</i> means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows. <i>DoD recognized unique identification equivalent</i> means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html. <i>DoD item unique identification</i> means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number. <i>Enterprise</i> means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items. <i>Enterprise identifier</i> means a code that is uniquely assigned to an enterprise by an issuing agency. <i>Government's unit acquisition cost</i> means - (1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery; (2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and (3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery. <i>Issuing agency</i> means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459. <i>Issuing agency code</i> means a code that designates the registration (or controlling) authority for the enterprise identifier. <i>Item</i> means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts. <i>Lot or batch number</i> means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions. <i>Machine-readable</i> means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards. <i>Original part number</i> means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface. <i>Parent item</i> means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent. <i>Serial number within the enterprise identifier</i> means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise. <i>Serial number within the part, lot, or batch number</i> means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment. <i>Serialization within the enterprise identifier</i> means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier. <i>Serialization within the part, lot, or batch number</i> means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier. <i>Type designation</i> means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.		
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Part 12 Clauses (CONTINUED)

Unique item identifier means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

Unique item identifier type means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subtitle, or exhibit line item.

(c) *Unique item identifier*.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items

Contract Line, Subline, or Exhibit Line Item Number	Item Description

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or Exhibit Line Item Number	Item Description

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number .

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number .

(v) Any item not included in paragraphs (c)(1)(i), (ii), (iii), or (iv) of this clause for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers*. The Contractor shall ensure that -

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology-Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier*.

(i) The Contractor shall -

(A) Determine whether to -

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: Original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code -

(A) Shall not be placed on the item; and

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(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

- (1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.
- (2) Embedded items shall be reported by one of the following methods -
 - (i) Use of the embedded items capability in WAWF;
 - (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or rmats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or
 - (iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) , Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.
- (g) *Subcontracts*. If the Contractor acquires by subcontract any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this [paragraph \(g\)](#), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.211-7008 USE OF GOVERNMENT-ASSIGNED SERIAL NUMBERS (SEP 2010) DFARS

252.215-7007 NOTICE OF INTENT TO RESOLICIT (JUN 2012) DFARS

252.215-7010 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA—BASIC (MAY 2024) DFARS

252.215-7010 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA---ALTERNATE I (JAN 2023) DFARS

Alternate I. As prescribed in [215.408\(5\)\(i\)](#) and (5)(i)(B), use the following provision, which includes a different paragraph (c)(1).

(a) Definitions. As used in this provision -

Market prices means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

Non-Government sales means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

Relevant sales data means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

Sufficient non-Government sales means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by FAR 15.404-1(b)(2)(ii)(B).

Uncertified cost data means the subset of “data other than certified cost or pricing data” (see FAR 2.101) that relates to cost.

(b) Exceptions from certified cost or pricing data. (1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for

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exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) Exception for price set by law or regulation - Identification of the law or regulation establishing the price offered. If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) Commercial product or commercial service exception. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include -

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For items priced based on a catalog -

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(C) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit the DoD to verify the accuracy of the description;

(D) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(E) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by the DoD for the procurement or transaction, any contract or subcontract for the DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to [41 U.S.C. 1502](#) and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) Requirements for certified cost or pricing data. If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall submit certified cost or pricing data and supporting attachments in the following format: [].

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(i).

(d) Requirements for data other than certified cost or pricing data. (1) Data other than certified cost or pricing data submitted in accordance with this provision shall include all data necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in DFARS 215.402(a)(i) and 215.404-1(b).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) The Offeror shall provide information described as follows: [].

(4) Within 10 days of a written request from the Contracting Officer for additional information to support proposal analysis, the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) Subcontract price evaluation. (i) Offerors shall obtain from subcontractors the information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost information may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary -

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) Subcontracts. The Offeror shall insert the substance of this provision, including this [paragraph \(e\)](#), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of -

(1) Paragraph (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

252.215-7012 REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018) DFARS

As prescribed in [215.408](#)(6)(iii), use the following provision:

The Offeror shall submit the cost portion of the proposal via the following electronic media: *[Insert media format, e.g., electronic spreadsheet format, electronic mail, etc.]*

(End of provision)

252.225-7005 IDENTIFICATION OF EXPENDITURES IN THE UNITED STATES (JUN 2005) DFARS

252.222-7006 RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023) DFARS

252.225-7041 CORRESPONDENCE IN ENGLISH (JUN 1997) DFARS

252.225-7064 RESTRICTION ON ACQUISITION OF CERTAIN SATELLITE COMPONENTS (MAY 2024) DFARS

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252.227-7037 VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA (JAN 2025) DFARS

252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018) DFARS

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023) DFARS

As prescribed in [232.7004](#) (b), use the following clause:

(a) *Definitions.* As used in this clause -

Department of Defense Activity Address Code (DoDAAC) is a six position code that uniquely identifies a unit, activity, or organization.

Document type means the type of payment request or receiving report available for creation in Wide Area Workflow (WAWF).

Local processing office (LPO) is the office responsible for payment certification when payment certification is done external to the entitlement system.

Payment request and receiving report are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation System (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall -

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this Web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) *WAWF methods of document submission.* Document submissions may be via Web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items -

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either “Invoice 2in1” or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table *

Field Name in WAWF	Data to be entered in WAWF	Guidance
Pay Official DoDAAC		(If blank, see resulting award)
Issue By DoDAAC		(If blank, see resulting award)
Admin DoDAAC		(If blank, see resulting award)
Inspect By DoDAAC		(If blank, see resulting award)
Ship To Code		(If blank, see resulting award)
Ship From Code		(If blank, see resulting award)
Mark For Code		(If blank, see resulting award)
Service Approver (DoDAAC)		(If blank, see resulting award)
Service Acceptor (DoDAAC)		(If blank, see resulting award)
Accept at Other DoDAAC		(If blank, see resulting award)

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Field Name in WAWF	Data to be entered in WAWF	Guidance
LPO DoDAAC		(If blank, see resulting award)
DCAA Auditor DoDAAC		(If blank, see resulting award)
Other DoDAAC(s)		(If blank, see resulting award)

(* Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert “See Schedule” or “Not applicable.”)
(** Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.* (1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or “Not applicable.”)

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of Clause)

252.243-7001 PRICING OF CONTRACT MODIFICATIONS (DEC 1991) DFARS

252.203-7003 AGENCY OFFICE OF THE INSPECTOR GENERAL (AUG 2019) DFARS

52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024) FAR

252.227-7015 TECHNICAL DATA - COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (JAN 2025) DFARS

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023) FAR

52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021) FAR

52.203-15 WHISTLEBLOWER PROTECTIONS UNDER THE AMERICAN RECOVERY AND REINVESTMENT ACT OF 2009 (JUN 2010) FAR

52.203-19 PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017) FAR

52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT - ALTERNATE I (NOV 2021) FAR

52.204-10 REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020) FAR

52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018) FAR

52.204-16 COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING (AUG 2020) FAR

52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014) FAR

52.204-20 PREDECESSOR OF OFFEROR (AUG 2020) FAR

As prescribed in [4.1804\(d\)](#), insert the following provision:

(a) Definitions. As used in this provision --

Commercial and Government Entity (CAGE) code means --

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term “successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

(b) The Offeror represents that it [] is or [] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(c) If the Offeror has indicated “is” in paragraph (b) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark “Unknown”).

Predecessor legal name: .

(Do not use a “doing business as” name).

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) FAR

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The product, manufacturer, or source must be qualified at the time of award whether or not the name of the product, manufacturer, or source is actually included on a qualified products list, qualified manufacturers list, or qualified bidders list. Offerors should contact the agency activity designated below to obtain all requirements that they or their products or services, or their subcontractors or their products or services, must satisfy to become qualified and to arrange for an opportunity to demonstrate their abilities to meet the standards specified for qualification. http://quicksearch.dla.mil/qsSearch.aspx (c) If an offeror, manufacturer, source, product or service covered by a qualification requirement has already met the standards specified, the relevant information noted below should be provided. Offeror's Name: Manufacturer's Name: Source's Name: Item Name: Service Identification: Test Number: (to the extent known) (d) Even though a product or service subject to a qualification requirement is not itself an end item under this contract, the product, manufacturer, or source must nevertheless be qualified at the time of award of this contract. This is necessary whether the Contractor or a subcontractor will ultimately provide the product or service in question. If, after award, the Contracting Officer discovers that an applicable qualification requirement was not in fact met at the time of award, the Contracting Officer may either terminate this contract for default or allow performance to continue if adequate consideration is offered and the action is determined to be otherwise in the Government's best interests. (e) If an offeror, manufacturer, source, product or service has met the qualification requirement but is not yet on a qualified products list, qualified manufacturers list, or qualified bidders list, the offeror must submit evidence of qualification prior to award of this contract. Unless determined to be in the Government's interest, award of this contract shall not be delayed to permit an offeror to submit evidence of qualification. (f) Any change in location or ownership of the plant where a previously qualified product or service was manufactured or performed requires reevaluation of the qualification. Similarly, any change in location or ownership of a previously qualified manufacturer or source requires reevaluation of the qualification. The reevaluation must be accomplished before the date of award. (End of clause) 52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (NOV 2015) FAR 52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016) FAR As prescribed in <u>9.104-7</u>(d), insert the following provision: (a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that -- (1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or (2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government. (b) The Offeror represents that -- (1) It is [] is not [] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and (2) It is [] is not [] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months. (End of provision) 52.210-1 MARKET RESEARCH (NOV 2021) FAR 52.211-11 LIQUIDATED DAMAGES - SUPPLIES, SERVICES, OR RESEARCH AND DEVELOPMENT (SEP 2000) FAR As prescribed in <u>11.503</u>(a), insert the following clause in solicitations and contracts: (a) If the Contractor fails to deliver the supplies or perform the services within the time specified in this contract, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of \$ per calendar day of delay. (b) If the Government terminates this contract in whole or in part under the Default-Fixed-Price Supply and Service clause, the Contractor is liable for		
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liquidated damages accruing until the Government reasonably obtains delivery or performance of similar supplies or services. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(c) The Contractor will not be charged with liquidated damages when the delay in delivery or performance is beyond the control and without the fault or negligence of the Contractor as defined in the Default.Fixed-Price Supply and Service clause in this contract.

(End of clause)

52.211-16 VARIATION IN QUANTITY (APR 1984) FAR

As prescribed in [11.703\(a\)](#), insert the following clause:

(a) A variation in the quantity of any item called for by this contract will not be accepted unless the variation has been caused by conditions of loading, shipping, or packing, or allowances in manufacturing processes, and then only to the extent, if any, specified in paragraph (b) of this clause.

(b) The permissible variation shall be limited to:

2 Percent increase

2 Percent decrease

This increase or decrease shall apply to ALL CLINS/SUB-LINE LEVEL.*

(End of clause)

52.212-2 EVALUATION---COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021) FAR

As prescribed in [12.301\(c\)](#), the Contracting Officer may insert a provision substantially as follows:

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

PDM, PAST PERFE, PRICE

(Contracting Officer shall insert the significant evaluation factors, such as (i) technical capability of the item offered to meet the Government requirement; (ii) price; (iii) past performance (see FAR 15.304); and include them in the relative order of importance of the evaluation factors, such as in descending order of importance.)

Technical and past performance, when combined, are **SIGNIFICANTLY MORE IMPORTANT** (Contracting Officer state, in accordance with FAR 15.304, the relative importance of all other evaluation factors, when combined, when compared to price.)

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS --- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES -- ALTERNATE I (FEB 2024) FAR

Alternate I. As prescribed in [12.301\(b\)\(2\)](#), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

☐ Black American.

☐ Hispanic American.

☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

☐ Individual/concern, other than one of the preceding.

(End of provision)

52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES - ALTERNATE I (NOV 2021) FAR

Alternate I. As prescribed in [12.301\(b\)\(3\)](#), insert the following clause:

When a time-and-materials or labor-hour contract is contemplated, substitute the following paragraphs (a), (e), (i), (l), and (m) for those in the basic clause.

(a) Inspection/Acceptance. (1) The Government has the right to inspect and test all materials furnished and services performed under this contract, to the extent practicable at all places and times, including the period of performance, and in any event before acceptance. The Government may also inspect the plant or plants of the Contractor or any subcontractor engaged in contract performance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

((4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (a)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that

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portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. *[Insert portion of labor rate attributable to profit.]*

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may -

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (a)(4) and (5) above, the Government may at any time require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to -

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(e) Definitions. (1) The clause at FAR 52.202-1, Definitions, is incorporated herein by reference. As used in this clause -

(i) 'Direct materials' means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

(ii) "Hourly rate" means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

(A) Performed by the contractor;

(B) Performed by the subcontractors; or

(C) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

(iii) "Materials" means-

(A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;

(B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(C) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);

(D) The following subcontracts for services which are specifically excluded from the hourly rate: *_ [Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.];* and

(E) Indirect costs specifically provided for in this clause.

(iv) "Subcontract" means any contract, as defined in FAR [subpart 2.1](#), entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(i) *Payments.* (1) *Work performed.* The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) *Hourly rate.*

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) *Materials.*

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the -

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor-

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- (1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or
- (2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.
- (C) To the extent able, the Contractor shall-
- (1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and
- (2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.
- (D) *Other Costs.* Unless listed below, other direct and indirect costs will not be reimbursed.
- (1) *Other Direct Costs.* The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: *[Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert 'None'."]*
- (2) *Indirect Costs (Material Handling, Subcontract Administration, etc.).* The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: *[Insert a fixed amount for the indirect costs and payment schedule. Insert "\$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert 'None'").]*
- (2) *Total cost.* It is estimated that the total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule and the Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the then stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the then revised estimate of the total amount of effort to be required under the contract.
- (3) *Ceiling price.* The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.
- (4) *Access to records.* At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):
- (i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;
- (ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-
- (A) The original timecards (paper-based or electronic);
- (B) The Contractor's timekeeping procedures;
- (C) Contractor records that show the distribution of labor between jobs or contracts; and
- (D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.
- (iii) For material and subcontract costs that are reimbursed on the basis of actual cost-
- (A) Any invoices or subcontract agreements substantiating material costs; and
- (B) Any documents supporting payment of those invoices.
- (5) *Overpayments/Underpayments.* Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government within 30 days will pay any such increases, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-
- (i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-
- (A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);
- (B) Affected contract number and delivery order number, if applicable;
- (C) Affected line item or subline item, if applicable; and
- (D) Contractor point of contact.
- (ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.
- (6)(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in [41 U.S.C. 7109](#), which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six month period as established by the Secretary until the amount is paid.
- (ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.
- (iii) *Final Decisions.* The Contracting Officer will issue a final decision as required by [33.211](#) if-
- (A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;
- (B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless

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the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR [32.607-2](#)).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) *Release of claims.* The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions.

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ([31 U.S.C. 3903](#)) and prompt payment regulations at 5 CFR part 1315.

(9) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see [52.212-5\(b\)](#) for the appropriate EFT clause.

(10) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS --- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-00004) FAR

This clause incorporates by reference only those clauses required to implement provisions of law or Executive orders applicable to the acquisition of commercial products or commercial services. The contracting officer shall attach this clause to the solicitation and contract and, using the appropriate clause prescriptions, indicate which, if any, of the additional clauses cited in 52.212-5(b) or (c) are applicable to the specific acquisition. Some of the clauses require fill-in; the fill-in language should be inserted as directed by 52.104(d). When cost information is obtained pursuant to part 15 to establish the reasonableness of prices for commercial products or commercial services, the contracting officer shall insert the clauses prescribed for this purpose in an addendum to the solicitation and contract. This clause may not be tailored.

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203 -19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113 -235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204 -23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (NOV 2021) (Section 1634 of Pub. L. 115 -91).

(3) 52.204 -25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)

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(A) of Pub. L. 115 -232).

(4) 52.209 -10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232 -40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233 -3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233 -4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108 -77 and 108 -78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655)

☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

☒ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111 -5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☒ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community --see FAR 3.900(a).

☐ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109 -282) (31 U.S.C. 6101 note).

☐ (6) [Reserved]

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111 -117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111 -117, section 743 of Div. C).

☐ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117 -328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders --Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) ([Pub. L. 115 -390](#), title II).

☐ (11)(i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders --Prohibition. (Dec 2023) ([Pub. L. 115 -390](#), title II). ☐ (ii) Alternate I (DEC 2023) of 52.204 -30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved]

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☒ (19) (i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☒ (ii) Alternate I (MAR 2020) of 52.219-7.

☐ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)).

☐ (21)(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☒ (ii) Alternate I (NOV 2016) of 52.219-9.

☐ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JUN 2020) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☐ (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages --Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☒ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the Service-Disabled Veteran-Owned Small Business Program (FEB 2024) (15 U.S.C. 657f).

☐ (26) (i) 52.219-28, Postaward Small Business Program Representation (JAN 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219 -28.

☒ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 657s).

☐ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

☐ (32) 52.222-19, Child Labor--Cooperation with Authorities and Remedies (JAN 2025) (E.O. 13126).

☒ (33) [Reserved]

☒ (34) [Reserved]

☒ (ii) [Reserved]

☒ (35)(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☒ (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

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[X] (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

|| (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

|| (39)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

|| (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

[X] (40) 52.222 -54, Employment Eligibility Verification (JAN 2025). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

[X] (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

|| (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

|| (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, et seq.).

|| (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, et seq.).

|| (44)(i) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, et seq.).

|| (45) 52.223-21 Foams (MAY 2024) (42 U.S.C. 7671, et seq.).

|| (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

|| (47) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552 a).

|| (ii) Alternate I (JAN 2017) of 52.224-3.

|| (48) (i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).

|| (ii) Alternate I (OCT 2022) of 52.225-1.

[X] (49) (i) 52.225 -3, Buy American--Free Trade Agreements--Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

|| (ii) Alternate I [Reserved].

|| (iii) Alternate II (JAN 2025) of 52.225-3.

|| (iv)Alternate III (FEB 2024) of 52.225-3.

|| (v) Alternate IV (OCT 2022) of 52.225-3.

[X] (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

[X] (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

|| (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

|| (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

|| (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

|| (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).

[X] (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

|| (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

|| (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

|| (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT 2018) (31 U.S.C. 3332).

|| (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

|| (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

|| (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

[X] (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

|| (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

|| (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

|| (ii) Alternate I (APR 2003) of 52.247-64.

[X] (iii)Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services: [Contracting Officer check as appropriate.]

|| (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

|| (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

|| (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

|| (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards --Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

|| (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment --Requirements (MAY 2014) (41 U.S.C. chapter 67).

|| (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services --Requirements (MAY 2014) (41 U.S.C. chapter 67).

|| (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

|| (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

|| (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

|| (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using

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Part 12 Clauses (CONTINUED)

other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215 -2, Audit and Records --Negotiation.

- (1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.
- (2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.
- (3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.
- (e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause --
- (i) 52.203 -13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).
- (ii) 52.203 -17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).
- (iii) 52.203 -19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113 -235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (iv) 52.204 -23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities (NOV 2021) (Section 1634 of Pub. L. 115 -91).
- (v) 52.204 -25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1) (A) of Pub. L. 115 -232).
- (vi) 52.204 -27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117 -328).
- (vii)(A) 52.204 -30, Federal Acquisition Supply Chain Security Act Orders --Prohibition. (Dec 2023) ([Pub. L. 115 -390](#), title II).
- (B) Alternate I (DEC 2023) of 52.204-30
- (viii) 52.219 -8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219 -8 in lower tier subcontracts that offer subcontracting opportunities.
- (ix) [Reserved]
- (x) [Reserved]
- (xi) 52.222 -35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- (xii) 52.222 -36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- (xiii) 52.222 -37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- (xiv) 52.222 -40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222 -40.
- (xv) 52.222 -41, Service Contract Labor Standards (AUG 2018)(41 U.S.C. chapter 67).
- (xvi) (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- (B) Alternate I (MAR 2015) of 52.222 -50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222 -51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment --Requirements (MAY 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222 -53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services --Requirements (MAY 2014) (41 U.S.C. chapter 67).
- (xix) 52.222 -54, Employment Eligibility Verification (JAN 2025) (E. O. 12989).
- (xx) 52.222 -55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- (xxi) 52.222 -62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- (xxii)(A) 52.224 -3, Privacy Training (JAN 2017) (5 U.S.C. 552a).
- (B) Alternate I (JAN 2017) of 52.224 -3.
- (xxiii) 52.225 -26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226 -6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226 -6.
- (xxv) 52.232 -40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232 -40.
- (xxvi) 52.247 -64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247 -64.
- (2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.214-34 SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991) FAR

52.214-35 SUBMISSION OF OFFERS IN U.S. CURRENCY (APR 1991) FAR

52.215-1 INSTRUCTIONS TO OFFERORS - COMPETITIVE ACQUISITION (NOV 2021) FAR

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52.215-20 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST AND PRICING DATA (NOV 2021) FAR

(a) *Exceptions from certified cost or pricing data.* (1) In lieu of submitting certified cost or pricing data, offerors may submit a written request for exception by submitting the information described in the following subparagraphs. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted, and whether the price is fair and reasonable.

(i) *Identification of the law or regulation establishing the price offered.* If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial product and commercial service exception.* For a commercial product and commercial service exception, the offeror shall submit, at a minimum, information on prices at which the same item or similar items have previously been sold in the commercial market that is adequate for evaluating the reasonableness of the price for this acquisition. Such information may include -

(A) For catalog items, a copy of or identification of the catalog and its date, or the appropriate pages for the offered items, or a statement that the catalog is on file in the buying office to which the proposal is being submitted. Provide a copy or describe current discount policies and price lists (published or unpublished), e.g., wholesale, original equipment manufacturer, or reseller. Also explain the basis of each offered price and its relationship to the established catalog price, including how the proposed price relates to the price of recent sales in quantities similar to the proposed quantities;

(B) For market-priced items, the source and date or period of the market quotation or other basis for market price, the base amount, and applicable discounts. In addition, describe the nature of the market;

(C) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item.

(2) The offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and the reasonableness of price. For items priced using catalog or market prices, or law or regulation, access does not extend to cost or profit information or other data relevant solely to the offeror's determination of the prices to be offered in the catalog or marketplace.

(b) *Requirements for certified cost or pricing data.* If the offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The offeror shall prepare and submit certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments in accordance with the instructions contained in Table 15-2 of FAR 15.408, which is incorporated by reference with the same force and effect as though it were inserted here in full text. The instructions in Table 15-2 are incorporated as a mandatory format to be used in this contract, unless the Contracting Officer and the Contractor agree to a different format and change this clause to use Alternate I.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(End of provision)

52.215-21 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA - MODIFICATIONS (NOV 2021) FAR

52.216-21 REQUIREMENTS (OCT 1995) FAR

As prescribed in [16.506\(d\)](#), insert the following clause:

(a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government's requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(c) Except as this contract otherwise provides, the Government shall order from the Contractor all the supplies or services specified in the Schedule that are required to be purchased by the Government activity or activities specified in the Schedule.

(d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.

(e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.

(f) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after **THE LAST SCHEDULED DELIVERY DATE UNDER CONTRACT.**

(End of Clause)

52.216-22 INDEFINITE QUANTITY (OCT 1995) FAR

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As prescribed in [16.506\(e\)](#), insert the following clause:

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after **THE LAST SCHEDULED DELIVERY DATE UNDER CONTRACT**.

(End of clause)

52.216-24 LIMITATION OF GOVERNMENT LIABILITY (APR 1984) FAR

As prescribed in [16.603-4\(b\)\(2\)](#), insert the following clause in solicitations and contracts when a letter contract is contemplated:

(a) In performing this contract, the Contractor is not authorized to make expenditures or incur obligations exceeding dollars.

(b) The maximum amount for which the Government shall be liable if this contract is terminated is dollars.

(End of clause)

52.216-27 SINGLE OR MULTIPLE AWARDS (OCT 1995) FAR

52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025) FAR

52.227-1 AUTHORIZATION AND CONSENT (JUN 2020) FAR

52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT (JUN 2020) FAR

52.232-1 PAYMENTS (APR 1984) FAR

52.232-11 EXTRAS (APR 1984) FAR

52.232-17 INTEREST (MAY 2014) FAR

52.232-18 AVAILABILITY OF FUNDS (APR 1984) FAR

52.233-1 DISPUTES (MAY 2014), ALT I (DEC 1991) FAR

52.233-2 SERVICE OF PROTEST (SEP 2006) FAR

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from **DLA TROOP SUPPORT, 700 ROBBINS AVE, PHILA PA 19111**. [Contracting Officer designate the official or location where a protest may be served on the Contracting Officer.]

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Clause)

52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004) FAR

52.242-13 BANKRUPTCY (JUL 1995) FAR

52.243-1 CHANGES---FIXED PRICE---ALTERNATE I (APR 1984) FAR

52.246-15 CERTIFICATE OF CONFORMANCE (APR 1984) FAR

As prescribed in 46.315, insert the following clause in solicitations and contracts for supplies or services when the conditions in 46.504 apply:

(a) When authorized in writing by the cognizant Contract Administration Office (CAO), the Contractor shall ship with a Certificate of Conformance any supplies for which the contract would otherwise require inspection at source. In no case shall the Government's right to inspect supplies under the inspection provisions of this contract be prejudiced. Shipments of such supplies will not be made under this contract until use of the Certificate of Conformance has been authorized in writing by the CAO, or inspection and acceptance have occurred.

(b) The Contractor's signed certificate shall be attached to or included on the top copy of the inspection or receiving report distributed to the payment office or attached to the CAO copy when contract administration (Block 10 of the DD Form 250) is performed by the Defense Contract Administration Services. In addition, a copy of the signed certificate shall also be attached to or entered on copies of the inspection or receiving report accompanying the shipment.

(c) The Government has the right to reject defective supplies or services within a reasonable time after delivery by written notification to the Contractor. The Contractor shall in such event promptly replace, correct, or repair the rejected supplies or services at the Contractor's expense.

(d) The certificate shall read as follows:

"I certify that on , the furnished the supplies or services called for by Contract No. via on in accordance with all applicable requirements. I further certify that the supplies or services are of the quality specified and conform in all respects with the contract requirements, including specifications, drawings, preservation, packaging, packing, marking requirements, and physical item identification (part number), and are in the quantity shown on this or on the attached acceptance document."

Date of Execution:

Signature:

Title:

(End of clause)

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52.246-17 WARRANTY OF SUPPLIES OF A NONCOMPLEX NATURE (JUN 2003) FAR

As prescribed in 46.710(a)(1), insert a clause substantially as follows:

(a) Definitions. As used in this clause.

“Acceptance” means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing supplies, or approves specific services as partial or complete performance of the contract.

“Supplies” means the end items furnished by the Contractor and related services required under this contract. The word does not include “data.”

(b) Contractor's obligations.

(1) Notwithstanding inspection and acceptance by the Government of supplies furnished under this contract, or any condition of this contract concerning the conclusiveness thereof, the Contractor warrants that for **1 YEAR AFTER LAST DELIVERY UNDER CONTRACT** [Contracting Officer shall state specific period of time after delivery, or the specified event whose occurrence will terminate the warranty period; e.g., the number of miles or hours of use, or combinations of any applicable events or periods of time].

(i) All supplies furnished under this contract will be free from defects in material or workmanship and will conform with all requirements of this contract; and

(ii) The preservation, packaging, packing, and marking, and the preparation for, and method of, shipment of such supplies will conform with the requirements of this contract.

(2) When return, correction, or replacement is required, transportation charges and responsibility for the supplies while in transit shall be borne by the Contractor. However, the Contractor's liability for the transportation charges shall not exceed an amount equal to the cost of transportation by the usual commercial method of shipment between the place of delivery specified in this contract and the Contractor's plant, and return.

(3) Any supplies or parts thereof, corrected or furnished in replacement under this clause, shall also be subject to the terms of this clause to the same extent as supplies initially delivered. The warranty, with respect to supplies or parts thereof, shall be equal in duration to that in paragraph (b)(1) of this clause and shall run from the date of delivery of the corrected or replaced supplies.

(4) All implied warranties of merchantability and “fitness for a particular purpose” are excluded from any obligation contained in this contract.

(c) Remedies available to the Government.

(1) The Contracting Officer shall give written notice to the Contractor of any breach of warranties in paragraph (b)(1) of this clause within **60 DAYS AFTER DISCOVERY OF DEFECT** [Contracting Officer shall insert specific period of time; e.g., “45 days of the last delivery under this contract,” or “45 days after discovery of the defect”].

(2) Within a reasonable time after the notice, the Contracting Officer may either.

(i) Require, by written notice, the prompt correction or replacement of any supplies or parts thereof (including preservation, packaging, packing, and marking) that do not conform with the requirements of this contract within the meaning of paragraph (b)(1) of this clause; or

(ii) Retain such supplies and reduce the contract price by an amount equitable under the circumstances.

(3)(i) If the contract provides for inspection of supplies by sampling procedures, conformance of supplies or components subject to warranty action shall be determined by the applicable sampling procedures in the contract. The Contracting Officer.

(A) May, for sampling purposes, group any supplies delivered under this contract;

(B) Shall require the size of the sample to be that required by sampling procedures specified in the contract for the quantity of supplies on which warranty action is proposed;

(C) May project warranty sampling results over supplies in the same shipment or other supplies contained in other shipments even though all of such supplies are not present at the point of reinspection; provided, that the supplies remaining are reasonably representative of the quantity on which warranty action is proposed; and

(D) Need not use the same lot size as on original inspection or reconstitute the original inspection lots.

(ii) Within a reasonable time after notice of any breach of the warranties specified in paragraph (b)(1) of this clause, the Contracting Officer may exercise one or more of the following options:

(A) Require an equitable adjustment in the contract price for any group of supplies.

(B) Screen the supplies grouped for warranty action under this clause at the Contractor's expense and return all nonconforming supplies to the Contractor for correction or replacement.

(C) Require the Contractor to screen the supplies at locations designated by the Government within the contiguous United States and to correct or replace all nonconforming supplies.

(D) Return the supplies grouped for warranty action under this clause to the Contractor (irrespective of the f.o.b. point or the point of acceptance) for screening and correction or replacement.

(4)(i) The Contracting Officer may, by contract or otherwise, correct or replace the nonconforming supplies with similar supplies from another source and charge to the Contractor the cost occasioned to the Government thereby if the Contractor.

(A) Fails to make redelivery of the corrected or replaced supplies within the time established for their return; or

(B) Fails either to accept return of the nonconforming supplies or fails to make progress after their return to correct or replace them so as to endanger performance of the delivery schedule, and in either of these circumstances does not cure such failure within a period of 10 days (or such longer period as the Contracting Officer may authorize in writing) after receipt of notice from the Contracting Officer specifying such failure.

(ii) Instead of correction or replacement by the Government, the Contracting Officer may require an equitable adjustment of the contract price. In addition, if the Contractor fails to furnish timely disposition instructions, the Contracting Officer may dispose of the nonconforming supplies for the Contractor's account in a reasonable manner. The Government is entitled to reimbursement from the Contractor, or from the proceeds of such disposal, for the reasonable expenses of the care and disposition of the nonconforming supplies, as well as for excess costs incurred or to be incurred.

(5) The rights and remedies of the Government provided in this clause are in addition to and do not limit any rights afforded to the Government by any other clause of this contract.

(End of clause)

52.246-23 LIMITATION OF LIABILITY (FEB 1997) FAR

52.246-9008 INSPECTION AND ACCEPTANCE AT ORIGIN (AUG 2007), ALT I (AUG 2007) DLAD

52.247-35 F.O.B. DESTINATION, WITHIN CONSIGNEE'S PREMISES (APR 1984) FAR

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52.247-48 F.O.B. DESTINATION - EVIDENCE OF SHIPMENT (FEB 1999) FAR

52.247-58 LOADING, BLOCKING, AND BRACING OF FREIGHT CAR SHIPMENTS (APR 1984) FAR

52.247-68 REPORT OF SHIPMENT (RESHIP) (FEB 2006) FAR

52.248-1 VALUE ENGINEERING (JUN 2020) FAR

As prescribed in 48.201, insert the following clause:

(a) *General.* The Contractor is encouraged to develop, prepare, and submit value engineering change proposals (VECP's) voluntarily. The Contractor shall share in any net acquisition savings realized from accepted VECP's, in accordance with the incentive sharing rates in paragraph (f) below.

(b) *Definitions.* *Acquisition savings*, as used in this clause, means savings resulting from the application of a VECP to contracts awarded by the same contracting office or its successor for essentially the same unit. Acquisition savings include --

(1) Instant contract savings, which are the net cost reductions on this, the instant contract, and which are equal to the instant unit cost reduction multiplied by the number of instant contract units affected by the VECP, less the Contractor's allowable development and implementation costs;

(2) Concurrent contract savings, which are net reductions in the prices of other contracts that are definitized and ongoing at the time the VECP is accepted; and

(3) Future contract savings, which are the product of the future unit cost reduction multiplied by the number of future contract units in the sharing base. On an instant contract, future contract savings include savings on increases in quantities after VECP acceptance that are due to contract modifications, exercise of options, additional orders, and funding of subsequent year requirements on a multiyear contract.

Collateral costs, as used in this clause, means agency cost of operation, maintenance, logistic support, or Government-furnished property.

Collateral savings, as used in this clause, means those measurable net reductions resulting from a VECP in the agency's overall projected collateral costs, exclusive of acquisition savings, whether or not the acquisition cost changes.

Contracting office includes any contracting office that the acquisition is transferred to, such as another branch of the agency or another agency's office that is performing a joint acquisition action.

Contractor's development and implementation costs, as used in this clause, means those costs the Contractor incurs on a VECP specifically in developing, testing, preparing, and submitting the VECP, as well as those costs the Contractor incurs to make the contractual changes required by Government acceptance of a VECP.

Future unit cost reduction, as used in this clause, means the instant unit cost reduction adjusted as the Contracting Officer considers necessary for projected learning or changes in quantity during the sharing period. It is calculated at the time the VECP is accepted and applies either (1) throughout the sharing period, unless the Contracting Officer decides that recalculation is necessary because conditions are significantly different from those previously anticipated or (2) to the calculation of a lump-sum payment, which cannot later be revised.

Government costs, as used in this clause, means those agency costs that result directly from developing and implementing the VECP, such as any net increases in the cost of testing, operations, maintenance, and logistics support. The term does not include the normal administrative costs of processing the VECP or any increase in this contract's cost or price resulting from negative instant contract savings.

Instant contract, as used in this clause, means this contract, under which the VECP is submitted. It does not include increases in quantities after acceptance of the VECP that are due to contract modifications, exercise of options, or additional orders. If this is a multiyear contract, the term does not include quantities funded after VECP acceptance. If this contract is a fixed-price contract with prospective price redetermination, the term refers to the period for which firm prices have been established.

Instant unit cost reduction means the amount of the decrease in unit cost of performance (without deducting any Contractor's development or implementation costs) resulting from using the VECP on this, the instant contract. If this is a service contract, the instant unit cost reduction is normally equal to the number of hours per line-item task saved by using the VECP on this contract, multiplied by the appropriate contract labor rate.

Negative instant contract savings means the increase in the cost or price of this contract when the acceptance of a VECP results in an excess of the Contractor's allowable development and implementation costs over the product of the instant unit cost reduction multiplied by the number of instant contract units affected.

Net acquisition savings means total acquisition savings, including instant, concurrent, and future contract savings, less Government costs.

Sharing base, as used in this clause, means the number of affected end items on contracts of the contracting office accepting the VECP.

Sharing period, as used in this clause, means the period beginning with acceptance of the first unit incorporating the VECP and ending at a calendar date or event determined by the contracting officer for each VECP.

Unit, as used in this clause, means the item or task to which the Contracting Officer and the Contractor agree the VECP applies.

Value engineering change proposal (VECP) means a proposal that --

(1) Requires a change to this, the instant contract, to implement; and

(2) Results in reducing the overall projected cost to the agency without impairing essential functions or characteristics; *provided*, that it does not involve a change --

(i) In deliverable end item quantities only;

(ii) In research and development (R&D) end items or R&D test quantities that is due solely to results of previous testing under this contract; or

(iii) To the contract type only.

(c) *VECP preparation.* As a minimum, the Contractor shall include in each VECP the information described in subparagraphs (1) through (8) below. If the proposed change is affected by contractually required configuration management or similar procedures, the instructions in those procedures relating to format, identification, and priority assignment shall govern VECP preparation. The VECP shall include the following:

(1) A description of the difference between the existing contract requirement and the proposed requirement, the comparative advantages and disadvantages of each, a justification when an item's function or characteristics are being altered, the effect of the change on the end item's performance, and any pertinent objective test data.

(2) A list and analysis of the contract requirements that must be changed if the VECP is accepted, including any suggested specification revisions.

(3) Identification of the unit to which the VECP applies.

(4) A separate, detailed cost estimate for (i) the affected portions of the existing contract requirement and (ii) the VECP. The cost reduction associated with the VECP shall take into account the Contractor's allowable development and implementation costs, including any amount attributable to subcontracts under

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Part 12 Clauses (CONTINUED)

the Subcontracts paragraph of this clause, below.

(5) A description and estimate of costs the Government may incur in implementing the VECP, such as test and evaluation and operating and support costs.

(6) A prediction of any effects the proposed change would have on collateral costs to the agency.

(7) A statement of the time by which a contract modification accepting the VECP must be issued in order to achieve the maximum cost reduction, noting any effect on the contract completion time or delivery schedule.

(8) Identification of any previous submissions of the VECP, including the dates submitted, the agencies and contract numbers involved, and previous Government actions, if known.

(d) *Submission.* The Contractor shall submit VECP's to the Contracting Officer, unless this contract states otherwise. If this contract is administered by other than the contracting office, the Contractor shall submit a copy of the VECP simultaneously to the Contracting Officer and to the Administrative Contracting Officer.

(e) *Government action.* (1) The Contracting Officer will notify the Contractor of the status of the VECP within 45 calendar days after the contracting office receives it. If additional time is required, the Contracting Officer will notify the Contractor within the 45-day period and provide the reason for the delay and the expected date of the decision. The Government will process VECP's expeditiously; however, it will not be liable for any delay in acting upon a VECP.

(2) If the VECP is not accepted, the Contracting Officer will notify the Contractor in writing, explaining the reasons for rejection. The Contractor may withdraw any VECP, in whole or in part, at any time before it is accepted by the Government. The Contracting Officer may require that the Contractor provide written notification before undertaking significant expenditures for VECP effort.

(3) Any VECP may be accepted, in whole or in part, by the Contracting Officer's award of a modification to this contract citing this clause and made either before or within a reasonable time after contract performance is completed. Until such a contract modification applies a VECP to this contract, the Contractor shall perform in accordance with the existing contract. The decision to accept or reject all or part of any VECP is a unilateral decision made solely at the discretion of the Contracting Officer.

(f) *Sharing rates.* If a VECP is accepted, the Contractor shall share in net acquisition savings according to the percentages shown in the table below. The percentage paid the Contractor depends upon (1) this contract's type (fixed-price, incentive, or cost-reimbursement), (2) the sharing arrangement specified in paragraph (a) above (incentive, program requirement, or a combination as delineated in the Schedule), and (3) the source of the savings (the instant contract, or concurrent and future contracts), as follows:

Contractor's Share of Net Acquisition Savings

[Figures in Percent]

Contract type	Sharing arrangement			
	Incentive (voluntary)		Program requirement (mandatory)	
	Instant contract rate	Con-current and future contract rate	Instant contract rate	Con-current and future contract rate
Fixed-price (includes fixed-price-award-fee; excludes other fixed-price incentive contracts)	¹ 50	¹ 50	25	25
Incentive (fixed-price or cost) (other than award fee)	(²)	¹ 50	(²)	25
Cost-reimbursement (includes cost-plus-award-fee; excludes other cost-type incentive contracts)	³ 25	³ 25	15	15

¹The Contracting Officer may increase the Contractor's sharing rate to as high as 75 percent for each VECP.

²Same sharing arrangement as the contract's profit or fee adjustment formula.

³The Contracting Officer may increase the Contractor's sharing rate to as high as 50 percent for each VECP.

(g) *Calculating net acquisition savings.* (1) Acquisition savings are realized when (i) the cost or price is reduced on the instant contract, (ii) reductions are negotiated in concurrent contracts, (iii) future contracts are awarded, or (iv) agreement is reached on a lump-sum payment for future contract savings (see subparagraph (i)(4) below). Net acquisition savings are first realized, and the Contractor shall be paid a share, when Government costs and any negative instant contract savings have been fully offset against acquisition savings.

(2) Except in incentive contracts, Government costs and any price or cost increases resulting from negative instant contract savings shall be offset against acquisition savings each time such savings are realized until they are fully offset. Then, the Contractor's share is calculated by multiplying net acquisition savings by the appropriate Contractor's percentage sharing rate (see paragraph (f) above). Additional Contractor shares of net acquisition savings shall be paid to the Contractor at the time realized.

(3) If this is an incentive contract, recovery of Government costs on the instant contract shall be deferred and offset against concurrent and future contract savings. The Contractor shall share through the contract incentive structure in savings on the instant contract items affected. Any negative instant contract savings shall be added to the target cost or to the target price and ceiling price, and the amount shall be offset against concurrent and future contract savings.

(4) If the Government does not receive and accept all items on which it paid the Contractor's share, the Contractor shall reimburse the Government for the proportionate share of these payments.

(h) *Contract adjustment.* The modification accepting the VECP (or a subsequent modification issued as soon as possible after any negotiations are completed) shall --

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Part 12 Clauses (CONTINUED)

- (1) Reduce the contract price or estimated cost by the amount of instant contract savings, unless this is an incentive contract;
- (2) When the amount of instant contract savings is negative, increase the contract price, target price and ceiling price, target cost, or estimated cost by that amount;
- (3) Specify the Contractor's dollar share per unit on future contracts, or provide the lump-sum payment;
- (4) Specify the amount of any Government costs or negative instant contract savings to be offset in determining net acquisition savings realized from concurrent or future contract savings; and
- (5) Provide the Contractor's share of any net acquisition savings under the instant contract in accordance with the following:
- (i) Fixed-price contracts --add to contract price.
- (ii) Cost-reimbursement contracts --add to contract fee.
- (i) *Concurrent and future contract savings.* (1) Payments of the Contractor's share of concurrent and future contract savings shall be made by a modification to the instant contract in accordance with subparagraph (h)(5) above. For incentive contracts, shares shall be added as a separate firm-fixed-price line item on the instant contract. The Contractor shall maintain records adequate to identify the first delivered unit for 3 years after final payment under this contract.
- (2) The Contracting Officer shall calculate the Contractor's share of concurrent contract savings by (i) subtracting from the reduction in price negotiated on the concurrent contract any Government costs or negative instant contract savings not yet offset and (ii) multiplying the result by the Contractor's sharing rate.
- (3) The Contracting Officer shall calculate the Contractor's share of future contract savings by (i) multiplying the future unit cost reduction by the number of future contract units scheduled for delivery during the sharing period, (ii) subtracting any Government costs or negative instant contract savings not yet offset, and (iii) multiplying the result by the Contractor's sharing rate.
- (4) When the Government wishes and the Contractor agrees, the Contractor's share of future contract savings may be paid in a single lump sum rather than in a series of payments over time as future contracts are awarded. Under this alternate procedure, the future contract savings may be calculated when the VECP is accepted, on the basis of the Contracting Officer's forecast of the number of units that will be delivered during the sharing period. The Contractor's share shall be included in a modification to this contract (see subparagraph (h)(3) above) and shall not be subject to subsequent adjustment.
- (5) Alternate no-cost settlement method. When, in accordance with section 48.104-4 of the Federal Acquisition Regulation (FAR), the Government and the Contractor mutually agree to use the no-cost settlement method, the following applies:
- (i) The Contractor will keep all the savings on the instant contract and on its concurrent contracts only.
- (ii) The Government will keep all the savings resulting from concurrent contracts placed on other sources, savings from all future contracts, and all collateral savings.
- (j) *Collateral savings.* If a VECP is accepted, the Contracting Officer will increase the instant contract amount, as specified in paragraph (h)(5) of this clause, by a rate from 20 to 100 percent, as determined by the Contracting Officer, of any projected collateral savings determined to be realized in a typical year of use after subtracting any Government costs not previously offset. However, the Contractor's share of collateral savings will not exceed the contract's firm-fixed-price, target price, target cost, or estimated cost, at the time the VECP is accepted, or \$100,000, whichever is greater. The Contracting Officer will be the sole determiner of the amount of collateral savings.
- (k) *Relationship to other incentives.* Only those benefits of an accepted VECP not rewardable under performance, design-to-cost (production unit cost, operating and support costs, reliability and maintainability), or similar incentives shall be rewarded under this clause. However, the targets of such incentives affected by the VECP shall not be adjusted because of VECP acceptance. If this contract specifies targets but provides no incentive to surpass them, the value engineering sharing shall apply only to the amount of achievement better than target.
- (l) *Subcontracts.* The Contractor shall include an appropriate value engineering clause in any subcontract-valued at or above the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, and may include one in subcontracts of lesser value. In calculating any adjustment in this contract's price for instant contract savings (or negative instant contract savings), the Contractor's allowable development and implementation costs shall include any subcontractor's allowable development and implementation costs, and any value engineering incentive payments to a subcontractor, clearly resulting from a VECP accepted by the Government under this contract. The Contractor may choose any arrangement for subcontractor value engineering incentive payments; *provided*, that the payments shall not reduce the Government's share of concurrent or future contract savings or collateral savings.
- (m) *Data.* The Contractor may restrict the Government's right to use any part of a VECP or the supporting data by marking the following legend on the affected parts:
- "These data, furnished under the Value Engineering clause of contract, shall not be disclosed outside the Government or duplicated, used, or disclosed, in whole or in part, for any purpose other than to evaluate a value engineering change proposal submitted under the clause. This restriction does not limit the Government's right to use information contained in these data if it has been obtained or is otherwise available from the Contractor or from another source without limitations."
- If a VECP is accepted, the Contractor hereby grants the Government unlimited rights in the VECP and supporting data, except that, with respect to data qualifying and submitted as limited rights technical data, the Government shall have the rights specified in the contract modification implementing the VECP and shall appropriately mark the data. (The terms *unlimited rights* and *limited rights* are defined in part 27 of the Federal Acquisition Regulation.)

(End of clause)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998) FAR

As prescribed in 52.107(a), insert the following provision:

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/?q=browsefar>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

DLAD: <http://www.dla.mil/HQ/Acquisition/Offers/DLAD.aspx>

(End of provision)

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52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020) FAR

As prescribed in [52.107\(e\)](#), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DoD FAR Supplement (DFARS) (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020) FAR

As prescribed in [52.107\(f\)](#), insert the following clause in solicitations and contracts that include any FAR or supplemental clause with an authorized deviation. Whenever any FAR or supplemental clause is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the clause when it is used without deviation, include regulation name for any supplemental clause, except that the contracting officer shall insert "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DoD FAR Supplement (DFARS) (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

5452.233-9001 DISPUTES - AGREEMENT TO USE ALTERNATIVE DISPUTE RESOLUTION (JUN 2020) DLAD

(a) The parties agree to negotiate with each other to try to resolve any disputes that may arise. If unassisted negotiations are unsuccessful, the parties will use alternative dispute resolution (ADR) techniques to try to resolve the dispute. Litigation will only be considered as a last resort when ADR is unsuccessful or has been documented by the party rejecting ADR to be inappropriate for resolving the dispute.

(b) Before either party determines ADR inappropriate, that party must discuss the use of ADR with the other party. The documentation rejecting ADR must be signed by an official authorized to bind the Contractor (see Federal Acquisition Regulation (FAR) clause 52.233-1), or, for the Agency, by the Contracting Officer, and approved at a level above the Contracting Officer after consultation with the ADR Specialist and with legal. Contractor personnel are also encouraged to include the ADR Specialist in their discussions with the Contracting Officer before determining ADR to be inappropriate.

(c) The offeror should check here to opt out of this clause:

☐ Alternate wording may be negotiated with the contracting officer.

E03 PRODUCTION LOT TESTING --- CONTRACTOR (MAY 2020)

(1) The purpose of production lot testing (PLT) is to validate quality conformance of products. The contractor shall complete PLT on the production lot(s) after first article approval, if the contract requires first article testing. The contractor shall price the PLT CLIN to cover the cost of the final test report and any approved samples that are consumed, destroyed, or otherwise rendered unusable during testing. The unit of issue for the PLT CLIN, EACH, is equal to one Production Lot Test (1EA=1PLT).

(2) For purposes of facilitating PLT, the engineering support activity and/or testing facility has authority to communicate and discuss clarifications directly with contractors. If the Government and/or the contractor identify changes to contract requirements, the contractor shall contact the post award contracting officer or contract administrator (see the "Issued By" blocks on the contract award or order) for written approval. The contractor shall not act on any revisions or other changes until the contracting officer issues a written modification approving the proposed revision(s)/change(s).

(3) The contractor shall provide and maintain an inspection system acceptable to the Government in accordance with FAR Clause 52.246-2 or 52.246-3, and maintain and make available all records evidencing those details if requested by the Government. At least fourteen (14) calendar days (or as otherwise specified in the contract) prior to conducting the production lot test, the contractor shall provide written notice of the time and location of the test to the contracting officer and the cognizant DCMA functional specialist when full administration or quality support administration is delegated to DCMA, so the Government may witness sample selection and the test.

(4) Unless otherwise stated, the contractor shall select ☐ samples at random from the production lot(s) produced. If the quantity stated in the previous sentence equals "ZZ," the contractor shall use the appropriate sample size identified in the technical data package or applicable sample plan provided by the Government. If the contractor cannot determine the sample quantity, the contractor shall obtain written confirmation of the sample size from the contracting officer.

(5) The contractor shall perform all tests on the PLT samples needed to verify/validate the items meet the contract technical/quality requirements.

(6) If a PLT sample fails, the entire production lot from which the contractor took the sample fails. The contractor shall notify the contracting officer and propose corrective action, if appropriate.

(7) The contractor shall prepare and disseminate the PLT report and applicable traceability documentation as follows:

(a) Prepare the test report in accordance with data item description DI-NDTI-80809B, and mark the test report, "Production Lot Test Report, Contract Number ☐ and Lot/Item Number ☐.

(b) Present the PLT report to the contracting officer for review.

(c) Include the following documentation with all shipments of PLT Reports:

(i) DD Form 1222 and system of record receiving report (i.e., WAWF or DD Form 250);

(ii) Copy of the contract/order;

(iii) Copy of all applicable test reports, showing actual results and tolerances specified in the technical data package;

(iv) Material and process certifications;

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Part 12 Clauses (CONTINUED)

- (v) Process operations and inspection method sheets;
- (vi) Copies of drawings used to manufacture the PLT sample, with proper marking to restrict public disclosure (if desired) and from Government use other than for evaluation to the extent consistent with the Government's data rights under the contract; and
- (vii) Documents required under a contract deliverables requirements list, if applicable.
- (d) Submit all required documentation to the Government activity specified in the contract in time to allow for at least [] calendar days for review of the PLT report, and for the contracting officer to provide written notification of approval/disapproval to the contractor.
- (i) For awards issued by DLA Troop Support Construction and Equipment (SPE8E), email all required documentation to Construction and Equipment PLT Monitor at trpsptcandeppltmonitor@dla.mil. If documentation files exceed email limitations, submit to the following address: DLA Troop Support, Attention: Production Lot Testing Monitor, Building 3, 700 Robbins Avenue, Philadelphia, Pennsylvania 19111.
- (e) For PLT, the Government will conduct inspection at source and acceptance at destination. The FOB point is destination.
- (f) Delivery.
 - (i) Ship test report to [].
 - (ii) Delivery Schedule Information:
 - (A) Total Delivery Days for FAT (If Applicable)
 - (B) Days: Completion of Production Units (to include PLT samples), PLT, and Submission of PLT Report
 - (C) Days: Government PLT Report Evaluation and Notification to Contractor
 - (D) Days: Delivery of final production quantity to Government
 - (E) Total Delivery Days (Sum of paragraph (ii)(A) through (D) above)

E04 PRODUCTION LOT TESTING (MAY 2020)

- (1) The purpose of production lot testing (PLT) is to validate quality conformance of products. The Government conducts PLT on the production lot(s) after first article approval, when a first article is required. The contractor shall price the PLT CLIN to cover the cost of any approved samples that are consumed, destroyed, or otherwise rendered unusable during testing. The unit of issue for the PLT CLIN, EACH, is equal to one Production Lot Test (1EA=1PLT).
- (2) For purposes of facilitating PLT, the engineering support activity and/or testing facility has authority to communicate and conduct clarifications directly with contractors. If this results in necessary changes to contract requirements, the contractor shall contact the post award contracting officer or contract administrator (see the "Issued By" blocks on the contract award or order) for written approval. The contractor shall not act on any revisions or other changes until the contracting officer issues a written modification approving the proposed revision(s)/ change(s).
- (3) The contractor shall provide and maintain an inspection system acceptable to the Government in accordance with FAR Clause 52.246-2 or 52.246-3, and maintain and make available all records evidencing those details if requested by the Government. At least fourteen (14) calendar days (or as otherwise specified in the contract) prior to the date when the contractor will present the production lot for selection of PLT samples, the contractor shall provide written notice to the contracting officer (and the cognizant DCMA functional specialist when full administration or quality support administration is delegated to DCMA).
- (4) Unless otherwise stated, the contractor shall select [] samples, at random from the production lot(s) produced. If the quantity stated in the previous sentence equals "ZZ," the contractor shall use the appropriate sample size identified in the technical data package or applicable sample plan provided by the Government. If the contractor cannot determine the sample quantity, the contractor shall obtain written confirmation of the sample size from the contracting officer.
- (5) If a PLT sample fails, the entire production lot from which the contractor took the sample fails. The contractor shall propose corrective action, if appropriate.
- (6) The Government will return PLT samples to the contractor, with a copy of the test report, at contractor expense.
- (7) The contractor shall prepare and disseminate the samples as follows:
 - (a) Ship the selected PLT samples by traceable means. [Mark the shipment "Production Lot Samples - Do Not Post To Stock," Contract Number [] and Lot/Item Number []". Place a copy of the system of record receiving report (i.e., WAWF or DD Form 250) on the exterior of the shipping container in accordance with DFARS Appendix F. Mark the exterior of the shipping container in accordance with MIL-STD-129 (latest revision), paragraph 5.11.
 - (b) Include the following interior documentation:
 - (i) DD Form 1222 and system of record receiving report (i.e., WAWF or DD Form 250);
 - (ii) Copy of contract/order;
 - (iii) Copy of test reports, showing actual results and tolerances specified in the technical data package;
 - (iv) Material and process certifications;
 - (v) Process operations and inspection method sheets;
 - (vi) Copies of drawings used to manufacture the PLT sample (proper marking to assert proprietary or other rights to restrict public disclosure is the contractor's responsibility);
 - (vii) Documents required under contract deliverables requirements list; and
 - (viii) A prepaid shipping label or document with the information required to return the PLT samples to the contractor at no cost to the Government.

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Part 12 Clauses (CONTINUED)

(8) At the time of shipment, the contractor shall sign and provide copies of the DD Form 1222, system of record receiving report (i.e., WAWF or DD Form 250), transportation tracking information, and information for return of the PLT samples to the contracting officer. The Government testing time will be [] calendar days for the test results to be provided to the contractor.

(9) For PLT, the Government will conduct inspection at source and acceptance at destination. The FOB point is destination.

(10) Delivery.

(a) Ship samples to [].

(b) Delivery Schedule Information:

(i) [] Total Delivery Days for FAT (If Applicable)

(ii) [] Days: Completion of Production Units (to include PLT samples), and Submission of samples for Government Testing

(iii) [] Days: Government PLT Report Evaluation and Notification to Contractor

(iv) [] Days: Delivery of final production quantity to Government

(v) [] Total Delivery Days (Sum of paragraph (10)b(i) through (iv))

E05 PRODUCT VERIFICATION TESTING (MAY 2020)

(1) Product verification testing (PVT) under this procurement note will only apply when the contracting officer specifically invokes it in writing. The contracting officer may invoke PVT at or after contract award. If the contracting officer invokes PVT at contract award, the contract will explicitly state this testing requirement. If the contracting officer invokes PVT after contract award, the contracting officer shall notify the contractor and the cognizant DCMA ACO. The Government will perform PVT testing at a Government-designated testing laboratory.

(2) The contractor shall not ship or deliver any material until it receives notification of the acceptable PVT results, unless the contracting officer directs it to do so in writing. The Government will provide the PVT results to the contractor within 20 business days after receipt at the Government testing facility, unless the Government specifies otherwise in writing.

(3) The contractor shall provide and maintain an inspection system acceptable to the Government in accordance with FAR Clause 52.246-2 or 52.246-3; and maintain and make available all records evidencing those details if requested by the Government. When the Government finds evidence of risk associated with the contractor's sampling process, the Government may witness and evaluate the contractor's sampling process. The contractor shall randomly select samples from the production lot(s), unless the contracting officer specifies otherwise in writing. The contractor shall ship the selected PVT samples with a copy of the system of record receiving report (i.e., WAWF, DD Form 250, or commercial shipping document) and the contractor's signed DD Form 1222. The contractor shall prepare the shipping container(s) by marking the external packages in bold letters, "Product Verification Test Samples - Do Not Post to Stock," Contract Number [] and Lot/Item Number [] adjacent to the MIL-STD-129 (latest revision) identification markings. The contractor shall use a hard copy of the system of record receiving report as a packing list, in accordance with DFARS Appendix F. The contractor shall mark the exterior of the shipping container in accordance with MIL-STD129 (latest revision), paragraph 5.11. The contractor shall send samples by traceable means (e.g., certified or registered mail, United Parcel Service, Federal Express). The contractor shall include the following in the interior package:

(a) Hard copies of the contract;

(b) Material certifications/process operation sheets; and

(c) Drawings used to manufacture the units and return shipping information.

(4) The Government will return samples that pass testing and are not destroyed during evaluation to the contractor at the Government's expense for the contractor to include as part of the total contract quantity to be delivered under the contract. The contractor and Government may agree to dispose of samples not destroyed when the cost of the item does not justify the shipping expense. If the Government does not return approved samples that pass testing to the contractor, the Government will consider those samples as part of the contract quantity for payment and delivery.

(5) If samples fail testing, the Government may reject the entire contract lot from which the contractor took the samples. The Government may, at its discretion, retain samples that fail testing without obligation to the contractor.

E06 INSPECTION AND ACCEPTANCE AT SOURCE (JUN 2018)

Inspection and acceptance are at source. The place of acceptance is the location where the Government conducts the last inspection before shipment, unless the contractor indicated a different physical location for acceptance below.

The contractor shall indicate the location where supplies will be inspected, if different from the production location:

Commercial and Government Entity (CAGE) code:

Address:

Applicable to contract line item numbers(s) (CLIN(s)):

The contractor shall indicate the location where packaging will be inspected, if different from the production location:

[] Same as for supplies OR

CAGE code:

Address:

Applicable to CLIN(s):

The contractor shall indicate the location where supplies will be accepted, if different from the inspection location:

Commercial and Government Entity (CAGE) code:

Address:

Applicable to contract line item numbers(s) (CLIN(s)):

ADDENDUM TO 52.212-1 OFFEROR REPRESENTATIONS AND CERTIFICATIONS -- COMMERCIAL ITEMS

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ADDENDUM TO 52.212-2 EVALUATION - COMMERCIAL ITEMS

ADDENDUM TO 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS - COMMERCIAL ITEMS

ADDENDUM TO 52.212-4 CONTRACT TERMS AND CONDITIONS - COMMERCIAL ITEMS

252.232-7010 LEVIES ON CONTRACT PAYMENTS (DEC 2006) DFARS

52.233-3 PROTEST AFTER AWARD (AUG 1996) FAR

52.242-15 STOP-WORK ORDER (AUG 1989) FAR

52.242-17 GOVERNMENT DELAY OF WORK (APR 1984) FAR

252.244-7000 SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023) DFARS

52.246-2 INSPECTION OF SUPPLIES FIXED PRICE (AUG 1996) FAR

52.246-16 RESPONSIBILITY FOR SUPPLIES (APR 1984) FAR

252.246-7008 SOURCES OF ELECTRONIC PARTS (JAN 2023) DFARS

52.247-34 F.O.B. DESTINATION (JAN 1991) FAR

52.247-60 GUARANTEED SHIPPING CHARACTERISTICS (JAN 2017) FAR

(a) The offeror is requested to complete paragraph (a)(1) of this clause, for each part or component which is packed or packaged separately. This information will be used to determine transportation costs for evaluation purposes. If the offeror does not furnish sufficient data in paragraph (a)(1) of this clause, to permit determination by the Government of the item shipping costs, evaluation will be based on the shipping characteristics submitted by the offeror whose offer produces the highest transportation costs or in the absence thereof, by the Contracting Officer's best estimate of the actual transportation costs. If the item shipping costs, based on the actual shipping characteristics, exceed the item shipping costs used for evaluation purposes, the Contractor agrees that the contract price shall be reduced by an amount equal to the difference between the transportation costs actually incurred, and the costs which would have been incurred if the evaluated shipping characteristics had been accurate.

(1) To be completed by the offeror:

- (i) Type of container: Wood Box [] Fiber Box [], Barrel [], Reel [], Drum [], Other (Specify) ;
- (ii) Shipping configuration: Knocked-down [], Set-up [], Nested [], Other (specify) ;
- (iii) Size of container: " (Length), × " (Width), × " (Height) = Cubic Ft;
- (iv) Number of items per container each;
- (v) Gross weight of container and contents Lbs;
- (vi) Palletized/skidded [] Yes [] No;
- (vii) Number of containers per pallet/skid ;
- (viii) Weight of empty pallet bottom/skid and sides Lbs;
- (ix) Size of pallet/skid and contents Lbs Cube ;
- (x) Number of containers or pallets/skids per railcar *
 - (A) Size of railcar
 - (B) Type of railcar
- (xi) Number of containers or pallets/skids per trailer *
 - (A) Size of trailer Ft
 - (B) Type of trailer

* Number of complete units (line item) to be shipped in carrier's equipment.

(2) To be completed by the Government after evaluation but before contract award:

- (i) Rate used in evaluation ;
- (ii) Tender/Tariff ;
- (iii) Item .

(b) The guaranteed shipping characteristics requested in paragraph (a)(1) of this clause do not establish actual transportation requirements, which are specified elsewhere in this solicitation. The guaranteed shipping characteristics will be used only for the purpose of evaluating offers and establishing any liability of the successful offeror for increased transportation costs resulting from actual shipping characteristics which differ from those used for evaluation in accordance with paragraph (a) of this clause.

(End of clause)

252.247-7023 TRANSPORTATION OF SUPPLIES BY SEA --- BASIC (OCT 2024) DFARS

Basic. As prescribed in [247.574\(b\)](#) and (b)(1), use the following clause:

(a) Definitions. As used in this clause --

“Foreign-flag vessel” means any vessel that is not a U.S.-flag vessel.

“Ocean transportation” means any water-borne transportation aboard a ship, vessel, boat, barge, ferry, or the like outside the internal waters of the United

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Part 12 Clauses (CONTINUED)

States as defined in 33 CFR 2.24.

"Subcontractor" means a supplier, materialman, distributor, or vendor at any level below the prime contractor whose contractual obligation to perform results from, or is conditioned upon, award of the prime contract and who is performing any part of the work or other requirement of the prime contract.

"Supplies" means supplies that are clearly identifiable for eventual use by or owned by DoD at the time of transportation by sea, or are otherwise transported by DoD, regardless of ownership or use by DoD. An item is clearly identifiable for eventual use by DoD if, for example, the contract documentation contains a reference to a DoD contract number or a military destination.

"U.S.-flag vessel" means either a vessel belonging to the United States or a vessel of the United States as that term is defined in 46 U.S.C. 116.:

(b)(1) The Contractor shall use U.S.-flag vessels when transporting any supplies by sea under this contract.

(2) A subcontractor transporting supplies by sea under this contract shall use U.S.-flag vessels if --

(i) This contract is a construction contract; or

(ii) The supplies being transported are --

(A) Other than commercial products; or

(B) Commercial products that --

(1) The Contractor is reselling or distributing to the Government without adding value (generally, the Contractor does not add value to items that it subcontracts for f.o.b. destination shipment);

(2) Are shipped in direct support of U.S. military contingency operations, exercises, or forces deployed in humanitarian or peacekeeping operations; or

(3) Are commissary or exchange cargoes transported outside of the Defense Transportation System in accordance with 10 U.S.C. 2643.

(c) The Contractor and its subcontractors may request, via the Contracting Officer, a waiver of the requirement to use a U.S.-flag vessel, or identification of any available U.S.-flag vessels, if the Contractor or a subcontractor sufficiently explains that --

(1) U.S.-flag vessels are not available at a fair and reasonable rate for commercial vessels of the United States; or

(2) U.S.-flag vessels are otherwise not available.

(d) The Contractor must submit any request for use of foreign-flag vessels in writing to the Contracting Officer at least 45 days prior to the sailing date necessary to meet its delivery schedules. The Contracting Officer will process requests submitted after such date(s) as expeditiously as possible, however, if a DoD waiver is not approved prior to shipper's sailing date, this will not of itself constitute a compensable delay under this or any other clause of this contract. Requests shall contain at a minimum --

(1) Type, weight, and cube of cargo;

(2) Required shipping date;

(3) Special handling and discharge requirements;

(4) Loading and discharge points;

(5) Name of shipper and consignee;

(6) Prime contract number; and

(7) A documented description of current, diligent efforts made to secure U.S.-flag vessels, including points of contact (with names and telephone numbers) with at least two U.S.-flag carriers contacted. Copies of quotes will suffice for this purpose. Copies of telephone notes, emails, and other relevant communications will otherwise be considered for this purpose.

(e) The Contractor shall, within 30 days after each shipment covered by this clause, provide the Contracting Officer and the Maritime Administration, Office of Cargo Preference, U.S. Department of Transportation, 400 Seventh Street SW, Washington, DC 20590, one copy of the rated on board vessel operating carrier's ocean bill of lading, which shall contain the following information:

(1) Prime contract number;

(2) Name of vessel;

(3) Vessel flag of registry;

(4) Date of loading;

(5) Port of loading;

(6) Port of final discharge;

(7) Description of commodity;

(8) Gross weight in pounds and cubic feet if available;

(9) Total ocean freight in U.S. dollars; and

(10) Name of the carrier.

(f) If this contract exceeds the simplified acquisition threshold, the Contractor shall provide with its final invoice under this contract a representation that to the best of its knowledge and belief --

(1) No ocean transportation was used in the performance of this contract;

(2) Ocean transportation was used and only U.S.-flag vessels were used for all ocean shipments under the contract;

(3) Ocean transportation was used, and the Contractor had received a prior-approved waiver for U.S.-flag vessels for all foreign-flag ocean transportation; or

(4) Ocean transportation was used and some or all of the shipments were made on foreign-flag vessels without the written consent of DoD. The Contractor shall describe these shipments in the following format:

*	ITEM DESCRIPTION	CONTRACT LINE ITEMS	QUANTITY
TOTAL			

(g) If this contract exceeds the simplified acquisition threshold and the final invoice does not include the required representation, the Government will reject and return it to the Contractor as an improper invoice for the purposes of the Prompt Payment clause of this contract. In the event there has been unauthorized use of foreign-flag vessels in the performance of this contract, the Contracting Officer is entitled to equitably adjust the contract, based on the unauthorized use.

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Part 12 Clauses (CONTINUED)

(h) If the Contractor indicated in response to the solicitation provision, Representation of Extent of Transportation by Sea, that it did not anticipate transporting by sea any supplies; however, after the award of this contract, the Contractor learns that supplies will be transported by sea, the Contractor --

(1) Shall notify the Contracting Officer of that fact; and

(2) Hereby agrees to comply with all the terms and conditions of this clause.

(i) Subcontracts. In the award of subcontracts, for the types of supplies described in paragraph (b)(2) of this clause, including subcontracts for commercial products, the Contractor shall flow down the requirements of this clause as follows:

(1) The Contractor shall insert the substance of this clause, including this paragraph (i), in subcontracts that exceed the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.

(2) The Contractor shall insert the substance of paragraphs (a) through (e) of this clause, and this paragraph (i), in subcontracts that are at or below the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.

(End of clause)

52.249-8 DEFAULT (FIXED-PRICE SUPPLY AND SERVICE) (APR 1984) FAR

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998) FAR

As prescribed in [52.107\(b\)](#), insert the following clause:

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/?q=browsefar>

DFARS: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

DLAD: <http://www.dla.mil/HQ/Acquisition/Offers/DLAD.aspx>

(End of clause)

52.253-1 COMPUTER GENERATED FORMS (JAN 1991) FAR

252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023) DFARS

252.225-7048 EXPORT CONTROLLED ITEMS (JUN 2013) DFARS

252.225-7051 PROHIBITION ON ACQUISITION OF CERTAIN FOREIGN COMMERCIAL SATELLITE SERVICES (DEC 2022) DFARS

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013) FAR